

Under the Prophet in Utah; the National Menace of a Political Priestcraft

Frank J. Cannon and Harvey Jerrold

Project Gutenberg

Under the Prophet in Utah; the National Menace of a Political Priestcraft

Frank J. Cannon and Harvey Jerrold



Project Gutenberg

The Project Gutenberg eBook of Under the Prophet in Utah; the National Menace of a Political Priestcraft

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Under the Prophet in Utah; the National Menace of a Political Priestcraft

Author: Frank J. Cannon
Harvey Jerrold O'Higgins

Release date: December 1, 2004 [eBook #7066]
Most recently updated: March 20, 2013

Language: English

Other information and formats: www.gutenberg.org/ebooks/7066

Credits: Produced by David Schwan, Monique Cameron, and David Widger

*** START OF THE PROJECT GUTENBERG EBOOK UNDER THE
PROPHET IN UTAH; THE NATIONAL MENACE OF A POLITICAL
PRIESTCRAFT ***

UNDER THE PROPHET IN UTAH

**The National Menace of a Political
Priestcraft**

By Frank J. Cannon

Formerly United States Senator from Utah

and

Harvey J. O'Higgins

Author "The Smoke-Eaters," "Don-a-Dreams," etc.

CONTENTS

[Note](#)

[Introduction](#)

[Forward](#)

[Chapter I.](#) *In the Days of the Raid*

[Chapter II.](#) *On A Mission to Washington*

[Chapter III.](#) *Without A Country*

[Chapter IV.](#) *The Manifesto*

[Chapter V.](#) *On the Road to Freedom*

[Chapter VI.](#) *The Goal—And After*

[Chapter VII.](#) *The First Betrayals*

[Chapter VIII.](#) *The Church and the Interests*

[Chapter IX.](#) *At the Crossways*

[Chapter X.](#) *On the Downward Path*

[Chapter XI.](#) *The Will of the Lord*

[Chapter XII.](#) *The Conspiracy Completed*

[Chapter XIII.](#) *The Smoot Exposure*

[Chapter XIV.](#) *Treason Triumphant*

[Chapter XV.](#) *The Struggle For Liberty*

[Chapter XVI.](#) *The Price of Protest*

[Chapter XVII.](#) *The New Polygamy*

[Chapter XVIII.](#) *The Prophet of Mammon*

[Chapter XIX.](#) *The Subjects of the Kingdom*

[Chapter XX.](#) *Conclusion*

Note

When Harvey J. O'Higgins was in Denver, in the spring of 1910, working with Judge Ben B. Lindsey on the manuscript of "The Beast and the Jungle," for Everybody's Magazine, he met the Hon. Frank J. Cannon, formerly United States Senator from Utah, and heard from him the story of the betrayal of Utah by the present leaders of the Mormon Church. This story the editor of Everybody's Magazine commissioned Messrs. Cannon and O'Higgins to write. They worked on it for a year, verifying every detail of it from government reports, controversial pamphlets, Mormon books of propaganda, and the newspaper files of current record. It ran through nine numbers of the magazine, and not so much as a successful contradiction was ever made of one of the innumerable incidents or accusations that it contains. It is here published in book form at somewhat greater length than the magazine could print it. It is a joint work, but the autobiographic "I" has been used throughout, because it is Mr. Cannon's personal narrative of his personal experience.

Introduction

This is the story of what has been called "the great American despotism."

It is the story of the establishment of an absolute throne and dynasty by one American citizen over a half-million others.

And it is the story of the amazing reign of this one man, Joseph F. Smith, the Mormon Prophet, a religious fanatic of bitter mind, who claims that he has been divinely ordained to exercise the awful authority of God on earth over all the affairs of all mankind, and who plays the anointed despot in Utah and the surrounding states as cruelly as a Sultan and more securely than any Czar.

To him the Mormon people pay a yearly tribute of more than two million dollars in tithes; and he uses that income, to his own ends, without an accounting. He is president of the Utah branch of the sugar trust, and of the local incorporation's of the salt trust; and he supports the exaction's of monopoly by his financial absolutism, while he defends them from competition by his religious power of interdict and excommunication. He is president of a system of "company stores," from which the faithful buy their merchandise; of a wagon and machine company from which the Mormon farmers purchase their vehicles and implements; of life-insurance and fire-insurance companies, of banking institutions, of a railroad, of a knitting company, of newspapers, which the Mormon people are required by their Church to patronize, and through which they are exploited, commercially and financially, for the sole profit of the sovereign of Utah and his religious court.

He is the political Boss of the state, delivering the votes of his people by revelation of the Will of God, practically appointing the United States Senators from Utah—as he practically appoints the marshals, district attorneys, judges, legislators, officers and administrators of law throughout his "Kingdom of God on Earth"—and ruling the non-Mormons of Utah, as he rules his own people, by virtue of his political and financial partnership with the great "business interests" that govern and exploit this nation, and his Kingdom, for their own gain, and his.

He lives, like the Grand Turk, openly with five wives, against the temporal law of the state, against the spiritual law of his Kingdom, and in violation of his own solemn covenant to the country—which he gave in 1890, in order to obtain amnesty for himself from criminal prosecution and to help Utah obtain the powers of statehood which he has since usurped. He secretly preaches a proscribed doctrine of polygamy as necessary to salvation; he publicly denies his own teaching, so that he may escape responsibility for the sufferings of the "plural wives" and their unfortunate children, who have been betrayed by the authority of his dogma. And these women, by the hundreds, seduced into clandestine marriage relations with polygamous elders of the Church, unable to claim their husbands—even in some cases disowning their children and teaching these children to deny their parents—are suffering a pitiful self-immolation as martyrs to the religious barbarism of his rule.

Demanding unquestioning obedience in all things, as the "mouthpiece of the Lord," and "sole vice-regent of God on Earth," he enforces his demands by his religious, political and financial control of the faith, the votes and the property of his fellow-citizens. He is at once—as the details of this story show—"the modern 'money king,' the absolute political Czar, the social despot and the infallible Pope of his Kingdom."

Ex-Senator Cannon not only exposes but accounts for and explains the conditions that have made the Church-controlled government of Utah less free, less of a democracy, a greater tyranny and more of a disgrace to the nation than ever the corporation rule of Colorado was in the darkest period of the Cripple Creek labor war. He shows the enemies of the republic encouraging and profiting by the shame of Utah as they supported and made gain of Colorado's past disgrace. He shows the piratical "Interests," at Washington, sustaining, and sustained by, the misgovernment of Utah, in their campaign of national pillage. He shows that the condition of Utah today is not merely a local problem; that it affects and concerns the people of the whole country; that it can only be cured with their aid.

The outside world has waited many years to hear the truth about the Mormons; here it is—told with sympathy, with affection, by a man who steadfastly defended and fought for the Mormon people when their present leaders were keeping themselves carefully inconspicuous. The Mormon system of religious communism has long been known as one of the most

interesting social experiments of modern civilization; here is an intimate study of it, not only in its success but in the failure that has come upon it from the selfish ambitions of its leaders. The power of the Mormon hierarchy has been the theme of much imaginative fiction; but here is a story of church tyranny and misgovernment in the name of God, that outrages the credibilities of art. That such a story could come out of modern America—that such conditions could be possible in the democracy today—is an amazement that staggers belief.

II

Hon. Frank J. Cannon is the son of George Q. Cannon of Utah, who was First Councillor of the Mormon Church from 1880 to 1901. After the death of Brigham Young, George Q. Cannon's diplomacy saved the Mormon communism from destruction by the United States government. It was his influence that lifted the curse of polygamy from the Mormon faith. Under his leadership Utah obtained the right of statehood; and his financial policies were establishing the Mormon people in industrial prosperity when he died.

In all these achievements the son shared with his father, and in some of them—notably in the obtaining of Utah's statehood—he had even a larger part than George Q. Cannon himself. When the Mormon communities, in 1888, were being crushed by proscription and confiscation and the righteous bigotries of Federal officials, Frank J. Cannon went to Washington, alone—almost from the doors of a Federal prison—and, by the eloquence of his plea for his people, obtained from President Cleveland a mercy for the Mormons that all the diplomacies of the Church's politicians had been unable to procure. Again, in 1890, when the Mormons were threatened with a general disfranchisement by means of a test oath, he returned to Washington and saved them, with the aid of James G. Blaine, on the promise that the doctrine and practice of polygamy were to be abandoned by the Mormon Church; and he assisted in the promulgation and acceptance of the famous "manifesto" of 1890, by which the Mormon Prophet, as the result of a "divine revelation," withdrew the doctrine of polygamy from the practice of the faith.

He organized the Republican party in Utah, and led it in the first campaigns that divided the people of the territory on the lines of national issues and freed them from the factions of a religious dispute. He delivered

to Washington the pledges of the Mormon leaders, by which the emancipation of their people from hierarchical domination was promised and the right of statehood finally obtained. He was elected the first United States Senator from Utah, against the unwilling candidacy of his own father, when the intrigues of the Mormon priests pitted the father against the son and violated the Church's promise of non-interference in politics almost as soon as it had been given.

It was his voice, in the Senate, that helped to reawaken the national conscience to the crimes of Spanish rule in Cuba, when the "financial interests" of this country were holding the government back from any interference in Cuban affairs. He was one of the leaders in Washington of the first ill-fated "Insurgent Republican" movement against the control of the Republican party by these same piratical "interests;" and he was the only Republican Senator who stood to oppose them by voting against the iniquitous Dingley tariff bill of 1897. He delivered the speech of defiance at the Republican national convention of 1896, when four "Silver Republican" Senators led their delegations out of that convention in revolt. And by all these acts of independence he put himself in opposition to the politicians of the Mormon Church, who were allying themselves with Hanna and Aldrich, the sugar trust, the railroad lobby, and the whole financial and commercial Plunderbund in politics that has since come to be called "The System."

He returned to Utah to prevent the sale of a United States Senatorship by the Mormon Church; and, though he was himself defeated for re-election, he helped to hold the Utah legislature in a deadlock that prevented the selection of a successor to his seat. He fought to compel the leaders of the Church to fulfill the pledges which they had authorized him to give in Washington when statehood was being obtained. After his father's death, when these pledges began to be openly violated, he directed his attack particularly against Joseph F. Smith, the new President of the Church, who was principally responsible for the Church's breach of public faith. Through the columns of the Salt Lake Tribune he exposed the treasonable return to the practice of polygamy which Joseph F. Smith had secretly authorized and encouraged. He opposed the election of Apostle Reed Smoot to the United States Senate, as a violation of the statehood pledges. He criticized the financial absolutism of the Mormon Prophet, which Smith was establishing in partnership with "the Plunderbund." He was finally excommunicated and ostracized, by his father's successors in power, for championing the political

and social liberties of the Mormon people whom he had helped to save from destruction and whose statehood sovereignty he had so largely obtained.

When the partnership of the Church and "the Interests" prevented the expulsion of Apostle Smoot from the Senate, Senator Cannon withdrew from Utah, convinced that nothing could be done for the Mormons so long as the national administration sustained the sovereignty of the Mormon kingdom as a co-ordinate power in this Republic. For the last few years he has been a newspaper editor in Denver, Colorado—on the *Denver Times* and the *Rocky Mountain News*—helping the reform movement in Colorado against the corporation control of that state, and waiting for the opportunity to renew his long fight for the Mormon people.

In the following narrative he returns to that fight. In fulfillment of a promise made before he left Utah—and seeing now, in the new "insurgency," the hope of freeing Utah from slavery to "the System"—he here addresses himself to the task of exposing the treasons and tyrannies of the Mormon Prophet and the consequent miseries among his people.

In the course of his exposition, he gives a most remarkable picture of the Mormon people, patient, meek, and virtuous, "as gentle as the Quakers, as staunch as the Jews." He introduces the world for the first time to the conclaves of the Mormon ecclesiasts, explains the simplicity of some of them, the bitterness of others, the sincerity of almost all—illuminating the dark places of Church control with the understanding of a sympathetic experience, and bringing out the virtues of the Mormon system as impartially as he exposes its faults. He traces the degradation of its communism, step by step and incident by incident, from its success as a sort of religious socialism administered for the common good to its present failure as a hierarchical capitalism governed for the benefit of its modern "Prophet of Mammon" at the expense of the liberty, the happiness, and even the prosperity, of its victims.

For the first time in the history of the Mormon Church, there has arrived a man who has the knowledge and the inclination to explain it.

He does this fearlessly, as a duty, and without any apologies, as a public right. "He is not, and never has been an official member of the Church, in any sense or form," Joseph F. Smith, as President of the Church, testified concerning him, at Washington in 1904; and though this statement is one of the inspired Prophet's characteristic perversions of the truth, it covers the

fact that Senator Cannon has always opposed the official tyrannies of the hierarchs. The present Mormon leaders accepted his aid in freeing Utah, well aware of his independence. They profited by his success with a more or less doubtful gratitude. They betrayed him promptly—as they betrayed the nation and their own followers—as soon as they found themselves in a position safely to betray. In this book he merely continues an independence which he has always maintained, and replies to secret and personal treason with a public criticism, to which he has never hesitated to resort.

He begins his story with the year 1888, and devotes the first chapters to a depiction of the miseries of the Mormon people in the unhappy days of persecution. He continues with the private details of the confidential negotiations in Washington and the secret conferences in Salt Lake City by which the Mormons were saved. He gives the truth about the political intrigues that accompanied the grant of Utah's statehood, and he relates, pledge by pledge, the covenants then given by the Mormon leaders to the nation and since treasonably violated and repudiated by them. He explains the progress of this repudiation with an intimate "inside" knowledge of facts which the Mormon leaders now deny. And he exposes the horror of conditions in Utah today as no other man in America could expose them—for his life has been spent in combating the influences of which these conditions are the result; and he understands the present situation as a doctor understands the last stages of a disease which he has been for years vainly endeavoring to check.

But aside from all this—aside from his exposure of the Mormon despotism, his study of the degradation of a modern community, or his secret history of the Church's dark policies in "sacred places"—he relates a story that is full of the most astonishing curiosities of human character and of dramatic situations that are almost mediaeval in their religious aspects. He goes from interviews with Cleveland or Blaine to discuss American politics with men who believe themselves in direct communication with God—who talk and act like the patriarchs of the Old Testament—who accept their own thoughts as the inspiration of the Holy Ghost, and deliver their personal decisions, reverently, as the Will of the Lord. He shows men and women ready to suffer any martyrdom in defense of a doctrine of polygamy that is a continual unhappiness and cross upon them. He depicts the social life of the most peculiar sect that has ever lived in a Western

civilization. He writes—unconsciously, and for the first time that it has ever been written—the naive, colossal drama of modern Mormonism.

H. J. O'H.

Forward

On the fourth day of January, 1896, the territory of Utah was admitted to statehood, and the proscribed among its people were freed to the liberties of American citizenship, upon the solemn covenant of the leaders of the Mormon Church that they and their followers would live, thereafter, according to the laws and institutions of the nation of which they were allowed to become a part. And that gracious settlement of upwards of forty years of conflict was negotiated through responsible mediators, was endorsed by the good faith of the non-Mormons of Utah, and was sealed by a treaty convention in which the high contracting parties were the American Republic and the "Kingdom of God on Earth."

I propose, in this narrative, to show that the leaders of the Mormon Church have broken their covenant to the nation; that they have abused the confidence of the Gentiles of Utah and betrayed the trust of the people under their power, by using that power to prevent the state of Utah from becoming what it had engaged to become. I propose to show that the people of Utah, upraised to freedom by the magnanimity of the nation, are being made to appear traitorous to the generosity that saved them; that the Mormons of Utah are being falsely misled into the peculiar dangers from which they thought they had forever escaped; that the unity, the solidarity, the loyalty of these fervent people is being turned as a weapon of offense against the whole country, for the greater profit of the leaders and the aggrandizement of their power. I undertake, in fact, in this narrative, to expose and to demonstrate what I do believe to be one of the most direful conspiracies of treachery in the history of the United States.

Not that I have anything in my heart against the Mormon people! Heaven forbid! I know them to be great in their virtues, wholesome in their relations, capable of an heroic fortitude, living by the tenderest sentiments of fraternity, as gentle as the Quakers, as staunch as the Jews. I think of them as a man among strangers thinks of the dearness of his home. I am bound to them in affection by all the ties of life. The smiles of neighborliness, the greetings of friends, all the familiar devotion of brothers and sisters, the love of the parents who held me in their arms by these I

know them as my own people, and by these I love them as a good people, as a strong people, as a people worthy to be strong and fit to be loved.

But it is even through their virtue and by their very strength that they are being betrayed. A human devotion—the like of which has rarely lived among the citizens of any modern state—is being directed as an instrument of subjugation against others and held as a means of oppression upon the Mormons themselves. Noble when they were weak, they are being led to ignoble purpose now that they have become strong. Praying for justice when they had no power, now that they have gained power it is being abused to ends of injustice. Their leaders, reaching for the fleshpots for which these simple-hearted devotees have never sighed, have allied themselves with all the predaceous "interests" of the country and now use the superhuman power of a religious tyranny to increase the dividends of a national plunder.

In the long years of misery when the Mormons of Utah were proscribed and hunted, because they refused to abandon what was to them, at that, time, a divine revelation and a confirmed article of faith, I sat many times in the gallery of the Senate in Washington, and heard discussed new measures of destruction against these victims of their own fidelity, and felt the dome above me impending like a brazen weight of national resentment upon all our heads. When, a few years later, I stood before the President's desk in the Senate chamber, to take my oath of office as the representative of the freed people of Utah in the councils of the nation, I raised my eyes to my old seat of terror in the gallery, and pledged myself, in that remembrance, never to vote nor speak for anything but the largest measure of justice that my soul was big enough to comprehend. By such engagement I write now, bound in a double debt of obligation to the nation whose magnanimity then saved us and to the people whom I humbly helped to save.

Frank J. Cannon.

UNDER THE PROPHET IN UTAH

Chapter I. In the Days of the Raid

About ten o'clock one night in the spring of 1888, I set out secretly, from Salt Lake City, on a nine-mile drive to Bountiful, to meet my father, who was concealed "on the underground," among friends; and that night drive, with its haste and its apprehension, was so of a piece with the times, that I can hardly separate it from them in my memory. We were all being carried along in an uncontrollable sweep of tragic events. In a sort of blindness, like the night, unable to see the nearest fork of the road ahead of us, we were being driven to a future that held we knew not what.

I was with my brother Abraham (soon to become an apostle of the Mormon Church), who had himself been in prison and was still in danger of arrest. And there is something typical of those days in the recollection I have of him in the carriage: silent, self-contained, and—when he talked—discussing trivialities in the most calm way in the world. The whole district was picketed with deputy marshals; we did not know that we were not being followed; we had always the sense of evading patrols in an enemy's country. But this feeling was so old with us that it had become a thing of no regard.

There was something even more typical in the personality of our driver—a giant of a man named Charles Wilcken—a veteran of the German army who had been decorated with the Iron Cross for bravery on the field of battle. He had come to Utah with General Johnston's forces in 1858, and had left the military service to attach himself to Brigham Young. After Young's death, my father had succeeded to the first place in his affections. He was an elder of the Church; he had been an aristocrat in his own country; but he forgot his every personal interest in his loyalty to his leaders, and he stood at all times ready to defend them with his life—as a hundred thousand others did!—for, though the Mormons did not resist the processes of law for themselves, except by evasion, they were prepared to protect their leaders, if necessary, by force of arms.

With Wilcken holding the reins on a pair of fast horses at full speed, we whirled past the old adobe wall (which the Mormons had built to defend their city from the Indians) and came out into the purple night of Utah, with

its frosty starlight and its black hills—a desert night, a mountain night, a night so vast in its height of space and breadth of distance that it seemed natural it should inspire the people that breathed it with freedom's ideals of freedom and all the sublimities of an eternal faith. And those people—!

A more despairing situation than theirs, at that hour, has never been faced by an American community. Practically every Mormon man of any distinction was in prison, or had just served his term, or had escaped into exile. Hundreds of Mormon women had left their homes and their children to flee from the officers of law; many had been behind prison bars for refusing to answer the questions put to them in court; more were concealed, like outlaws, in the houses of friends. Husbands and wives, separated by the necessities of flight, had died apart, miserably. Old men were coming out of prison, broken in health. A young plural wife whom I knew—a mere girl, of good breeding, of gentle life—seeking refuge in the mountains to save her husband from a charge of "unlawful cohabitation," had had her infant die in her arms on the road; and she had been compelled to bury the child, wrapped in her shawl, under a rock, in a grave that she scratched in the soil with a stick. In our day! In a civilized state!

By Act of Congress, all the church property in excess of \$50,000 had been seized by the United States marshal, and the community faced the total loss of its common fund. Because of some evasions that had been attempted by the Church authorities—and the suspicion of more such—the marshal had taken everything that he could in any way assume to belong to the Church. Among the Mormons, there was an unconquerable spirit of sanctified lawlessness, and, among the non-Mormons, an equally indomitable determination to vindicate the law. Both were, for the most part, sincere. Both were resolute. And both were standing in fear of a fatal conflict, which any act of violence might begin.

Moreover, the Mormons were being slowly but surely deprived of all civil rights. All polygamists had been disfranchised by the bill of 1882, and all the women of Utah by the bill of 1887. The Governor of the territory was appointed by Federal authority, so was the marshal, so were the judges, so were the United States Commissioners who had co-ordinate jurisdiction with magistrates and justices of the peace, so were the Election Commissioners. But the Mormons still controlled the legislature, and though the Governor could veto all legislation he could initiate none. For

this reason it had been frequently proposed that the President should appoint a Legislative Council to take the place of the elected legislature; and bills were being talked of in Congress to effect a complete disfranchisement of the whole body of the Mormon people by means of a test oath.

I did not then believe, and I do not now, that the practice of polygamy was a thing which the American nation could condone. But I knew that our people believed in it as a practice ordained, by a revelation from God, for the salvation of the world. It was to them an article of faith as sacred as any for which the martyrs of any religion ever died; and it seemed that the nation, in its resolve to vindicate the supremacy of civil government, was determined to put them to the point of martyrdom.

It was with this prospect before us that we drove, that night, up the Salt Lake valley, across a corner of the desert, to the little town of Bountiful; and as soon as we arrived among the houses of the settlement, a man stepped out into the road, from the shadows, and stopped us. Wilcken spoke to him. He recognized us, and let us pass. As we turned into the farm where my father was concealed, I saw men lurking here and there, on guard, about the grounds. The house was an old-fashioned adobe farm-house; the windows were all dark; we entered through the kitchen. And I entered, let me say, with the sense that I was about to come before one of the most able among men.

To those who knew George Q. Cannon I do not need to justify that feeling. He was the man in the hands of whose sagacity the fate of the Mormons at that moment lay. He was the First Councillor of the Church, and had been so for years. For ten years in Congress, he had fought and defeated the proscriptive legislation that had been attempted against his people; and Senator Hoar had said of him, "No man in Congress ever served a territory more ably." He had been the intimate friend of Randall and Blaine. As a missionary in England he had impressed Dickens, who wrote of him in "An Uncommercial Traveller." The Hon. James Bryce had said of him: "He was one of the ablest Americans I ever met."

An Englishman, well-educated, a linguist, an impressive orator, a persuasive writer, he had lived a life that was one long incredible adventure of romance and almost miraculous achievement. As a youth he had been sent by the Mormon leaders to California to wash out gold for the

struggling community; and he had sent back to Utah all the proceeds of his labor, living himself upon the crudest necessities of life. As a young man he had gone as a Mormon missionary to the Hawaiian Islands, and finding himself unable to convert the whites he had gone among the natives—starving, a ragged wanderer—and by simple force of personality he had made himself a power among them; so that in later years Napella, the famous native leader, journeyed to Utah to consult with him upon the affairs of that distressed state, and Queen Lilookalani, deposed and in exile, appealed to him for advice. He had edited and published a Mormon newspaper in San Francisco; and he had long successfully directed the affairs of the publishing house in Salt Lake City which he owned. He was a railroad builder, a banker, a developer of mines, a financier of a score of interests. He combined the activities of a statesman, a missionary, and a man of business, and seemed equally successful in all.

But none of these things—nor all of them—contained the total of the man himself. He was greater than his work. He achieved by the force of a personality that was more impressive than its achievements. If he had been royalty, he could not have been surrounded with a greater deference than he commanded among our people. A feeling of responsibility for those dependent on him, such as a king might feel, added to a sense of divine guidance that gave him the dignity of inspiration, had made him majestic in his simple presence; and even among those who laughed at divine inspiration and scorned Mormonism as the *Uitlander scorned the faith of the Boer, his sagacity and his diplomacy and his power to read and handle men made him as fearfully admired as any Oom Paul in the Transvaal.

When I entered the low-ceilinged, lamplit room in which he sat, he rose to meet me, and all rose with him, like a court. He embraced me without effusion, looking at me silently with his wise blue eyes that always seemed to read in my face—and to check up in his valuation of me—whatever I had become in my absence from his regard.

He had a countenance that at no time bore any of the marks of the passions of men; and it showed, now, no shadow of the tribulations of that troubled day. His forehead was unworried. His eyes betrayed none of the anxieties with which his mind must have been busied. His expression was one of resolute stern contentment with all things—carrying the composure of spirit which he wished his people to have. If I had been agitated by the

urgency of his summons to me, and he had wished to allay my anxiety at once, the sight of his face, as he looked at me, would have been reassurance enough.

At a characteristic motion of the hand from him, the others left us. We sat down in the "horsehair" chairs of a well-to-do farmer's parlor—furnished in black walnut, with the usual organ against one wall, and the usual marble-topped bureau against the other. I remember the "store" carpet, the mortuary hair-wreaths on the walls, the walnut-framed lithographs of the Church authorities and of the angel Moroni with "the gold plates;" and none of these seem ludicrous to me to remember. They express, to me, in the recollection, some of the homely and devout simplicity of the people whose community life this man was to save.

He talked a few minutes, affectionately, about family matters, and then—straightening his shoulders to the burden of more gravity—he said: "I have sent for you, my son, to see if you cannot find some way to help us in our difficulties. I have made it a matter of prayer, and I have been led to urge you to activity. You have never performed a Mission for the Church, and I have sometimes wondered if you cared anything about your religion. You have never obeyed the celestial covenant, and you have kept yourself aloof from the duties of the priesthood, but it may have been a providential overruling. I have talked with some of the brethren, and we feel that if relief does not soon appear, our community will be scattered and the great work crushed. The Lord can rescue us, but we must put forth our own efforts. Can you see any light?"

I replied that I had already been in Washington twice, on my own initiative, conferring with some of his Congressional friends. "I am still," I said, "of the opinion I expressed to you and President Taylor four years ago. Plural marriage must be abandoned or our friends in Washington will not defend us."

Four years before, when I had offered that opinion, President Taylor had cried out: "No! Plural marriage is the will of God! It's apostasy to question it!" And I paused now with the expectation that my father would say something of this sort. But, as I was afterwards to observe, it was part of his diplomacy, in conference, to pass the obvious opportunity of replying, and to remain silent when he was expected to speak, so that he might not be in the position of following the lead of his opponent's argument, but rather, by

waiting his own time, be able to direct the conversation to his own purposes. He listened to me, silently, his eyes fixed on my face.

"Senator Vest of Missouri," I went on, "has always been a strong opponent of what he considered unconstitutional legislation against us, but he tells me he'll no longer oppose proscription if we continue in an attitude of defiance. He says you're putting yourselves beyond assistance, by organized rebellion against the administration of the statutes." And I continued with instances of others among his friends who had spoken to the same purpose.

When I had done, he took what I had said with a gesture that at once accepted and for the moment dismissed it; and he proceeded to a larger consideration of the situation, in words which I cannot pretend to recall, but to an effect which I wish to outline—because it not only accounts for the preservation of the Mormon people from all their dangers, but contains a reason why the world might have wished to see them preserved.

The Mormons at this time had never written a line on social reform—except as the so-called "revelations" established a new social order—but they had practiced whole volumes. Their community was founded on the three principles of co-operation, contribution, and arbitration. By co-operation of effort they had realized that dream of the Socialists, "equality of opportunity"—not equality of individual capacity, which the accidents of nature prevent, but an equal opportunity for each individual to develop himself to the last reach of his power. By contribution by requiring each man to give one-tenth of his income to a common fund—they had attained the desired end of modern civilization, the abolition of poverty, and had adjusted the straps of the community burden to the strength of the individual to bear it. By arbitration, they had effected the settlement of every dispute of every kind without litigation; for their High Councils decided all sorts of personal or neighborhood disputes without expense of money to the disputants. The "storehouse of the Lord" had been kept open to fill every need of the poor among "God's people," and opportunities for self help had been created out of the common fund, so that neither unwilling idleness nor privation might mar the growth of the community or the progress of the individual.

But Joseph Smith had gone further. Daring to believe himself the earthly representative of Omnipotence, whose duty it was to see that all had the

rights to which he thought them entitled, and assuming that a woman's chief right was that of wifehood and maternity, he had instituted the practice of plural marriage, as a "Prophet of God," on the authority of a direct revelation from the Almighty. It was upon this rock that the whole enterprise, the whole experiment in religious communism, now threatened to split. Not that polygamy was so large an incident in the life of the community—for only a small proportion of the Mormons were living in plural marriage. And not that this practice was the cardinal sin of Mormonism—for among intelligent men, then as now, the great objection to the Church was its assumption of a divine authority to hold the "temporal power," to dictate in politics, to command action and to acquit of responsibility. But polygamy was the offense against civilization which the opponents of Mormonism could always cite in order to direct against the Church the concentrated antagonism of the governments of the Western world. And my father, in authorizing me to proceed to Washington as a sort of ambassador of the Church, evidently wished to impress upon me the larger importance of the value of the social experiment which the Mormons had, to this time, so successfully advanced.

"It would be a cruel waste of human effort," he said, "if, after having attained comfort in these valleys—established our schools of art and science—developed our country and founded our industries—we should now be destroyed as a community, and the value of our experience lost to the world. We have a right to survive. We have a duty to survive. It would be to the profit of the nation that we should survive."

But in order to survive, it was necessary to obtain some immediate mitigation of the enforcement of the laws against us. The manner in which they were being enforced was making compromise impossible, and the men who administered them stood in the way of getting a favorable hearing from the powers of government that alone could authorize a compromise. It was necessary to break this circle; and my father went over the names of the men in Washington who might help us. I could marvel at his understanding of these men and their motives, but we came to no plan of action until I spoke of what had been with me a sort of forlorn hope that I might appeal to President Cleveland himself.

My father said thoughtfully: "What influence could you, a Republican, have with him? It's true that your youth may make an appeal—and the fact

that you're pleading for your relatives, while not yourself a polygamist. But he would immediately ask us to abandon plural marriage, and that is established by a revelation from God which we cannot disregard. Even if the Prophet directed us, as a revelation from God, to abandon polygamy, still the nation would have further cause for quarrel because of the Church's temporal rule. No. I can make no promise. I can authorize no pledge. It must be for the Prophet of God to say what is the will of the Lord. You must see President Woodruff, and after he has asked for the will of the Lord I shall be content with his instruction."

Now, I do not wish to say—though I did then believe it—that the First Councillor of the Mormon Church was prepared to have the doctrine of plural marriage abandoned in order to have the people saved. It is impossible to predicate the thoughts of a man so diplomatic, so astute, and at the same time so deeply religious and so credulous of all the miracles of faith. He did believe in Divine guidance. He was sincere in his submission to the "revelations" of the Prophet. But, in the complexity of the mind of man, even such a faith may be complicated with the strategies of foresight, and the priest who bows devoutly to the oracle may yet, even unconsciously, direct the oracle to the utterance of his desire. And if my father was—as I suspected—considering a recession from plural marriage, he had as justification the basic "revelation," given through "Joseph the Prophet," commanding that the people should hold themselves in subjection to the government under which they lived, "until He shall come Whose right it is to rule."

We talked till midnight, in the quiet glow of the farmer's lamp-light, discussing possibilities, considering policies, weighing men; and then we parted—he to betake himself to whatever secure place of hiding he had found, and I to return to Ogden where I was then editing a newspaper. I was only twenty-nine years old, and the responsibility of the undertaking that had been entrusted to me weighed on my mind. I waited for a summons to confer with President Woodruff, but none came. Instead, my brother brought me word from the President that I must be "guided by the spirit of the Lord;" and, finally, my father sent me orders to consult the Second Councillor, Joseph F. Smith.

Joseph F. Smith! Since the death of the founder of the Mormon Church, there have been three men pre-eminent in its history: Brigham Young, who

led the people across the desert into the Salt Lake Valley and established them in prosperity there; George Q. Cannon, who directed their policies and secured their national rights; and Joseph F. Smith, who today rules over that prosperity and markets that political right, like a Sultan. Of all these, Smith is, to the nation now, of most importance—and sinisterly so.

No Mormon in those years, I think, had more hate than Smith for the United States government; and surely none had better reasons to give himself for hate. He had the bitter recollection of the assassination of his father and his uncle in the jail of Carthage, Illinois; he could remember the journey that he had made with his widowed mother across the Mississippi, across Iowa, across the Missouri, and across the unknown and desert West, in ox teams, half starved, unarmed, persecuted by civilization and at the mercy of savages; he could remember all the toils and hardships of pioneer days "in the Valley;" he had seen the army of '58 arrive to complete, as he believed, the final destruction of our people; he had suffered from all the proscriptive legislation of "the raid," been outlawed, been in exile, been in hiding, hunted like a thief. He had been taught, and he firmly believed, that the Smiths had been divinely appointed to rule, in the name of God, over all mankind. He believed that he—ordained a ruler over this world before ever the world was—had been persecuted by the hate and wickedness of men. He believed it literally; he preached it literally; he still believes and still preaches it. I did not then sympathize with this point of view, any more than I do now; but I did sympathize with him in the hardships that he had already endured and in the trials that he was still enduring—in common with the rest of us. The bond of community persecution intensified my loyalty. I felt for him almost as I felt for my own father. I went to him with the young man's trust in age made wise by suffering.

I had been directed to call on him in the President's offices, in Salt Lake City, where he was concealed, for the moment, under the name of "Mack"—the name that he used "on the underground"—and I went with my brother, late at night, to see him there. The President's offices were at that time in a little one-story plastered house that had been built by Brigham Young between two of his famous residences, the "Beehive House" and the "Lion House" (in which some twelve or fourteen of his wives had lived). The three houses were within the enclosure of a high cobblestone wall built by Brigham Young; and at night the great gate of the wall was shut and

locked. We hammered discreetly on its panels of mountain pine, until a guard answered our knocking, recognized our voices and admitted us.

"He's in there," he said, pointing to the darkened windows of the offices—toward which he led us.

He unlocked the front door—having evidently locked it when he went to the gate—and he explained to a waiting attendant: "These brethren have an appointment. They wish to see Brother Mack."

The attendant led us down a dimly-lighted hall, through the public offices of the President into a rear room, a sort of retiring room, carpeted, furnished with bookcases, chairs, a table. The window blinds had all been carefully drawn.

Joseph F. Smith was waiting for us—a tall, lean, long-bearded man of a commanding figure standing as if our arrival had stopped him in some anxious pacing of the carpet. His overcoat and his hat had been thrown on a chair. He greeted us with the air of one who is hurried, and sat down tentatively; and as soon as we came to the question of my trip to Washington, he broke out:

"These scoundrels here must be removed—if there's any way to do it. They're trying to repeat the persecutions of Missouri and Illinois. They want to despoil us of our heritage—of our families. I'm sick of being hunted like a wild beast. I've done no harm to them or theirs. Why can't they leave us alone to live our religion and obey the commandments of God and build up Zion?" He had begun to stride up and down the floor again, in a sort of driven and angry helplessness. "I thought Cleveland would stop this damnable raid and make them leave us in peace—but he's as bad as the rest. Can't they see that these carpet baggers are only trying to rob us? Make them see that. The hounds! Sometimes it seems to me that the Lord is letting these iniquities go on so that the nation may perish in its sins all the sooner!"

He sneered at John W. Young who had gone to Washington for the Church. (I had met Smith himself there, earlier in the year.) "I thought he'd accomplish something," he said, "with his fashionable home and his—
[**missing text?**) He's using money enough! He's down there, taking things easy, while the rest of us are driven from pillar to post." He attacked the Federal authorities, Governor West, the "whole gang." He cried: "I love my wives and my children—whom the Lord gave me. I love them more

than my life—more than anything in the world—except my religion! And here I am, fleeing from place to place, from the wrath of the wicked—and they're left in sorrow and suffering."

His face was pallid with emotion, and his voice came now hard with exasperation against his enemies and now husky with a passionate affection for his family—a man of fifty, graybearded, quivering in a nervous transport of excitement that jerked him up and down the room, gesticulating.

When he had worn out his first anger of revolt, I brought the conversation round to the question of polygamy, by asking him about a provisional constitution for statehood which the non-polygamous Mormons had recently adopted. It contained a clause making polygamy a misdemeanor. "I would have seen them all damned," he said, "before I would have yielded it, but I'm willing to try the experiment, if any good can come."

He had, I gathered, no aversion to "deceiving the wicked," but he was opposed to leading his people away from their loyalty to the doctrine of plural marriage, by conceding anything that might weaken their faith in it. And yet this impression may misrepresent him. He was too agitated, too exasperated, for any serious reflection on the situation.

My brother had gone—to keep some other engagement—and I stayed late, talking as long as Smith seemed to wish to talk. He rose at last and "blessed" me, his hands on my head, in a return to some larger trust in his religious authority; and I left him—with very doubtful and mixed emotions. His natural violence and his lack of discipline had been matters of common gossip among our people, and I had heard of them from childhood; but I had supposed that tribulations would, by this time, have matured him. There was something compelling in his unsoftened turbulence, but nothing encouraging for me as a messenger of conciliation. I felt that there would be no help come from him in my task, and I dropped him from my reckoning.

I had made up my mind to a plan that was almost as desperate as the conditions it sought to cure—a plan that was in some ways so absurd that I felt like keeping it concealed for fear of ridicule—and I went about my preparations for departure in a sort of hopeless hope. As the train drew out from Ogden, I looked back at the mountains from my car window, and saw again, in the spectacle of their power, the pathos of our people—as if it

were the nation of my worship that bulked there so huge above the people of my love—and I, puny in my little efforts, going out to plot an intercession, to appeal for a truce! It was almost as if I were the son of a Confederate leader journeying to Washington, on the eve of the Civil War, to attempt to stand between North and South and hold back their opposing armies, single-handed.

These are the things a man does when he is young.

Chapter II. On A Mission to Washington

I went discredited, as an envoy, by an incident of personal conflict with the Federal authorities; and I wish to relate that incident before I proceed any farther. I must relate it soon, because it came up for explanation in one of my first interviews with President Cleveland; and I wish to relate it now, because it was so typical of the day and the condition from which we had to save ourselves.

In the winter of 1885-6, the United States Marshals had been pursuing my father from place to place with such determined persistence that it was evident his capture was only a matter of time. We believed that if he were arrested and tried before Chief Justice Zane—with District Attorney Dickson and Assistant District Attorney Varian prosecuting—he would be convicted on so many counts that he would be held in prison indefinitely—that he might, in fact, end his days there. There was the rumor of a boast, to this effect, made by Federal officers; and we misunderstood them and their motives, in those days, sufficiently to accept the unjust report as well-founded.

My father, as First Councillor of the Church, had proposed to President Taylor that every man who was living in plural marriage should surrender himself voluntarily to the court and plead: "I entered into this covenant of celestial marriage with a personal conviction that it was an order revealed by our Father in Heaven for the salvation of mankind. I have kept my covenant in purity. I believed that no constitutional law of the country could forbid this practice of a religious faith. As the laws of Congress conflict with my sense of submission to the will of the Lord, I now offer myself, here, for whatever judgment the courts of my country may impose." He believed that such a course would vindicate the sincerity of the men who had engaged in polygamy and defied the law in an assumption of religious immunity; and he believed that the world would pause to reconsider its judgment upon us, if it saw thousands of men—the bankers, the farmers, the merchants, and all the religious leaders of a civilized community—marching in a mass to perform such an act of faith.

But President Taylor was not prepared for a movement that would have recommended itself better to the daring genius of Brigham Young. Taylor had given himself into the custody of the officers of the law once—in Carthage, Illinois—with Joseph Smith and his brother, Hyrum Smith; and Taylor had been wounded by the mob that broke into the jail and shot the Smiths to death. This, perhaps, had cured him of any faith in the protecting power of innocence. He decided against voluntary surrender; and now that my father's liberty was so seriously threatened, he ordered him to go either to Mexico or to the Sandwich Islands—his old mission field—where he would be beyond the reach of the United States authorities.

My father believed that if he left Utah, his recession might tend to placate the government and soften the severity of the prosecutions of the Mormons; and accordingly, on the night of February 12, 1886, he boarded a west-bound Central Pacific train at Willard. The Federal officers in some way learned of it; he was arrested, on the train, at Humboldt Wells, Nevada, and brought back to Utah. Near Promontory he fell from the steps of the moving car, at night, in the midst of an alkali desert, and hurt himself seriously. He was recaptured and brought to Salt Lake City on a stretcher, in a special car, guarded by a squad of soldiers from Fort Douglas, with loaded muskets, and a captain with a conspicuous sword. He was taken to Judge Zane's chambers and placed under bonds of \$25,000. Immediately two bench warrants were issued by a United States Commissioner, and these were served upon him while he lay on a mattress on the floor of Zane's office. Two more bonds of \$10,000 each were given. He was then taken to his home.

Later—(President Taylor still insisting that he must not stand trial)—he disappeared again, "on the underground," and his bonds were declared forfeited. But in the meantime, while the grand jury was hearing testimony against him, one of the beloved women of his family was called for examination, and District Attorney Dickson asked her some questions that deeply wounded her. She returned home weeping. My brothers and I felt that the questions had been needlessly offensive, and after an indignant discussion of the matter, I undertook to remonstrate personally with Mr. Dickson.

If I had been as wise, then, as I sometimes think I am now, I should have realized that a meeting between us was dangerous; that the feeling, on our

side at least, was too warm for calm remonstrances. And I should not have taken with me a younger brother, about sixteen years old, with all the hot-headedness of youth. Fortunately we did not go armed.

We sought Dickson in the evening, at the Continental Hotel—the old, adobe Continental with its wide porches and its lawn trees—and we found him in the lobby. I asked him to step out on the porch, where I might speak with him in private. He came without a moment's hesitation. He was a big, handsome, black-bearded man in the prime of his strength.

We had scarcely exchanged more than a few sentences formally, when my brother drew back and struck him a smashing blow in the face. Dickson grappled with me, a little blinded, and I called to the boy to run—which he very wisely did. Dickson and I were at once surrounded, and I was arrested.

Ordinarily the incident would have been trivial enough, but in the alarmed state of the public mind it was magnified into an attempt on the part of George Q. Cannon's sons to take the life of the United States District Attorney. Indictments were found against my brother and myself, and against a cousin who happened to be in another part of the hotel at the time of the attack. Some weeks later, when the excitement had rather died down, I went to the District Attorney's office and arranged with his assistant, Mr. Varian, that the indictments against my brother (who had escaped from Utah) and my cousin (who was wholly innocent) should be quashed, and that I should plead guilty to a charge of assault and battery. On this understanding, I appeared in court before Chief Justice Zane.

But Mr. Varian, having consulted with Mr. Dickson, had learned that I had not struck the blow—though, as the elder brother, I was morally responsible for it—and he suggested to the court that sentence be suspended. This, Justice Zane seemed prepared to do, but I objected. I was a newspaper writer (as I explained), and I felt that if I criticized the court thereafter for what I believed to be a harshness that amounted to persecution, I could be silenced by the imposition of the suspended sentence; and if I failed to criticize, I should be false to what I considered my duty. I did not wish to be put in any such position; and I said so.

Justice Zane had a respect for the constitution and the statutes that amounted to a creed of infallibility. He was the most superbly rigid pontiff of legal justice that I ever knew. A man of unspotted character, a Puritan, of a sincerity that was afterwards accepted and admired from end to end of

Utah, he was determined to vindicate the essential supremacy of the civil law over the ecclesiastical domination in the territory; and every act of insubordination against that law was resented and punished by him, unforgivingly. He promptly sentenced me to three months in the County jail and a fine of \$150.

My imprisonment was, of course, a farce. I was merely confined, most of the time, in a room in the County Court House, where I lived and worked as if I were in my home. But the sentence remained on my record as a sufficient mark of my recalcitrance; and I knew that it would not aid me in my appeal to Washington, where I intended to argue—as the first wise concession needed of the Federal authorities—that Chief Justice Zane should no longer be retained on the bench in Utah, but should be succeeded by a man more gentle. He was the great figure among our prosecutors; the others were District Attorney Dickson and the two assistants, Mr. Varian and Mr. Riles. The square had only seemed to be broken by the recent retirement of Mr. Dickson; the strength of his purpose remained still in power, in the person of Judge Zane.

And let me say that whatever my opinion was of these men, at that time, I recognize now that they were justified as officers of the law in enforcing the law. If it had not been for them, the Mormon Church would never have been brought to the point of abating one jot of its pretensions. All four men, as their records have since proved, were much superior to their positions as territorial officers. Utah's admiration for Judge Zane was shown, upon the composition of our differences with the nation, by the Mormon vote that placed him on the Supreme Court bench. Indeed, it is one of the strange psychologies of this reconciliation, that, as soon as peace was made, the strongest men of both parties came into the warmest friendship; our fear and hatred of our prosecutors changed to respect; and their opposition to our indissoluble solidarity changed to regard when they saw us devoting our strength to purposes of which they could approve. But now, in the midst of our contentions, the aspect of splendor in their legal authority had something baleful in it, for us; and we saw our own defiance set with a halo of martyrdom and illumined by the radiance of a Church oppressed!

There was more than a glimmer of that radiance in my thoughts as I made the railroad journey from Utah to the East. The Union Pacific Railway, on which I rode, followed the route that the Mormons had taken in

their long trek from the Missouri; and I could look from my car window and imagine them toiling across those endless plains—in their creaking wagons, drawn by their oxen and lean farm cows—choked with dust, burned by the sun of the prairies, their faces to the unknown dangers of an unknown wilderness, and behind them the cool-roomed houses, the moist fields, the tree-shaded streets, all the quiet and comfort of the settled life of homekeeping happiness that they had left. My own mother had come that road, a little girl of eight; and my mind was full of pictures of her, at school in a wagon-box, singing hymns with her elders around the camp fires at night, or kneeling with the mourners beside the grave of an infant relative buried by the roadside. Our train crossed the Loup Fork of the Platte almost within sight of the place where my father, a lad of twenty, had led across the river at nightfall, had been lost to his party, and had nearly perished, naked to the cold, before he struggled back to the camp. I could see their little circle of wagons drawn up at sunset against the menace of the Indians who snaked through the long grass to kill. I could feel some of their despair, and my heart lifted to their heroism. Never had such a migration been made by any people with fewer of the concomitants of their civilization. Their arms had been taken from them at Nauvoo; they had bartered their goods for wagons and cattle to carry them; even the grain that they brought, for food, had to be saved for seed. They felt themselves devoted to destruction by the people with whose laws and institutions they had come in conflict, and they went forth bravely, trusting in the power of the God whom they were determined to worship according to their despised belief.

Now they had built themselves new homes and meeting-houses in the fertile "Valley;" and the civilization that they had left, having covered the distance of their exile, was punishing them again for their law-breaking fidelity to their faith. Surely they had suffered enough! Surely it was evident that suffering only made them strong to resist! Surely there must be somebody in power in Washington who could be persuaded to see that, where force had always failed, there might be some profit in employing gentleness!

This, at least, was the appeal which I had planned to make. And I had decided to make it through Mr. Abraham S. Hewitt, then mayor of New York City, who had been a friend of my father in Congress. He was not in favor with the administration at Washington. He was personally unfriendly to President Cleveland. I was a stranger to him. But I had seen enough of

him to know that he had the heart to hear a plea on behalf of the Mormons, and the brain to help me carry that plea diplomatically to President Cleveland.

When I arrived in New York I set about finding him without the aid of any common friend. I did not try to reach him at his home, being aware that he might resent an intrusion of public matters upon his private leisure, and fearing to impair my own confidence by beginning with a rebuff. I decided to see him in his office hours.

I cannot recall why I did not find him in the municipal buildings, but I well remember going to and fro in the streets in search of him, feeling at every step the huge city's absorption in its own press and hurry of affairs, and seeing the troubles of Utah as distant as a foreign war. It was with a very keen sense of discouragement that I took my place, at last, in the long line of applicants waiting for a word with the man who directed the municipal activities of this tremendous hive of eager energy.

He was in the old Stewart building, on Broadway, near Park Place; and he had his desk in what was, I think, a temporary office—an empty shop used as an office—on the ground floor. There must have been fifty men ahead of me, and they were the unemployed, as I remember it, besieging him for work. They came to his desk, spoke, and passed with a rapidity that was ominous. As I drew nearer, I watched him anxiously, and saw the incessant, nervous, querulous activity of eyes, lips, hands, as he dismissed each with a word or a scratch of the pen, and looked up sharply at the next one.

"Well, young man," he greeted me, "what do you want?"

I replied: "I want a half hour of your time."

"Good God," he said, in a sort of reproachful indignation, "I couldn't give it to the President of the United States."

I felt the crowd of applicants pressing behind me. I knew the man's prodigious humanity. I knew that if I could only hold them back long enough—"Mr. Hewitt," I said, "it's more important even than that. It's to save a whole people from suffering—from destruction."

He may have thought me a maniac; or it may be that the desperation of the moment sounded in my voice. He frowned intently up at me. "Who are you?"

"I'm the son of your old friend in Congress, George Q. Cannon of Utah," I said. "My father's in exile. He and his people are threatened with endless proscriptions. I want time to tell you."

His impatience had vanished. His eyes were steadily kind and interested. "Can you come to the Board of Health, in an hour? As soon as I open the meeting, I'll retire and listen to you."

I asked him for a card, to admit me to the meeting, having been stopped that morning at many doors. He gave it, nodded, and flashed his attention on the man behind me. I went out with the heady assurance that my first move had succeeded; but I went, too, with the restrained pulse of realizing that I had yet to join issue with the decisive event and do it warily.

I do not remember where I found the Board of Health in session. I recall only the dark, official board-room, the members at the table, and—as the one small spot of light and interest to me—Mr. Hewitt's white-bearded face, as an attendant opened the door to me, and the Mayor, looking up alertly, nodded across the room, and waved his hand to a chair.

As soon as he had opened the meeting, we withdrew together to a settee in some remote corner, and I began to tell him, as quickly as I could, the desperateness of the Mormon situation. "Yes," he said, "but why can't your people obey the law?"

I explained what I have been trying to explain in this narrative—that these people, following a Church which they believed to be guided by God, and regarding themselves as objects of a religious persecution, could not be brought by means of force to obey a law against conscience. I explained that I was not pleading to save their pride but to spare them useless suffering; their history showed that no proscription, short of extermination outright, could overcome their resistance; but what force could not accomplish, a little sensible diplomacy might hope to effect. No first step could be made, by them, towards a composition of their differences with the law so long as the law was administered with a hostility that provoked hostility. But if we could obtain some mitigation of the law's severity, the leaders of the Church were willing to surrender themselves to the court—such of them as had not already died of their privations or served their terms of imprisonment—and a sense of gratitude for leniency would prepare the way for a recession from their present attitude of unconquerable antagonism.

He listened gravely, knowing the situation from his own experience in Congress, and checking off the items of my argument with a nod of acceptance that came, often, before I had completed what I had to say. He asked: "Do you know President Cleveland?"

I told him that I had seen the President several times but was not known to him.

"Well," he said, "I may be able to help you indirectly. I don't care for Cleveland, and I wouldn't ask him for a favor if I were sinking. But tell me what plan you have in your mind, and I'll see if I can't aid you—through friends."

I replied that I hoped to have some man appointed as Chief Justice in Utah who should adopt a less rigorous way of adjudicating upon the cases of polygamists; but that before he was selected—or at least before he knew of his appointment—I wished to talk with him and convert him to the idea that he could begin the solution of "the Mormon question" by having the leaders of the community come into his court and accept sentences that should not be inconsistent with the sovereignty of the law but not unmerciful to the subjects of that sovereignty.

"The man you want," Mr. Hewitt said, "is here in New York—Elliot F. Sandford. He's a referee of the Supreme Court of this state—a fine man, great legal ability, courageous, of undoubted integrity. Come to me, tomorrow. I'll introduce you to him."

It was the first time that I had even heard the name of Elliot F. Sandford; and I had not the faintest notion of how best to approach him.

I did not find him in Mr. Hewitt's office, on the morrow; but the Mayor had communicated with him, and now gave me a letter of introduction to him; and I went alone to present it.

He received me in his outer office, with a manner full of kindness but non-committal. He glanced through my letter of introduction, and I tried to read him while he did it. He was not on the surface. He was a tall, dignified man, his hair turning gray—thoughtful, judicial—evidently a man who was not quick to decide. He led me into his private room, and sat down with the air of a lawyer who has been asked to take a case and who wishes first to hear all the details of the action.

I began by describing the Mormon situation as I saw it in those days: that the Mormons were growing more desperately determined in their opposition, because they believed their prosecutors were persecuting them; that the District Attorney and his assistants were harsh to the point of heartlessness, and that Judge Zane (to us, then) acted like a religious fanatic in his judicial office; that nearly every Federal official in Utah had taken a tone of bigoted opposition to the people; and that the law was detested and the government despised because of the actions of Federal "carpet-baggers."

I was prejudiced, no doubt, and partisan in my account of the state of affairs, but I did not exaggerate the facts as I saw them; I believed what I said.

I did not really reach his sympathy until I spoke of the court system in Utah—the open venire, the employment of "professional jurors"—the legal doctrine of "segregation," under which a man might be separately indicted for every day of his living in plural marriage—and the result of all this: that the pursuit of defendants and the confiscation of property had become less an enforcement of law than a profitable legal industry.

After two hours of argument and examination, I ended with an appeal to him to accept the opportunity to undertake a merciful assuagement of our misery. After so many years of failure on the part of the Federal authorities, he might have the distinction of calling into his court the Mormon leaders who had been most long and vainly sought by the law; and by sentencing them to a supportable punishment, he could begin the composition of a conflict that had gone on for half a century.

He replied with reasons that expressed a kindly unwillingness to undertake the work. It would mean the sacrifice of his professional career in New York. He would be putting himself entirely outside the progression of advancement. His friends, here, would never understand why he had done it. The affairs of Utah had little interest for them.

I saw that he was not convinced. His wife had been waiting some minutes in the outer office; he proposed that he should bring her in; and I gathered from his manner, that he expected her to pronounce against his accepting my solicitation, and so terminate our interview pleasantly, with the aid of the feminine social grace.

Mrs. Sandford, when she entered, certainly looked the very lady to do the thing with gentle skill. She was handsome, with an animated expression,

dark-eyed, dark-haired, charming in her costume, a woman of the smiling world, but maturely sincere and unaffected. I took a somewhat distracted impression of her greeting, and heard him begin to explain my proposal to her, as one hears a "silent partner" formally consulted by a man who has already made up his mind. But when I glanced at her, seated, her manner had changed. She was listening as if she were used to being consulted and knew the responsibilities of decision. She had the abstracted eye of impersonal consideration—silent—with now and then a slow, meditative glance at me.

Her first question seemed merely femininely curious as to the domestic aspects of polygamy. How did the women endure it?

I repeated a conversation I had once had with Frances Willard, who had said: "The woman's heart must ache in polygamy." To which I had made the obvious reply: "Don't women's hearts ache all over the world? Is there any condition of society in which women do not bear more than an equal share of the suffering?"

Mrs. Sandford asked me pointedly whether I was living in polygamy?

No, I was not.

Did I believe in it?

I believed that those did who practiced it.

Why didn't I practice it?

Those who practiced it believed that it had been authorized by a divine revelation. I had not received such a revelation. I did not expect to.

Our talk warmed into a very intimate discussion of the lives of the Mormon people, but I supposed that she was moved only by a curiosity to which I was accustomed—a curiosity that was not necessarily sympathetic—the curiosity one might have about the domestic life of a Mohammedan. I took advantage of her curiosity to lead up to an explanation of how the proscription of polygamy was driving young Mormons into the practice, instead of frightening them from it. And so I arrived at another recountal of the miserable condition of persecution and suffering which I had come to ask her husband help us relieve; and I made my appeal again, to them both, with something of despair, because of my failure with him, and perhaps with greater effect because of my despair. She listened thoughtfully, her hands clasped.

It did not seem that I had reached her—until she turned to him, and said unexpectedly "It seems to me that this is an opportunity—a larger opportunity than any I see here—to do a great deal of good."

He did not appear as surprised as I was. He made some joking reference to his income and asked her if she would be willing to live on a salary of—How much was the salary of the Chief Justice of Utah?

I thought it was about \$3,000 a year.

"Two hundred and fifty dollars a month," he said. "How many bonnets will that buy?"

"No," she retorted, "you can't put the blame on my millinery bill. If that's been the cause of your hesitation, I'll agree to dress as becomes the wife of a poor but upright judge."

In such a happy spirit of good-natured raillery, my petition was provisionally entertained, till I could see the President; and it is one of the curiosities of experience, as I look back upon it now, that a decision so momentous in the history of Utah owed its induction to the wisdom of a woman and was confirmed with a domestic pleasantry.

I left them after we had arrived at the tacit understanding that if President Cleveland should make the appointment, Mr. Sandford would accept it with the end in view that I had proposed. I went to report my progress, in a cipher telegram, to Salt Lake City, and I recall the peculiarly mixed satisfaction with which I regarded my work, as I walked the streets of New York after this interview. In all that city of millions, I knew, there were few if any men who were the equal of my father in the essentials of manhood; and yet, before he could enjoy the liberties of which they were so lightly unconscious, he must endure the shame of a prison. I was rejoicing because I was succeeding in getting for him a sentence that should not be ruinous! I was pleased because a prospective judge had been persuaded to be not too harsh to him!

It did not make me bitter. I realized that the peculiar faith which we had accepted was responsible for our peculiar suffering. I saw that we were working out our human destiny; and if that destiny was not of God, but merely the issue of human impulsion, still our only prospect of success would come of our bearing with experience patiently to make us strong.

When I went back to Mr. Hewitt, to tell him of my success, I consulted with him upon the best way of approaching Mr. Cleveland. And he was not encouraging. In his opinion of the President, he had, as I could see, the impatient resentment which a quick-minded, nervous, small-bodied man has for the big, slow one whose mental operations are stubbornly deliberate and leisurely. And he was obviously irritated by the President's continual assumption that he was better than his party. "He's honest," he said, "by right of original discovery of what honesty is. No one can question his honesty. But as soon as he discovers a better thing than he knew previously, he announces it as if it were the discovery of a new planet. It may have been a commonplace for a generation. That doesn't signify. He announces it with such ponderosity that the world believes it's as prodigious as his sentences!"

As for my own mission: I would have to be persistent, patient, and—lucky. "You'll have to be lucky, if you intend to persuade him to acquire any information. He's been so successful in instructing mankind that it's hard to get him to see he doesn't know all he ought to know about a public question. But he's honest and he's courageous. If you can convince him that your view is right, he'll carry but the conviction in spite of everything. In fact he'll be all the better pleased if it requires fearlessness and defiance of general sentimentality to carry it out."

He gave me a letter to Mr. William C. Whitney, then Secretary of the Navy, explaining my purpose in coming to Washington, and asking him to obtain for me an interview with President Cleveland without using Mr. Hewitt's name. Then he shook hands with me, and wished me success. "I have the faith," he said, "that is without hope."

That expressed my own feeling. The faith that was without hope!

Chapter III. Without A Country

So I came to Washington. So I entered the capital of the government that commanded my allegiance and inspired my fear. I wonder whether another American ever saw that city with such eyes of envy, of aspiration, of wistful pride, of daunted admiration. Here were all the consecrations of a nation's memories, and they thrilled me, even while they pierced me with the sense that I was not, and might well despair of ever being, a citizen of their glory. Here were the monuments of patriotism in Statuary Hall, erected to the men whose histories had been the inspiration of my boyhood; and I remember how I stood before them, conscious that I was now almost an outlaw from their communion of splendor. I remember how I saw, with an indescribable conflict of feelings, the ranked graves of the soldiers in the cemetery at Arlington, and recollected that this very ground had been taken from General Lee, that heroic opponent of Federal authority—and read the tablet, "How sleep the brave who sink to rest by all their country's wishes bless'd,"—and bowed in spirit to the nation's benediction upon the men who had upheld its power. I was awed by a prodigious sense of the majesty of that power. I saw with fear its immovability to the struggles of our handful of people. And at night, walking under the trees of Lafayette Park, with all the odors of the southern Spring among the leaves, I looked at the lighted front of the White House and realized that behind the curtains of those quiet windows sat the ruler who held the almost absolute right of life and death over our community—as if it were the palace of a Czar that I must soon enter, with a petition for clemency, which he might refuse to entertain!

When I had been in Washington, four years before, as secretary to Delegate John T. Caine of Utah, I had felt a younger assurance that our resistance would slowly wear out the Federal authority and carry us through to statehood. Four years of disaster had starved out that hope. The proposition had been established that Congress had supreme control over the territories; and there was no virtue either in our religious assumption of warrant to speak for God, or in our plea of inherent constitutional right to manage our own affairs. Thirty years earlier, my father had been elected Senator from the proposed state of Utah, and he had been rejected. In thirty

years so little progress had been made! The way that was yet to travel seemed very long and very dark.

Out of this mood of despondence I had to lift myself by an act of will. There, Washington itself helped me against itself. I made a pilgrimage of courage to its commemorations of courage, and drew an inspiration of hope from its monuments to the achievements of its past. And particularly I went to the house in which my father had lived when he had had his part in the statesman life of the capital, and animated my resolution with the thought that I must succeed in order that he might be restored in public honor.

I narrate all this personal incident of emotion in the hope that it may help to explain a success that might otherwise seem inexplicable. The Mormon Church had, for years, employed every art of intrigue and diplomacy to protect itself in Washington. I wish to make plain that it was not by any superior cunning of negotiation that my mission succeeded. I undertook the task almost without instruction; I performed it without falsehood; I had nothing in my mind but an honest loyalty for my own people, a desire to be a citizen of my native country, and a filial devotion to the one man in the world, whom I most admired.

When I delivered my letter of introduction from Mr. Hewitt to Mr. William C. Whitney, Secretary of the Navy, I found him very busy with his work in his department—carrying out the plans that established the modern American navy and entitled him to be called the "father" of it. He withdrew from the men who were discussing designs and figures at a table in his room, and sat with me before a window that looked out upon the White House and its grounds; and he listened to me, interestedly, genially, but with a thought still (as I could see) for the affairs that my arrival had interrupted. He struck me as a man who was used to having many weighty matters together on his mind, without finding his attention crowded by them all, and without being impatient in his consideration of any.

I developed with him an idea which I had been considering: that the President might not only help the Mormons by taking up their case, but might gain political prestige for the coming campaign for re-election, by adjusting the dissensions in Utah. He heard me with a twinkle. He thought an interview might be arranged. He made an appointment to see me in the afternoon and to have with him Colonel Daniel S. Lamont, the President's secretary, who was then Mr. Cleveland's political "trainer."

My meeting with Colonel Lamont, in the afternoon, began jocularly. "This," Mr. Whitney introduced me, "is the young man who has a plan to use that mooted—and booted—Mormon question to re-elect the President."

"Hardly that, Mr. Secretary," I said. "I have a plan to help my father and his colleagues to regain their citizenship. If President Cleveland's re-election is essential to it, I suppose I must submit. You know I'm a Republican."

They laughed. We sat down. And I found at once that Colonel Lamont understood the situation in Utah, thoroughly. He had often discussed it, he said, with the Church's agents in Washington. I went over the situation with him, as I had gone over it with Mr. Sandford, in careful detail. He seemed surprised at my assurance that my father and the other proscribed leaders of the Church would submit themselves to the courts if they could do so on the conditions that I proposed; I convinced him of the possibility by referring him to Mr. Richards, the Church's attorney in Washington, for a confirmation of it. I pointed out that if these leaders surrendered, President Cleveland could be made the direct beneficiary, politically, of their composition with the law.

Colonel Lamont was a small, alert man with a conciseness of speech and manner that is associated in my memory with the bristle of his red mustache cut short and hard across a decisive mouth. He radiated nervous vitality; and I understood, as I studied him, how President Cleveland, with his infinite patience for [** missing text?**) survived so well in the multitudinous duties of his office—having as his secretary a man born with the ability to cut away the non-essentials, and to pass on to Mr. Cleveland only the affairs worthy of his careful deliberation.

I was doubtful whether I should tell Colonel Lamont and Mr. Whitney of my conversation with Mr. Sandford. I decided that their considerateness entitled them to my full confidence, and I told them all—begging them, if I was indiscreet or undiplomatic, to charge the offense to my lack of experience rather than to debit it against my cause.

They passed it off with banter. It was understood that the President should not be told—and that I should not tell him—of my talk with Mr. Sandford. Colonel Lamont undertook to arrange an audience with Mr. Cleveland for me. "You had better wait," he said, "until I can approach him

with the suggestion that there's a young man here, from Utah, whom he ought to see."

I knew, then, that I was at least well started on the open road to success. I knew that if Colonel Lamont said he would help me, there would be no difficulties in my way except those that were large in the person of the President himself.

Two days later I received the expected word from Colonel Lamont, and I went to the White House as a man might go to face his own trial. I met the secretary in one of the eastern upstairs rooms of the official apartments; and after the usual crowd had passed out, he led me into the President's office—which then overlooked the Washington monument, the Potomac and the Virginia shore. Mr. Cleveland was working at his desk. Colonel Lamont introduced me by name, and added, "the young man from Utah, of whom I spoke."

The President did not look up. He was signing some papers, bending heavily over his work. It took him a moment or two to finish; then he dropped his pen, pushed aside the papers, turned awkwardly in his swivel chair and held out his hand to me. It was a cool, firm hand, and its grasp surprised me, as much as the expression of his eyes—the steady eyes of complete self-control, composure, intentness.

I had come with a prejudice against him; I was a partisan of Mr. Blaine, whom he had defeated for the Presidency; I believed Mr. Blaine to be the abler man. But there was something in Mr. Cleveland's hand and eyes to warn me that however slow-moving and even dull he might appear, the energy of a firm will compelled and controlled him. It stiffened me into instant attention.

He made some remark to Colonel Lamont to indicate that our conversation was to occupy about half an hour. He asked me to be seated in a chair at the right-hand side of his desk. He said almost challengingly: "You're the young man they want I should talk to about the Utah question."

The tone was not exactly unkind, but it was not inviting. I said, "Yes, sir."

He looked at me, as a judge might eye the suspect of circumstantial evidence. "You're the son of one of the Mormon leaders."

I admitted it.

And then he began.

He began with an account of what he had done to compose the differences in Utah. He explained and justified the appointments he had made there—appointments that had been recommended by Southern senators and representatives who, because they were Southerners, were opposed to the undue extension and arbitrary use of Federal power. He had made Caleb W. West of Kentucky governor of Utah on the recommendation of Senator Blackburn of Kentucky, my father's friend. He had made Frank H. Dyer, originally of Mississippi, United States Marshal. He had appointed a District Attorney in whom he had every confidence. He had a right to believe that these men, recommended by the statesmen of the South, would execute and adjudicate the laws in Utah according to the most lenient Southern construction of Federal rights. He dwelt upon Governor West's charitable intentions towards the Mormon leaders, went over West's efforts at pacification in accurate detail, and told of West's chagrin at his failure—with an irritation that showed how disappointed he himself was with the continued recurrence of the Mormon troubles.

I had to tell him that the situation had not improved, and his face flushed with an anger that he made no attempt to conceal. He declared that the fault must lie in our obstinate determination to hold ourselves superior to the law. He could not sympathize with our sufferings, he said, since they were self-inflicted. He admitted that he had once been opposed to the Edmunds-Tucker bill, but felt now that it was justified by the immovability of the Mormons. All palliatives had failed. The patience of Congress had been exhausted. There was no recourse, except to make statutes cutting enough to destroy the illegal practices and unlawful leadership in the Mormon community.

"Mr. President," I pleaded, "I've lived in Utah all my life. I know these people from both points of view. You know of the situation only from Federal office holders who consider it solely with regard to their official responsibility to you and to the country. Why not learn what the Mormons think?"

He replied that it was not within the province of the President—his power or his duty—to consider the mental attitude of men who were opposing the enforcement of the law.

It was an inexcusable offense against the general welfare that one community should be rising continually against the Federal authority and

occupying the time and attention of Congress with a determined recalcitrance.

For an hour, he continued, with vigor and dignity, to describe the situation as he saw it; and he chilled me to the heart with his determination to concede nothing more to a community that had refused to be placated by what he had already conceded. I listened without trying, without even wishing, to interrupt him; for I had been warned by Mr. Whitney and Colonel Lamont that it would be wise to let him deliver himself of his opinion before attempting to influence him to a milder one; and I could not contradict anything that he said, for he made no misstatements of fact.

Colonel Lamont had entered once, and had withdrawn again when he saw that Mr. Cleveland was still talking. At the end of about an hour, the President rose. "Mr. Cannon," he said, "I don't see what more I can do than has already been done. Tell your people to obey the law, as all other citizens are required to obey it, and they'll find that their fellow-citizens of this country will do full justice to their heroism and their other good qualities. If the law seems harsh, tell them that there's an easy way to avoid its cruelty by simply getting out from under its condemnation."

His manner indicated that the conference was at an end. He reached out his hand as if to drop the subject then and forever, as far as I was concerned. "Mr. President," I asked, with the composure of desperation, "do you really want to settle the Mormon question?"

He looked at me with the first gleam of humor that had shown in his eyes—and it was a humor of peculiar richness and unction. "Young man," he asked, "what have I been saying to you all this time? What have I been working for, ever since I first took up the consideration of this subject at the beginning of my term?"

"Mr. President," I replied, "if you were traveling in the West, and came to an unbridged stream with your wagon train, and saw tracks leading down into the water where you thought there was a ford, you would naturally expect to cross there, assuming that others had done so before you. But suppose that some man on the bank should say to you: 'I've watched wagon trains go in here for more than twenty years, and I've never yet seen one come out on the other side. Look over at that opposite bank. You see there are no wagon tracks there. Now, down the river a piece, is a place where I think there's a ford. I've never got anybody to try it yet, but certainly it's as

good a chance as this one!" Mr. President, what would you do? Would you attempt a crossing where there had been twenty years of failure, or would you try the other place—on the chance that it might take you over?"

He had been regarding me with slowly fading amusement that gave way to an expression of grave attention.

"I've been watching this situation for several years," I went on, "and it seems to me that there's the possibility of a just, a humane, and a final settlement of it, by getting the Mormon leaders to come voluntarily into court—and it can be done!—with the assurance that the object of the administration is to correct the community evil—not to exterminate the Mormon Church or to persecute its 'prophets,' but to secure obedience to the law and respect for the law, and to lead Utah into a worthy statehood."

I paused. He thought a moment. Then he said: "I can't talk any longer, now. Make another appointment with Lamont. I want to hear what you have to say." And he dismissed me.

Colonel Lamont told me to come back on the following afternoon; and I went away with the dubious relief of feeling that if I had not yet won my case I had, at least, succeeded in having judgment reserved. I went to work to arrange my arguments for the morrow, to make them as concise as possible and to divide them into brief chapters in case I should have as little opportunity for extended explanations as the President had been giving me. I saw that the whole matter was gloomy and oppressive to him—that his responsibility was as dark on his mind as our sufferings—and I took the hint of his amused interest, in order to work out ways of brightening the subject with anecdote and illustration.

I saw Colonel Lamont on the morrow, and he beamed a congratulation on me. "You've aroused his curiosity," he said. "You've interested him."

He had made an appointment some days ahead; and when I entered the President's office to keep that appointment, I found Mr. Cleveland at his desk, as if he had not moved in the interval, laboriously reading and signing papers as before. It gave me an impression of immovability, of patient and methodical relentlessness that was disheartening.

But as soon as he turned to me, I found him another man. He was interested, receptive, almost genial. He gave me an opportunity to cover the whole ground of my case, and I went over it step by step. He showed no emotion when I recited some of the incidents of pathetic suffering among

our people; and at first he seemed doubtful whether he should be amused by the humorous episodes that I narrated. But I did not wish merely to amuse him; I was trying to convey to his mind (without saying so) that so long as a people could suffer and laugh too, they could never be overcome by the mere reduplication of their sufferings. He looked squarely at me, with a most determined front, when I told him that the Mormons would be ground to powder before they would yield. "They can't yield," I warned him. "They're like the passengers on a train going with a mad speed down a dangerous grade. For any of them to attempt to jump is simple destruction. They can only pray to Providence to help them. But if that train were to be brought to a stop at some station where they could alight with anything like self-respect, there would be many of them glad to get off—even though the train had not arrived at its 'revealed' destination."

I do not remember—and if I did, it would be tedious to relate—the exact sequence and progression of argument in this interview and the dozen others that succeeded it. Mr. Cleveland became more and more interested in the Mormon people, their family life, their religion, and their politics. He was as painstaking in acquiring information about them as he was in performing all the other duties of his office. I might have been discouraged by the number and apparent ineffectiveness of my interviews with him, had not Colonel Lamont kept me informed of the growth of the President's good feeling and of his genuinely paternal interest in the people of Utah. It became more than a personal desire with Mr. Cleveland to benefit politically by a settlement of the Mormon troubles, if indeed he had ever had such a desire. His humanity was enlisted, his conscience appealed to.

He asked me, once, if I knew anything of Mr. Sandford, and I replied that I knew him and believed in him. He told me, at last, that he was going to appoint Mr. Sandford Chief Justice of Utah, and added significantly, "I suppose he will get in touch with the situation." I accepted this remark as a permission to confer with Mr. Sandford, and I journeyed to New York to see him and to renew the understanding I had with him.

He was appointed Chief justice on the 9th day of July, 1888, and—as the Mormon people expressed it—"the backbone of the raid was broken." On August 26, 1888, he arrived in Salt Lake City. On September 17, my father came before him in court and pleaded guilty to two indictments charging him with "unlawful cohabitation." He was fined \$450 and sentenced to the

penitentiary for one hundred and seventy-five days. His example was followed by a number of prominent Mormons, including Francis Marion Lyman, who is today the President of the Quorum of the twelve Apostles and next in rank for the Presidency. It is true that not many cases, relatively speaking, came to Justice Sandford; but the leader whom the authorities were most eager to subjugate under Federal power was judged and sentenced; and the effect, both on the country and on the Mormon people, was all that we had expected.

There are memories in a man's life that have a peculiar value. One such, to me, is the picture I have in mind of my father undergoing his penitentiary sentence, wearing his prison clothes with an unconsciousness that makes me still feel a pride in the power of the human soul to rise superior to the deformities of circumstance. Charles Wilcken (whom I have described driving us to Bountiful) was visiting him one day in the prison office, when a guard entered with his hat on. Wilcken snatched it from his head. "Never enter his presence," he said, "without taking it off." And the guard never did again.... I salute the memory. I come to it with my head bare and my back stiffened. I see in that calm face the possibilities of the human spirit. He was a man!

He spent his time, there, as he would have spent it elsewhere, writing, conferring with the agents of his authority, planning for his people. I saw he was aware that he would emerge from his imprisonment a free man, personally, but still enslaved by the conditions of the community; and I knew that he would use his freedom to free the others. I knew that he had accepted his sentence with this end in view. In plain words, I knew now—though he never said so—that he was looking toward the necessary recession from the doctrine of polygamy, and that he may have counted on the spectacle of his imprisonment to help prepare his people for a general submission to the law.

With the entry of these leaders into prison, the Mormons felt for them a warmer admiration, a deeper reverence; but it was mingled with a gratitude to the nation for the leniency of the court and an awed sense, too, of the power of the civil law. President Woodruff secretly and tentatively withdrew his necessary permission, as head of the Church, to the solemnization of any more plural marriages; and he ordered the demolition of the Endowment House in which such marriages had been chiefly

celebrated. Many of the non-Mormons, who had despaired of any solution of the troubles in Utah, now began to hope. The country had been impoverished; the Mormons had been deprived of much of their substance and financial vigor; and reasons of business prudence among the Gentiles weighed against a continuance of proscription. Some of them distrusted the motives of their own leaders more than they did the Mormon people. Some were weary of the quarrel. For humane reasons, for business reasons, for the sake of young Utah, it was argued that the persecution should end.

But in the years 1888 and 1889, thousands of newcomers arrived in Utah with a strong antagonism to the religion and the political authority of the Mormon Church; and, with the growth of Gentile population, there came a natural determination on their part to obtain control of the local governments of cities and counties. In opposing this movement, the power of the Church was again solidified. By 1889, the Gentiles had taken the city governments of Ogden and Salt Lake City, had elected members of the legislature in Salt Lake County, and had carried the passage of a Public School Bill, against the timid and secret opposition of the Church. President Cleveland had been defeated and succeeded by President Harrison; and Chief Justice Sandford had been removed and Chief Justice Zane reinstated. (He did not adjudicate with his previous rigor, however, because of the success of Justice Sandford's policy of leniency.) The Church made no move publicly to repudiate polygamy, and its silent attitude of defiance, in this regard, gave a battle cry to all its enemies.

The crisis was precipitated by a movement that had begun in the territory of Idaho, where the Mormons had been disfranchised by means of a test oath—a provision still remaining in the Idaho state constitution, but now nullified by the political power of the Mormon leaders in Salt Lake City.) A bill, known as the Cullom-Struble bill, was introduced at Washington, to do in Utah what had been done in Idaho.

The Church was then directed by President Woodruff and his two Councillors, George Q. Cannon and Joseph F. Smith. But President Woodruff was as helpless in the political world as a nun. He was a gentle, earnest old man, patiently ingenuous and simple-minded, with a faith in the guidance of Heaven that was only greater than my father's because it was unmingled with any earthly sagacity. He had the mind, and the appearance, of a country preacher, and even when he was "on the underground" he used to

do his daily "stint" of farm labor, secretly, either at night or in the very early morning. He was a successful farmer (born in Connecticut), of a Yankee shrewdness and industry. He recognized that in order to get a crop of wheat, it was necessary to do something more than trust in the Lord. But in administering the affairs of the Church, he seemed to have no such sophistication.

I can see him yet, at the meetings of the Presidency, opening his mild blue eyes in surprised horror at a report of some new danger threatening us. "My conscience! My conscience!" he would cry. "Is that so, brother!" When he was assured that it was so, he would say, resignedly: "The Lord will look after us!" And then, after a silence, turning to his First Councillor, he would ask: "What do you think we ought to do, Brother George Q.?"

The Second Councillor, Joseph F. Smith, sat at these meetings, in a saturnine reserve and silence, either nursing his concealed thought or having none. When a decision had been suggested, he was appealed to and added his assent. It always seemed to me that he was sulkily sleepy; but this impression may have come from the contrast of the First Councillor's mental alertness and the bright cheerfulness of the President—who never, to my knowledge, showed the slightest bitterness against anybody. President Woodruff believed that all the persecutions of the Mormons were due to the Devil's envy of the Lord's power as it showed itself in the establishment of the Mormon Church: and he assumed that the Gentiles did the work they were tempted to do against us, because the Holy Spirit had not yet ousted the evil from their souls. He had no fear of the ultimate triumph of the Church, because he had no fear of the ultimate triumph of God. Whenever he could escape for a day from the worldly duties of his office, he went fishing!

When the progress of the Cullom-Struble bill began to make its threatening advance, my father went secretly to Washington; and a short time afterwards, word came to me in Ogden, through the Presidency, that he wished me to arrange my business affairs for a long absence from Utah, and follow him to the capital.

I found him there, in the office of Delegate John T. Caine of Utah—the cluttered office of a busy man—and he explained, composedly, why he had sent for me. The Cullom-Struble bill had been favorably considered by the Senate Committee on Territories, and the disfranchisement of all the

Mormons of Utah seemed imminent. Every argument, political or legal, had been used against the measure, in vain. Since I, a non-polygamous Mormon, would be disfranchised if the bill became law, he thought I might be a good advocate against it. He said: "I have not appeared in the matter. None of our friends know that I am here. If it were known, it might only increase our difficulties. Say nothing of it. We have been at a disadvantage with a Republican administration because most of our prominent men are Democrats. You were so effective with the Democrats, let us see what you can do now with your own party friends."

After taking his advice, I went to see Senator Henry M. Teller, of Colorado, who was a friend of my father and of the Mormon people. He admitted that the situation was desperate. He proposed that I should speak before the committees of both houses; they might listen to me as a Republican who had no official rank in the Church and no political authority. He offered to introduce me to any of the Senators and members of Congress, but advised that I should rather go unIntroduced, without influence, and make my appeal as a private citizen.

This sounded to me depressingly like the call to lead a "forlorn hope." I reported to my father again, and was not altogether reassured by a tranquility which he seemed to be able to maintain in the face of any desperation. Other agencies of the Church had reached the end of their resources. There was no help in sight. And I went, at last, to throw our case upon the mercy of the Secretary of State, Mr. James G. Blaine, my father's friend, the friend of our people, the statesman whom I—in common with millions of other Americans—regarded with a reverence that approached idolatry.

He received me in the long room of the Secretary's apartments, standing, a striking figure in black, against the rich and heavy background of the official furnishing. He was very pale—unhealthily so—perhaps with the progress of the disease of which he was to die in so short a time. In contrast with his usual brilliancy of mind, he seemed to me, at first, depressed and quiet—with a kindly serenity of manner, at once gracious, and intimate, but masterful.

He was instantly and deeply interested in what I had to say; he seated himself—on a sofa, near the embrasure of a window—motioned me to bring a chair to his side, and heard me in an erect attitude of thoughtful

attention, re-assuring me now and then by reaching out to lay a hand on my knee when he saw from my hesitancy that I feared I might be too candid in my confidences; and the look of his eye and the touch of his hand were as if he said: "I'm your friend. Anything you may say is perfectly safe with me."

I told him of my father's imprisonment.

"It is dreadful," he said. "You shock me to the soul." He spoke of their friendship, of his admiration for my father's work in Congress, of his personal regard for the man himself. "Of course," he said, "I have no sympathy with your peculiar marriage system, and I'll never be able to understand how a man like your father could enter it." I reminded him that my father believed it a system revealed and ordained by God. "I know," he replied. "That is what they say. And I suppose they have scriptural warrant for polygamy. But it is a thing that would be 'more honored in the breach than the observance.' Tell me, is the rule of the Church absolute over you younger men?"

I told him that it was, in respect of political control; that the situation in Utah had placed us where there was no possibility of compromise; that we must be of, with, and for our own people, or against them.

He asked me whether I intended to address myself to the President. I replied, "Not yet"—since the bills were still pending in Congress and were not being urged from the White House. He seemed pleased. As I afterwards learned, there was a strong rivalry between the President and the Secretary of State; and though I knew that Mr. Blaine's interest in Utah was almost wholly one of responsible statesmanship, warmed by a personal kindness for our people, still it remains a fact that he expected the support of the Utah Republican delegation in the convention of 1892, and that it had been promised him by national Republicans who were now laboring at Washington in our behalf.

He encouraged me with an almost intimate emotion of pity and friendliness; and I felt the largeness of the man as much in the warmth of his humanity as in the breadth of his view. He approved, of my appearing before the committees. "Go and tell them your own story, yourself," he said. "Make your plea independently of all the formal and official arguments that have been used. These have been exhausted. They have been ineffective. We must use the personal and"—he added it significantly—"the political

appeal. If you find difficulty, let me know. I shall not be idle in your behalf. If you meet any insuperable obstacle, I'll see if I can't help you run over it."

He rose to terminate the interview. He looked at me with a smile. "'The Lord giveth,'" he said, "'and the Lord taketh away.' Wouldn't it be possible for your people to find some way—without disobedience to the commands of God—to bring yourselves into harmony with the law and institutions of this country? Believe me, it's not possible for any people as weak in numbers as yours, to set themselves up as superior to the majesty of a nation like this. We may succeed, this time, in preventing your disfranchisement; but nothing permanent can be done until you 'get into line.'"

He accompanied me toward the door, giving me friendly messages of regard to deliver to my father. He put his arm around my shoulders, at last, and said: "You may tell your father for me—as I tell you, young man—you shall not be harmed, this time."

I parted from him with an almost speechless relief and gratitude, and hurried to my father with the news of hope. I had not told Mr. Blaine that he was in Washington; for, without feeling that he saw himself marked by his imprisonment, I was aware that his friends might pity him for it, if they did not condemn him; and neither sentiment (I knew) was he of the personal temper to encounter.

I told him every detail of my talk with the Secretary of State; he heard me, silently, meditatively. When I concluded with Mr. Blaine's assurance that we should not be harmed "this time," but must "get into line," he looked up at me with a significant steadiness of eye. "President Woodruff," he said, "has been praying.... He thinks he sees some light.... You are authorized to say that something will be done."

I asked no question. His gaze conveyed assurance, but forbade inquiry. I had to understand, without being told, that the Church was preparing to concede a recession from the doctrine of polygamy.

With this assurance to aid me, I began the work of reaching the committees—warm work in a Washington summer, but hopeful in the new prospect of a lasting success. The bill for disfranchisement had been reported out by the committees and was on the calendar for passage. It was necessary to have the question reopened before the committees for argument. In soliciting the opportunity of a re-hearing, from the Chairman

of the Senate Committee, Senator Orville H. Platt, of Connecticut, I made my argument in a private conversation with him in his rooms in the Arlington Hotel. When I had done, he chewed his cigar a moment, looked at me quizzically, and asked: "Do you know Abbot R. Heywood, of Ogden?"—and, as he asked it, he drew a letter from his pocket.

I replied that I knew Mr. Heywood well.

"I have a letter here from him, on this same subject," he said. "Tell me. What kind of man is he? And to what extent do you think I ought to depend on his views?"

I was never more tempted in my life to tell a lie. I knew Mr. Heywood to be a man of truth and high ideals; but he had been Chairman of the Anti-Church party in Weber County, and he had been one of the Gentile leaders for several years. I knew the intensity of his feelings against the rule of the Church in politics and the Mormon attitude of defiance to the law. I was sure that he would be strong in his demand for the passage of the disfranchisement act.

I hesitated a moment. Senator Platt was watching me. Then, with a resolve that our cause must stand or fall by the truth, I said: "Mr. Heywood is a man of integrity. I think he would write exactly what he believed to be true. But you know, Senator, intense feeling in politics sometimes sways a man's judgment. In view of Mr. Heywood's long controversy, I hope that if he has taken a view adverse to mine, his antagonism may be mitigated in your mind by your own knowledge of human feelings."

Senator Platt held out the letter to me. "You've won your motion for a rehearing," he said. "I think we may be able to get the truth out of you. We have not always had it in this Utah question. Read that."

I read it. It was Mr. Heywood's solemn protest, as an American citizen—on behalf of himself and the other members of the perfunctory Republican Committee of his County—against the wholesale disfranchisement of the Mormons, on the ground that it would only delay a progressive American settlement of the territory!

Then I went to the other members of the Senate committee privately, and told them that the Mormon Church was about to make a concession concerning its doctrine of polygamy. I told them so in confidence, pointing out the necessity of secrecy, since to make public the news of such a recession, in advance, would be to prevent the Church from authorizing it.

Not one of the Senators betrayed the trust. I was less confidential with the members of the House Committee, because I realized that nothing could be done against us unless the bill passed the Senate. But I gave the news of the Church's reconsideration of its attitude to Colonel G. W. R. Dorsey, the member from Nebraska, and he used his influence to get me a rehearing from the House Committee. Finally I appeared once before each committee, and argued our case at length. The bills did not become law. Aided by Mr. Blaine's powerful friendship, we were saved "for the time."

It remained to make our safety permanent, and I took train for Utah, on my father's counsel, to see President Woodruff. I had given my word that "something was to be done." I went to plead that it should be done—and done speedily.

Chapter IV. The Manifesto

I found him in the office of the Presidency—in the little one-story house that I have described in my early interview with Joseph F Smith—and he received me with the gracious affectionateness of a fatherly old man. He asked me, almost at once: "What are they going to do to us in Washington?"

"President Woodruff," I replied, "we've been spared—temporarily. The axe will not fall for a few moments. It depends on ourselves, now, whether it shall fall or not."

"Come into the other room," he said, under his voice, in an eager confidentiality, like a child with a secret. And pattering along ahead of me, quick on his feet, he signed to me to follow him—with little nods and beckonings—into the retiring room where I had talked with Smith.

There he sat down, on the edge of his chair, his elbows supported on the broad arms, leaning forward, partly bowed with his age, and partly with an intentness of curiosity that glittered innocently in his guileless eyes. A dear old character! Sweet in his sentiments, sweet in his language, sweet in the expression of his face.

I told him, in detail, of the events in Washington, and of the men who had helped us in them—particularly of Mr. Blaine, who was apparently a new character in his experience, and of Senator Orville H. Platt, in whom he discovered an almost neighborly interest when I told him that the Senator came from Connecticut, his native state. I warned him that the passage of the measure of disfranchisement had been no more than retarded. I pointed out the fatal consequences for the community if the bill should ever become law—the fatal consequences for the leaders of the Church if the non-polygamous Mormons, deprived of their votes, were ever left unable to control the administration of local government. I repeated the promise that my father had authorized me to carry to the Senators and Congressmen who still had the Cullom-Struble bill in hand; and I emphasized the fact that because of this promise the bill had been held back—with the certainty that it would never become law if we met the nation half way.

I was watching him to see if he sensed the point I wished him to get. When I touched the matter of my father's promise, his face became softly reverent; and when I had done—looking at me without a trace of cunning in his benignity, with an expression, rather, of exalted innocence and faith,—he said: "Brother Frank, I have been making it a matter of prayer. I have wrestled mightily with the Lord. And I think I see some light."

In order that there might be no misunderstanding, I put into plainer words what I meant and what the prominent men in Washington had been led to look for: since, by a "revelation" of the Church we were ordered to give obedience to the government of the nation, and since we had exhausted all our legal defenses, it was hoped that the Prophet, Seer, and Revelator of the Church would find a way, under the guidance of God, to bring our people into conformity with the law.

As he accepted this calmly, I added: "To be very plain with you, President Woodruff, our friends expect, and the country will insist, that the Church shall yield the practice of plural marriage."

His eyelids quivered a little, but he showed no other sign of flinching. I saw that the counsels of his advisers and the comfort that he had derived from his prayers had prepared him for an immolation that was more serious to him than any personal sacrifice that he could make. He said sadly: "I had hoped we wouldn't have to meet this trouble this way. You know what it means to our people. I had hoped that the Lord might open the minds of the people of this nation to the truth, so that they might be converted to the everlasting covenant. Our prophets have suffered like those of old, and I thought that the persecutions of Zion were enough—that they would bring some other reward than this." If I had been the bearer of a new edict of proscription, I think he could not have been more profoundly oppressed by the sense of his responsibility. "Did your father tell you," he asked, "that I had been seeking the mind of the Lord?"

I replied that he had.

He reflected silently. "I shall talk with you again about it," he said, at last. "I hope the Lord will make the way plain for his people."

I do not wish to idealize the polygamous relation—but in monogamy a man is not persecuted for his marriage, and sometimes he does not appreciate the tie. In polygamy, the men and women alike had been compelled to suffer on its account by the grim trials of the life itself and by

the hatred of all civilization arrayed against it. They had grown to value their marriage system by what it had cost them. They had been driven by the contempt of the world to argue for its sanctity, to live up to their declarations, and to raise it in their esteem to what it professed to be, the celestial order that prevailed in the Heavens! I knew, as well as President Woodruff did, the wrench it would give their hearts to have to abandon, at last, what they had so long suffered for.

In the days of anxious waiting that followed, I saw Joseph F. Smith and sounded him for any hint of progress. He said: "I'm sure I don't know what can be done. Your father talked with President Woodruff and me before he went to Washington, but I'm sure I can't see how we can do anything." When my father returned home, I went to him many times—without however learning anything definite. I knew that the men in Washington would demand some tangible evidence of our good faith before Congress should reconvene; and I repeatedly urged the necessity of action.

At length he sent me word, in Ogden, that President Woodruff wished to confer with me, and he suggested that it would be permissible for me to speak my opinions freely. I hastened to Salt Lake City, to the offices of the Presidency. President Woodruff took me into a private room and read me his "manifesto."

It was the same that was issued on September 24, 1890, and ratified by a General Conference of the Mormon Church on October 6, following. It was the proclamation that freed the oppressed of Utah; for, by the subsequent "covenant"—and its acceptance by the Federal government—the nation did but confirm their freedom and accord them their constitutional rights. Here, shaking in the hand of age, was a sheet of paper by which the future of a half million people was to be directed; and that simple old man was to speak through it, to them, with the awful authority of the voice of God.

He told me he had written it himself, and it certainly appeared to me to be in his handwriting. Its authorship has since been variously attributed. Some of the present-day polygamists say that it was I who wrote it. Chas. W. Penrose and George Reynolds have claimed that they edited it. I presume that as Mormons, "in good standing," believing in the inspiration of the Prophet, they appreciate the blasphemy of their claim!

I found it disappointingly mild. It denied that the Church had been solemnizing any plural marriages of late, and advised the faithful "to refrain

from contracting any marriages forbidden by the law of the land." In spite of this mildness, President Woodruff asked me whether I thought the Mormons would support the revelation—whether they would accept it.

I replied that there could be no proper anxiety on that point. The majority of the Mormon people were ready for such a message. It might be very much stronger without arousing resistance. With the exception of the comparatively few men and women who were living in polygamy, the community would accept it gratefully. Rather, I made bold to say, my anxiety was as to whether the nation would believe that such an equivocally-worded document meant an absolute recession from the practice of plural marriage.

It was plain that his advisers had not pointed out this danger to him. He asked me how I thought the nation would take it.

I asked him, point blank, whether it meant an absolute recession from polygamy.

He answered that it did.

Then (I said) with such an interpretation of it, and a formal and public acceptance of it by the Church authorities, I did not doubt that we could convince the nation of its sufficiency. I reminded him—as I am now glad to remember—that the word of the Mormon people had passed current in the political and commercial circles of the country; that I had several times been the bearer of messages from them to prominent men; that we had been taken on faith and the faith had been always vindicated. Finally, in order that I might carry away no misapprehension, nor convey any, I asked him if it was the intention of the manifesto to inhibit any further plural marriage living.

He answered, quaintly: "Why, of course, Frank—because that's what they've been persecuting us for." There was not even a shrewdness in his voice when he added: "You know they didn't get our brethren in prison for polygamy, but for living with their plural wives."

Perhaps no other man in Utah could have said such a thing without sarcasm. The fact was that the United States authorities had been practically unable to prove a case of polygamy (which was a felony) because the marriage records were concealed by the Church; but they could prove plural marriage living (a mere misdemeanor) by repute and circumstance. It was

part of President Woodruff's unworldliness that he did not see the satire of his words; and I was the more convinced of his good faith.

I was convinced also, by several of his remarks, that he had consulted with the Church's attorney, Mr. Franklin S. Richards; and while I trusted the President's unworldly faith, I trusted more the sagacity of his more worldly advisers. I began to see, with a sure hope, the beginning of the end of all our miseries.

Some days later I was summoned to attend a meeting of the Church authorities in the President's offices; and I knew that the test had come. The Church was governed by the Presidency, composed of President Woodruff and his two Councillor's, with the Quorum of the Twelve Apostles, the Presidents of Seventies, and the presiding Bishopric, composed of three members. These quorums aggregate twenty-five men; and to their number may be added the Chief Patriarch of the Church, making a body of twenty-six general authorities—the Hierarchy. It was from these latter men, polygamists and (I feared) parochial in their ignorance of the nation and their trust in the protection of their followers—it was from them (and the other practicers of polygamy) that any opposition would come to the acceptance and publication of the manifesto.

They met—something less than a score of them, with two or three of their most trusted advisers—in one of the general offices of the Presidency, sitting in leather chairs along its walls, with a sort of central skylight illuminating subduedly the anxiety of their silent faces. President Woodruff and his two Councillor's entered to them; and this insignificant-looking apartment—of such tremendous community significance, because of the memories of its past—seemed to take on the gravity of another momentous crisis in the destiny of its people. The portraits in oils of the dead presidents, martyrs, and prophets of the Church, looked down on us from the facade of a little gallery, and caught my eyes almost hypnotically with the imperturbability of their gaze. No word from them! In the midst of the broken utterance of emotion—when the tears were wet on faces to whose manliness tears were the very sweat of martyrdom—I saw those immovable countenances as placid as the features of the dead.

President Woodruff stood under them, so old and other-worldly, that he seemed already of their circle rather than ours; and he spoke in a voice of feeling for us, but with a simple and courageous finality that sounded the

very note of fate. He had called the brethren together (he said) to submit a decision to their consideration, and he desired from them an expression of their willingness to accept and abide by it. He knew what a trial it would be to the "whole household of Israel." "We have sought," he said, "to live our religion—to harm no one—to perform our mission in this world for the salvation of the living and the dead. We have obeyed the principle of celestial marriage because it came to us from God. We have suffered under the rage of the wicked; we were driven from our homes into the desert; our prophets have been slain, our holy ones persecuted—and it did seem to me that we were entitled to the constitutional protection of the courts in the practice of our religion."

But the courts had decided "against us." The great men of the nation were determined to show us no mercy. Legislation was impending that would put us "in the power of the wicked." Brother George Q. Cannon, Brother John T. Caine, and the other brethren who had been in Washington, had found that the situation of the Church was critical. Brother Franklin S. Richards had advised him that our last legal defense had fallen. "In broken and contrite spirit" he had sought the will of the Lord, and the Holy Spirit had revealed to him that it was necessary for the Church to relinquish the practice of that principle for which the brethren had been willing to lay down their lives.

A sort of ghastly stillness accepted what he said as a confirmation of the worst fears of the men who had evidently come there with some knowledge of what they were to hear. I glanced at the faces of those opposite me. A set and staring pallor held them motionless. I was conscious of a chill of heart that seemed communicated to me from them. My brother Abraham was sitting beside me; I knew his deep affection for his family; I knew with what a clutch of misery this edict of separation was crushing his hope; I felt myself growing as pale and tense as he.

The silence was broken by President Woodruff asking one of the brethren to read the manifesto. When it was concluded, he said: "The matter is now before you. I want you to speak as the Spirit moves you."

There was no reply, except a sort of general gasp of low-voiced interjections and a little buzz of whisperings that sounded like emotion taking its breath. He called on my father to speak. The First Councillor rose to make a statesmanlike review of the crisis; and I understood that with his

usual diplomacy he was putting aside from him the authority of leadership until he could see whether an opposition was to develop that should make it necessary for him to front it.

That opposition made a rustle of stirring in the pause that followed. I saw it in the changed expressions of some of the faces. Several of the men—including my brother Abraham, and Joseph F. Smith—asked whether the manifesto meant a cessation of plural marriages: whether no more such marriages were to be allowed.

President Woodruff answered that it did; that the Lord had taken back the principle from the children of men and that we would have no power to restore it.

Then they asked whether it meant a cessation of plural marriage living—whether they would be required to separate from the wives whom they had taken in the holy covenant.

He answered, firmly, that it did; that the brethren in Washington found it imperative; that it was the will of the Lord; that we must submit.

I saw their faces flush and then slowly pale again—and the storm broke. One after another they rose and protested, hoarsely, in the voice of tears, that they were willing to suffer "persecution unto death" rather than to violate the covenants which they had made "in holy places" with the women who had trusted them. One after another they offered themselves for any sacrifice but this betrayal of the women and children to whom they owed an everlasting faith. And a manlier lot of men never spoke in a manlier way. Not a petty word was uttered. Their thought was not for themselves. Their grief was not selfish. Their protests had a dignity in pathos that shook me in spite of myself.

When they had done, my father rose again with a face that seemed to bear the marks of their grief while it repressed his own. He dwelt anew on the long efforts of our attorney and our friends in Congress to resist what we believed to be unconstitutional measures to repress our practice of a religious faith. But we were citizens of a nation. We were required to obey its laws. And when we found, by the highest judicial interpretation of statute and constitution, that we were without grounds for our plea of religious immunity, we had but the alternative either of defying the power of the whole nation or of submitting ourselves to its authority. For his part he was willing to do the will of the Lord. And since the Prophet of God,

after a long season of prayer, had submitted this revelation as the will of the Lord, he was ready for the sacrifice. The leaders of the Church had no right to think of themselves. They must remember how loyally the people had sacrificed their substance and risked their safety to guard their brethren who were living in plural marriage. Those brethren must not be ungrateful now. They must not now refuse to make their sacrifice, in answer to the sacrifices that had been made for them so often. The people had long protected them. Now they must protect the people.

Under the commanding persuasion of his voice I saw the determination of their resistance begin to falter and relax. President Woodruff called on me to speak, and I felt that it was my duty to represent the needs, the hopes, and the opportunities of the hundreds of thousands of the undistinguished mass who would make no decision for themselves, but whose fate was trembling on the event. I rose to speak for them, with my hand on my brother's shoulder, knowing that my every word would be a stab at his heart, and hoping that my grasp might be a touch of sympathy to him—knowing that I must urge these elders to sacrifice themselves and their families for a redemption of which I was to share the benefits—but sustained by the remembrance of the solemn pledge which I had been authorized to give in Washington to honorable men who had trusted in our honor—and strengthened by the thought of all those dear, to me, whose sufferings would be multiplied, with no hope of relief, if the few would not now yield to save the many.

I described the situation as I had seen it in Washington and as I knew it in Utah from a more intimate personal experience than these leaders could have of the sufferings of the people. I told them how cheerfully and bravely the non-polygamists had borne the brunt of protecting them in the practice of their faith, and yet how patient a hope had been always with us that the final demand might not be made upon us for the sacrifice of a citizenship which we valued more because it shielded them than because it armed us.

Encouraged by the face of President Woodruff, I reminded them that the sorrow and the parting, at which they rebelled, could only be for a little breath of time, according to their faith; that by the celestial covenant, into which they had entered, they were assured that they should have their wives and children with them throughout the endless ages of eternity. The people had given much to them. Surely they could yield the domestic happinesses

of the little remaining day of life in this world, in order to save and prosper those who were not to enjoy their supreme exaltation of beatitude in the world to come.

I had felt my brother strong under my hand. He rose, when I concluded. And with a manful brevity he replied that he submitted because it was the will of the Lord, and because he had no right to interpose his selfish love and yearnings between the people of God and their worldly opportunity. The others followed. Not one referred to the equivocal language of the manifesto or questioned it. They accepted it—as it was then and afterwards interpreted—as a revelation from God made through the Prophet of the Church; and they subscribed to it as a solemn covenant, before God, with the people of the nation.

Joseph F. Smith was one of the last to speak. With a face like wax, his hands outstretched, in an intensity of passion that seemed as if it must sweep the assembly, he declared that he had covenanted, at the altar of God's house, in the presence of his Father, to cherish the wives and children whom the Lord had given him. They were more to him than life. They were dearer to him than happiness. He would rather choose to stand, with them, alone—persecuted—proscribed—outlawed—to wait until God in His anger should break the nation with His avenging stroke. But—

He dropped his arms. He seemed to shrink in his commanding stature like a man stricken with a paralysis of despair. The tears came to the pained constriction of his eyelids.

"I have never disobeyed a revelation from God," he said. "I cannot—I dare not—now."

He announced—with his head up, though his body swayed—that he would accept and abide by the revelation. When he sank in his chair and covered his face with his hands, there was a gasp of sympathy and relief, as if we had been hearing the pain of a man in agony. And my heart gave a great leap; for, in these supreme moments of feeling, things come to us that are larger than our knowledge, more splendid than our hopes; and I saw, as if in the blinding glisten of the tears in my eyes, a radiant vision of our future, an unselfish people freed from a burden of persecution, a nation's forgiveness born, a grateful state created. I saw it—and I looked at Smith and loved him for it. I knew then, as I know now, that he and those others were at this moment sincere. I knew that they had relinquished what was

more dear to them than the breath of life. I knew the appalling significance, to them, of the promise which they were making to the nation. And in all the degraded after-years, when so many of them were guilty of breach of covenant and base violation of trust, I tried never to forget that in the hour of their greatest trial, they had sacrificed themselves for their people; they had suffered for the happiness of others; they had said, sincerely: "Not my will, O Lord, but Thine, be done!"

Chapter V. On the Road to Freedom

In any discussion of the public affairs that make the subject matter of this narrative, a line of discrimination must be drawn at the year 1890. In that year the Church began a progressive course of submission to the civil law, and the nation received each act of surrender with forgiveness. The previous defiance's of the Mormon people ceased to give grounds for a complaint against them. The old harshnesses of the Federal government were canceled by the new generosity of a placated nation. And neither party to the present strife in Utah should go back, beyond the period of this composition, to dig up, from the past, its buried wrongs.

In relating, here, some of the events of 1888 and 1889, I have tried neither to justify the Mormons nor to defend their prosecutors. I have wished merely to make clear the situation in Utah, and to introduce to you, in advance, some of the leaders of the distracted community, so that you might understand the conditions from which the Mormons escaped by giving their covenant to the nation and be able to judge of the obligations and responsibilities of the men who gave it.

I, have described the promulgation and acceptance of "the manifesto" with such circumstance and detail, because of what has since occurred in Utah. Let me add that some two weeks later the General Conference of the Church endorsed the President's pronouncement as "authoritative and binding." And let me point out that it was the first and only law of the Mormon Church ever so sustained by triple sanctities—"revealed" as a command from God, accepted by the prophets in solemn fraternity assembled, and ratified by the vote of the entire "congregation of Israel" before it was declared to be binding upon men.

At first, because of the somewhat indefinite promise of the message itself, many of the non-Mormons of Utah remained suspicious and in doubt of it. But it was recognized by Judge Zane, in court—on the day following the close of the Conference—as an official declaration, "honest and sincere." The newspapers throughout the whole country so received it. The Church authorities sent assurances to Washington that convinced the statesmen, there, of the completeness and finality of the submission. And

the good faith of the covenant was at last admitted by the non-Mormons of Utah and endorsed by their trust. I do not know of any change in human affairs dependent on human will—more speedy, effective and comprehensive than this recession. Within the space of a few days a revolution was completed that had been sought by the power of our nation and of the civilized world, for a generation, with stripes and imprisonment, death, confiscation and the ostracism of the country's public contempt. It had been obtained, I knew, chiefly by the sagacity of the First Councillor using the pressure of circumstances to enforce the persuasions of diplomacy. I felt that a miracle of change had been brought to pass. He had placed us on the road to freedom; and I trusted his guidance to lead us to our goal.

That goal, to me personally, was the honor of American citizenship—an ambition that had been an obsession with me from my earliest youth. I had never heard a man on a railroad train talk of how he was going to vote in a national election, without feeling a pang of shamed envy; for my lack of citizenship seemed a mark of inferiority. The patriotic reading of my boyhood had made the American republic, to me, the noblest administration of freemen in the history of government and the exercise of its franchise literally the highest dignity of human privilege. I would have been as proud—I was as proud when the day came—to vote for the President of the United States as he could have been to take his oath of office. I do not believe that any poor serf, escaped from the tyranny of Russia, ever saw the American shore with a more grateful eye than I looked to the prospect of being admitted, with the citizens of Utah, into the enfranchisement of the Republic.

But it was evident that the Church's recession from polygamy would not be enough to free us, so long as its control of politics remained. Its other practices had flourished and been sheltered under its political power; and now that the Church had ceased to be a lawbreaker, our friends in Washington were properly expecting that it would cease to interfere with its members in the exercise of their citizenship. For this reason, when I was notified that I had been selected as a member of the advisory committee of the People's Party (the Church party), I went at once to my father and told him that I would not take the place; that I intended to work, personally, and through my newspaper, for the political division of Utah on the lines of the national parties. He held that until Gentile solidarity was dissolved, it would

be dangerous to divide the allegiance of the Mormons; but he did not stand against my protest; he contented himself—diplomatically—with sending me to consult with President Woodruff and Joseph F. Smith.

To them, I argued that the political emancipation of the Mormon people from ecclesiastical direction was as necessary as the recession from polygamy had been. We must be set free to perform our duty to the country solely as citizens of the country, before we could expect to be given the right to perform it at all. And, for my part, the only action I would consent to take as a member of the advisory committee of the People's Party would be to vote for the dissolution of the party.

President Woodruff referred me to my father, and advised me to be guided by him. Joseph F. Smith urged that a division of the Mormon people on national party lines would enable the Liberal (the Gentile) party to march in between. I argued in reply that we must divide at some time, and the sooner the better, since every year was increasing the Gentile population. They would never split as long as we remained solid. And if we were ever to be permitted to nationalize ourselves, it would not be until we had dissolved the party organizations whose very names were a proof of the continued rule of the Church in politics.

When he had no more arguments to advance, he gave a reluctant assent to mine. I reported back to my father and he approved of my plans. He asked me humorously with whom I expected to affiliate, since he knew of no one who was likely to go with me; but I could see that he was pleased with my independence and hoped I might succeed in doing something to break the deadlock-grapple of Mormon and Gentile that held Utah apart from the rest of the country in politics.

His humorous idea of my undertaking gave its color to my beginnings. It was rather a spirited adventure, as I look back upon it now. When we organized a Republican Club at Ogden, my intimate friend, Ben E. Rich, and another friend named Joseph Belnap, were the only Mormons, so far as I know, who joined me in becoming members. Outside of us three, I did not know of another Mormon Republican in the whole territory.

Indeed, the status of the Mormon people, in their fancied relation to the two great parties of the country, was almost identical with that of the people of the South after the Civil War. Practically every Mormon believed himself to be a Democrat. Among the young men of the Church there had been

occasional attempts to form Democratic Clubs. Mr. John T. Caine, delegate in Congress from the territory, was a Democrat. My father had sat on the Democratic side of the House. Almost all the men who had braved the sentiments of their own states, to speak for us in Congress, had been Democrats. And, of course, the administration of the laws that had been so cruel to the feelings of the Mormons had been in Republican hands.

Two years earlier, in Ogden, I had spoken in a meeting of Republicans that had been called to rejoice over the election of Benjamin Harrison to the Presidency; and I was still being taunted by my Mormon friends with having clasped hands with "the persecutors of the Prophets." When I came out, now, as an advocate of Republicanism, I was met everywhere with this charge—that I had joined the enemies of the Church, that I was assisting the persecutors of my father. The fact that my father approved of what I was doing, relieved the seriousness of the situation for me; and the humorous assistance of Ben Rich in our political evangelism gave a secret chuckle to many of the incidents of our campaign.

We went from town to town, from district to district, up the mountain valleys, across the plains, into mining camps and farming communities—using the meeting-houses, the school-rooms, the town halls—taking the afternoon to coax the tired workers of the fields or of the mines to come and hear us in the evening, and watching them fall asleep in the light of our borrowed kerosene lamps while we talked. They came eagerly. Indeed, my own ambition for citizenship—for a right to participate in the affairs of the nation—was probably no keener than theirs; and they had an innocent curiosity about the questions of national politics, of which they had never before been invited to know anything. They listened almost devoutly.

"Brethren and sisters," a bishop exhorted them at a meeting in which one of our party was to speak, "we have come to listen to this man, and I hope we will be guided in all our reflections by the Spirit of God and that we will do nothing to offend that Spirit. Let there be no commotion, no whispering, and, above all, no hand clapping."

In a life that had as few diversions as theirs, a political meeting was an exciting event. The whole family came, and the mothers brought their babies. Surely in no other American community did politics ever have such a homely and serious consideration. Certainly no other community would

have so quickly understood the theories of the two parties or accepted them so implicitly.

But it was all theory! I recognize, now, that I preached a Republicanism that was an ideal of what it should be, rather than any modern faith of the "practical politician." I had gathered it from my reading, from hearing the speeches in Congress, from sympathetic conferences with the great men who were responsible for the dogmas of the party; and every assurance of grace that their ability could give and my credulity accept, I proclaimed religiously as a political salvation to our people. I built up an ideal, and then judged the party thereafter according to the measure of that ideal. When I found that some of the charges against the Republican party were true—charges which I had indignantly repelled—I was as shocked as any pious worshipper who ever found that his idol had feet of clay. Our people, having accepted the faith with as simple a hope as it was offered, were as easily turned from it when they found that it was false. The political moods of Utah, for its first few years of statehood, were a puzzle to the "practical" leaders of the parties; but to us who understood the impulses of honesty that moved the changes, things were as clear as they were encouraging.

During the previous summer in Washington, I had met General James S. Clarkson, then president of the National League of Republican Clubs; and now, on his invitation, in the Spring of 1891, Rich and I went to Louisville to speak before the national convention of the league. Through the kindness of General Clarkson, I was given the official recognition of a perfunctory place on the executive committee of the league's national committee, and came into touch with many of the party leaders. It was about this time, I imagine, that they conceived the idea of using the gratitude of the Mormons in order to carry Utah and the surrounding states in which the Mormon vote might constitute a balance of political power. I know that the idea was old and established when I came upon it, in 1894, during the campaign for statehood. As I also found, still later, the Republican leaders and the business interests with which they were in relation, had their eyes on a distant prospect of fabulous financial schemes in which the secret funds of the Church were to help in the building of railroads and the promoting of other enterprises of associated capital. But at the time of which I am writing, I had not had sufficient experience to suspect the motives of the men who encouraged our work in Utah; and I accepted in good faith their

public declarations that the sole aim of the party was to serve the needs of the people of the United States—and therefore of the people of Utah!

It seemed to me that such a noble principle should win the support of Mormon and Gentile alike, and it was on this principle that I appealed for the support of both. I was so sure of winning with it that I resented and fought against the aid of the Church that came to us as our campaign succeeded.

The People's Party (the Church Party) had been dissolved (June, 1891) by the formal action of the executive committee, under the direct instruction of the leaders of the Church. The tendency was for its members to organize themselves immediately as a Democratic party. They were led by such brilliant and trusted defenders of the Church as Franklin S. Richards, Chas. C. Richards, Wm. H. King, James H. Moyle, Brigham H. Roberts and Apostle Moses Thatcher; and a group of abler advocates could not have been found in any state in the Union. It was against the sentiment of the Mormon people, vivified by such inspiring Democracy as these men taught, that our little organization of Republicans had to make headway; and an anxiety began to show itself among the Church authorities for a less unequal division, and consequently a greater appearance of political independence, among the faithful.

Apostle John Henry Smith came out as a Republican stump speaker in rivalry with Moses Thatcher, the Democratic Prophet. Joseph F. Smith announced himself a Republican descendant of Whigs. Apostle Francis Marion Lyman, in his religious ministrations, counselled leading brethren to withhold themselves from the Democratic party unless they had gone too far to retreat. Men of ecclesiastical office in various parts of the territory—who were regarded as being safe in their wisdom and fidelity—were urged to hold themselves and their influence in reserve for such use on either side of politics as the future might demand.

Against this ecclesiastical direction of the people's choice, I objected again and again to the Presidency, and my objections seemed to meet with acquiescence. It required no prescience on my part to foresee that the growing dislike and distrust of Moses Thatcher at Church headquarters would lead to a strife in the Church that might be carried into our politics; and I knew how small would be the hope of preserving any political independence, if once it were involved in the intrigues of priests and their

rivalries for a supremacy of influence among the people. I was resolved that not even a Church, ruling by "divine right," should interpose between my country and my franchise; and an encroachment that I would not permit upon my own freedom, I would not help to inflict upon others.

The men with whom I had been working proposed me as the candidate for Congress of the new Utah Republicans; and I was supported by a strong delegation from my own country and from other parts of the territory; but I found that I was not "satisfactory" to some of the Mormon leaders, and in the convention (1892) Apostle John Henry Smith and my cousin George M. Cannon led in an attempt to nominate Judge Chas. Bennett, a Gentile lawyer. After a bitter fight of two days and nights, we carried the convention against them, and I was nominated.

The Democrats selected, as their candidate, one of the strongest characters in the territory, Joseph L. Rawlins. He was the son of a Mormon bishop, but he had left the Church immediately upon reaching manhood. He was a great lawyer, a staunch Democrat, and wonderfully popular. There followed one of the swiftest and most exciting campaigns ever seen in Utah. The whole people rose to it with enthusiasm. Our party chairman, Chas. Crane, had a genius for organization; our speakers drew crowded meetings; and though charges of Church influence were made by both sides, the question of religion was no longer the one that divided Utah.

We were getting on famously, when an incident occurred that was at once disastrous and salutary. While I was away from headquarters, stumping the districts, Chairman Crane (who was a Gentile), Ben Rich and Joseph F. Smith, issued a pamphlet in Republican behalf called "Nuggets of Truth." It gave a picture of Joseph Smith, the original Prophet, on the first page and a picture of me on the last one. (They issued also a certificate, obtained by Joseph F. Smith and given out by him, that I was a Mormon "in good standing.") As soon as I heard of the matter, I wired Chairman Crane that unless the pamphlet were immediately withdrawn, I should return to Salt Lake City and publicly denounce such methods. It was withdrawn, but the damage was done, I was defeated, as I deserved to be—though I was the innocent victim of the atrocity—and Mr. Rawlins was elected.

The campaign proved, however, that if the Church leaders would only keep their hands off, there was ample strength in either party to make a presentation of national issues of sufficient appeal to divide the people on

party lines; and it was evident that the people would choose the party that made the best showing of principles and candidates. "Nuggets of Truth" left us with a nasty sense that at no hour were we assured of safety from ecclesiastical interference—or the nefarious attempt to make an appearance of such interference—in our political affairs. But the disaster that followed, in this instance, was so prompt that we could hope it would prove a lesson.

Most important of all, the campaign had made it evident that there was now no political mission in Utah for the Liberal (the Gentile) party—assuming that the retirement of the Mormon priests from politics was sincere and permanent. Accordingly, the organization formally met some months later, and formally dissolved; and, by that act, the last great obstacle to united progress was removed from our road to statehood, and the men who removed it acted with a generosity that makes one of the noblest records of self-sacrifice in the history of the state.

They could foresee that their dissolution as a separate force meant statehood for Utah—a sovereignty in itself that would leave the Gentiles in the minority and without any appeal to the nation. Under territorial conditions, although the non-Mormons were less than one-third of the population, they had two-thirds of the political power. They held all the Federal offices, including executive and judicial positions. They had the Governor, with an absolute veto over the acts of the Mormon legislature. They had the President and Congress who could annul any statute of the territory; and they had with them almost the entire sentiment of the nation. It was in their power to have protracted the Mormon controversy, and to have withstood the appeal for statehood, to this day.

They yielded everything; they accepted, in return, only the good faith of the Mormons. Was it within the capacity of any human mind to foresee that in return for such generosity the Church would ever give over its tabernacles to teaching its people to hold in detestation the very names of these men who saved us? Was it to be suspected that the political power surrendered by them would ever be used as a persecution upon them?—that the liberty, given by them to us, would ever afterward be denied them by us? It was inconceivable. Neither in the magnanimity of their minds nor in the gratitude of ours was there a suspicion of such a catastrophe.

During 1891, President Woodruff's manifesto had been ratified in local Church conferences in every "stake of Zion;" and a second General

Conference had endorsed it in October of that year. President Woodruff, Councillor Joseph F. Smith and Apostle Lorenzo Snow went before the Federal Master in Chancery—in a proceeding to regain possession of escheated Church property—and swore that the manifesto had prohibited plural marriages, that it required a cessation of all plural marriage living, and that it was being obeyed by the Mormon people. These facts were recited in a petition for amnesty forwarded to President Harrison in December, 1891, accompanied by signed statements from Chief Justice Zane, Governor Thomas and other non-Mormons who pledged themselves that the petitioners were sincere and that if amnesty were granted good faith would be kept. "Our people are scattered," President Woodruff and his apostles declared in their petition. "Homes are made desolate. Many are still imprisoned; others are banished and in hiding. Our hearts bleed for these. In the past they followed our counsels, and while they are still afflicted our souls are in sackcloth and ashes.... As shepherds of a patient and suffering people we ask amnesty for them and pledge our faith and honor for their future."

At Washington, the Church's attorney, Mr. Franklin S. Richards, and delegate John T. Caine supported the petition with their avowals of the sincerity of the Church leaders, the genuineness of our political division, and the sanctity with which we regarded the promise to obey the laws. The Utah Commission, a non-Mormon body, favored amnesty in an official report of September, 1892. And when I went to Washington, in the winter of 1892-3, the changed attitude of the Federal authorities toward us was strikingly evident.

President Harrison issued his amnesty proclamation, early in January, 1893, to all persons liable to the penalties of the Edmunds-Tucker Act, but "on the express condition that they shall in the future faithfully obey the laws of the United States... and not otherwise." The proclamation concluded: "Those who fail to avail themselves of the clemency hereby offered will be vigorously prosecuted." Not a polygamist in Utah, to my knowledge, declined to take advantage of the mercy, by refusing the expressly implied pledge.

Meanwhile the campaign had been continued for the return of the escheated Church property and for the passage of an Enabling Act that should permit the territory to organize for statehood.

[FOOTNOTE: Statehood seemed still very faraway. There was a Trans-Mississippi Congress held at Ogden in 1892, and though the delegates—coming from all the states and territories "west of the river," were the guests of the people of Utah, so hopeless was our status in the consideration of mankind that the delegates from the territories of New Mexico and Arizona would not let our names be joined to theirs in a resolution for statehood which we wished the committee on resolutions to propose to the Congress. Governor Prince of New Mexico replied, to our plea for a share in the resolution, that he did not intend to damn New Mexico by having her mixed up with Utah. We appealed to the Congress, and we were saved by a speech made by Thos. M. Patterson of Colorado, subsequently senator from Colorado, who carried the day for us. At a recent Trans-Mississippi Congress held in Denver, I sat with ex-Senator Patterson to hear Mr. Prince still proposing resolutions in support of statehood for New Mexico. Twenty years later!] Joseph L. Rawlins, Democratic delegate from Utah, worked valiantly among the Democrats, and he was assisted by the influence of Mr. Franklin S. Richards and John T. Caine and others among their old associates in that party. But, in the very midst of the fight, we were advised that, unless the Republican leaders would let the Enabling Act go through, the Democratic leaders would falter in our advocacy.

I had been urged to go to Washington by the Presidency to do what I might to allay Republican antagonism, and I found that a number of self-appointed lobbyists (who expected political preferment's and other rewards from the Church in the event of statehood) had been using the most amazing arguments in our behalf. For example, they told some of the "financial Senators" that the Church had fourteen million dollars in secret funds with which to help build a railroad to the coast as soon as statehood should be granted. They cited the number of the Church's adherents in all the states and territories of the Pacific Coast and as far east as Iowa and Missouri, and predicted that the gratitude of these people to the Republicans who were helping to free Utah would enable the Republican party to control a balance of political power in the several states. They declared positively that plural marriages and plural marriage living had utterly ceased among the Mormons for all time. And they made such statements with great particularity to Senator Orville H. Platt, of Connecticut, who was too wise a man to credit them.

As soon as I returned to Washington, he summoned me to a private meeting, in his parlor in the Arlington Hotel, and confronted me with one of the Republican lobbyists who had been soliciting his personal favor and his almost controlling influence. "Now, Mr. Cannon," he said, in his dry way, "have the Mormons stopped living with their plural wives? And will there never be another case of plural marriage among them?"

I remembered the lesson of my interview with him at the time of the campaign against the disfranchisement bill, and I answered: "No. Not all the men of the Church have complied fully with the law. So far as I know, all the general authorities of the Church—with two or three exceptions—are fulfilling the covenant they gave; and so far as I can judge there will never be another plural marriage ceremony with the consent or connivance of the leaders of the Church. But human nature is very much the same in Utah as it is in Connecticut. Here and there, no doubt, a man feels that he's under an obligation to keep his covenant with his plural wives in preference to the covenant of his accepted amnesty; and there and here, possibly, in the future, some man will break the law and defy the orders of the Church and take a plural wife. But the leaders of the Church do not countenance either proceeding, and any man who violates the law, in either respect, offends against the revelations of the Church and, I believe, will be dealt with as an apostate. I come direct from the Presidency of the Church, and I am authorized to pledge their word of honor that they will themselves obey the law and do all in their power as men and leaders to bring their people into harmony with the institutions of this country as rapidly as possible."

Senator Platt had slowly unwrapped himself, rising from his chair to his full height of more than six feet, in a lank and alarming indignation. "There," he said, striding up and down the room. "That's it! That's just it. These people have been telling us that you were obeying the law—all of you—in every instance—and would always obey it. And now you come here and admit, openly, that some of you, to whom we have granted amnesty, are breaking your word—and that 'possibly' others, in the future, will do the same thing!"

"Senator," I pleaded, "what confidence could you have in me if I were to tell you the Mormons were so superhuman that in a single day they could eliminate all their human characteristics? I'm asking you to recognize that the tendency imparted to a whole community is more important than any

one man's breach of the law. Believe me, if you grant us our statehood, there will never be any lawbreaking sanctioned or protected by the Church leaders, and just as speedily as possible the entire system will be brought into harmony with the institutions of the nation. I'm telling you the truth."

He turned on me to ask, abruptly, how the polygamists had adjusted their family affairs.

I answered that in nearly all cases within my personal knowledge, the polygamist had relinquished conjugal relations with his plural wives with the full acquiescence of them and their children. He supported them, cared for the children, and in all other ways acted as the guardian and protector of the household. In a few cases men had gone, to an extreme. For instance, my uncle, Angus M. Cannon—president of the Salt Lake "stake of Zion," a man of most decided character—had declared that he had entered into his marriage relations with his wives under a covenant that gave them equality in his regards; and in order that he might not wound the sensibilities of any, he had separated himself from all.

I reminded Senator Platt that with such examples on the part of the leaders, there could be no general law-breaking among the Mormons, and that gradually the polygamous element would accommodate itself to the demands of law and the commands of God.

He waved us away with a curt announcement that he would have to think the matter over. If I had not known the essential justice and common sense under his dry and irascible exterior, I might have been alarmed. The lobbyist's concern was almost comic. As soon as we were out of hearing of the Senator's apartment, shaking both fists frantically at me, he cried: "You've ruined everything! We had him. We had him—all right—until you came down here and let the cat out of the bag! You knew what we'd been telling him. Why didn't you stick to it?"

I replied with equal warmth: "You may lie all you please; but if we have to win Utah's statehood with lies I don't want it. Senator Platt has been generous to us in our time of need, and I don't intend to deceive him—or any other man."

As a matter of fact, this was not only common honesty; it was also the best policy. Senator Platt was, from that time to the day of his death, a good friend and wise counselor of the people of Utah. And I wish to lay particular stress upon this conversation with him, because it was a type of many had

with such men as he. Fred T. Dubois, delegate in Congress from the territory of Idaho and subsequently Senator from that state, had been perhaps the strongest single opponent, in Washington, of the Mormon Church; he took our promises of honor, as Senator Platt did, and he pacified Senator Cullom, Senator Pettigrew and many others among our antagonists, who afterwards told me that they had accepted the pledges given by Senator Dubois in our behalf.

They recognized that the Church and the community ought not to be held responsible for a few possible cases of individual resistance or offense, so long as there should be a strict adherence by the Church and its leaders to their personal and community covenant. I emphasize the nature of this generous appreciation of our difficulties, because the present-day polygamists in Utah claim that there was a "tacit understanding," between the statesmen in Washington and the agents of the Church, to the effect that the polygamists of that time might continue to live with their plural wives. This is not true. There never was any such understanding, to my knowledge. And there could not have been one, in the circumstances, without my knowledge. For though I did not know what delegate Rawlins, and former delegate Caine, and our attorney, Mr. Richards, were saying in their private interviews with senators and congressmen, I know that in all the frequent conversations I had with them I never heard an intimation of any "tacit understanding" beyond the one which I have defined.

For my part I was more than eager to have all our political disabilities removed, the Church property restored, and the right of statehood accorded—believing implicitly in the sincerity of the Mormon leaders. I knew President Woodruff too well to doubt the pellucid character of his mind and purpose. I knew from my father's personal assurance—and from his constant practice from that time to the day of his death—that he was acting in good faith. I knew that the community was gladly following where these men led. I saw no slightest indication that any reactionary policy was likely to be entered upon in Utah, or that our people would accept it if it were.

The Church's personal property was restored by an Act of Congress approved October 25, 1893, but it was stipulated in the Act that the money was not to be used for the support of any church buildings in which "the rightfulness of the practice of polygamy" should be taught. Similarly, when the Enabling Act was approved, in July 16, 1894, it, too, provided that

"polygamous or plural marriage" was forever prohibited. A constitutional convention was held at Salt Lake City under the provisions of that act, and a constitution was adopted in which it was provided that "polygamous or plural marriages" were forever prohibited, that the territorial laws against polygamy were to be continued in force, that there should be "no union of church and state," and that no church should "dominate the state or interfere with its functions." Upon no other basis would the nation have granted us our statehood; and we accepted the grant, knowing the expressed condition involved in that acceptance.

But there was one other gift that came to us from the nation—by Congressional enactment and later by Utah statute as a consequence of statehood; and that gift was the legitimizing of every child born of plural marriage before January, 1896. The solemn benignity of the concession touched me, as it must have touched many, to the very heart of gratitude. By it, ten thousand children were taken from the outer darkness of this world's conventional exclusion and placed within the honored relations of mankind. It was a tribute to the purity and sincerity of the Mormon women who had borne the cross of plural marriage, believing that God had commanded their suffering. It recognized the holy nature and honorable intent of the marriages of these women, by according their children every right of legal inheritance from their fathers. If all other covenants could be forgotten and their proof obliterated, this should remain as Utah's pledge of honor—sacred for the sake of the Mormon mothers, holy in the name of the uplifted child.

Chapter VI. The Goal—And After

Here we were then (as I saw the situation) assured of our statehood, rid of polygamy, relieved of religious control in politics, and free to devote our energies to the development of the land and the industries and the business of the community. The persecutions that our people had borne had schooled them to co-operation. They were ready, helping one another, to advance together to a common prosperity. They were under the leadership chiefly of the man who had guided them out of a most desperate condition of oppression toward the freedom of sovereign self-government. In that progress he had saved everything that was worthy in the Mormon communism; he had discarded much that was a curse. I knew that he had no thought but for the welfare of the people; and with such a man, leading such a following, we seemed certain of a future that should be an example to the world.

But both the Church and the people had been involved in debt by confiscation and proscription; and it was necessary now to free ourselves financially. This work my father undertook in behalf of the Presidency—for the President of the Mormon Church is not only the Prophet, Seer and Revelator of God to the faithful; he is also "the trustee in trust" of all the Church's material property. He is the controller, almost the owner, of everything it owns. He is as sacred in his financial as in his religious absolutism. He is accountable to no one, The Church auditors, whom he appoints, concern themselves merely with the details of bookkeeping. The millions of dollars that are paid to him, by the people in tithes, are used by him as he sees fit to use them; and the annual contributors to this "common fund" would no more question his administration of it than they would question the ways of divinity.

In the early days there had been a strongly animating idea that among the divinely-authorized duties of leadership was the obligation to develop the natural resources of the country in order to meet the people's needs. As the immigrants poured into Utah, these needs increased; and the Church leaders used the Church funds to develop coal and iron mines, support salt gardens, build a railway, establish a sugar factory (for which the people, through the

legislature, voted a bounty), conduct a beach resort, and aid a hundred other enterprises that promised to be for the public good. These undertakings were not financed for profit. They were semi-socialistic in their establishment and half-benevolent in their administration.

But during "the days of the raid" they were neglected, because the Church was involved in debt. And now it became pressingly necessary to obtain money to restore the moribund industries and to meet the payments that were continually falling due upon loans made to the Presidency. President Woodruff called on me to aid in the work. So I came into touch with a development of events that did not seem to me, then, of any great importance; yet it drew as its consequence a connection between the Mormon Church and the great financial "interests" of the East—a connection that is one of the strong determining causes of the perversion of government and denial of political liberty in Utah today.

I wish, here, simply to foreshadow, this connection. It will reappear in the story again and again; and it is necessary to have the significance of the recurrence understood in advance. But, at the time of which I write, there was no more than an innocent approach on our part to Eastern financiers to obtain money for the Church and to concentrate our debts in the hands of two or three New York banks.

For example, the Church had loaned to, or endorsed for, the Utah Sugar Company to the amount of \$325,000; and my father had personally endorsed the general obligations for this and other sums, although he owned only \$5,000 of the company's stock. He supported the factory with his personal credit and assumed the risk of loss (without any corresponding possibility of gain) in order to benefit the whole people by encouraging the beet sugar industry. A vain attempt had been made to sell the bonds in New York. Finally, the Church bought all the bonds of the company for \$325,000 (of a face value of \$400,000), and we sold them, for the Church, to Mr. Joseph Bannigan, the "rubber king," of Providence, Rhode Island, for \$360,000, with the guarantee of the First Presidency, the trustee of the Church, and myself.

Similarly, the First Presidency led in building an electric power plant in Ogden, after Chas. K. Bannister, a great engineer, and myself had persuaded the members of the Presidency that the work would benefit the community. The bonds of this company, too, were bought by Mr. Bannigan, with the

guarantee of the trustee of the Church, the Presidency and myself. Both the power plant and the sugar factory were financially successful. They performed a large public service beneficently. The fact that Mr. Bannigan held their bonds was no detriment to their work and wrought no injury to the people.

I single out these two enterprises because Joseph F. Smith has since sold the power plant to the "Harriman interests," and the control of the sugar factory to the sugar trust; and he has explained that in making the sales he merely followed my father's example and mine in selling the bonds to Mr. Bannigan. The power plant is now a part of the merger called the Utah Light and Railway Company, which has a monopoly right in all the streets of Salt Lake City and its suburbs, besides owning the electric power and light plants of Salt Lake City and Ogden, the gas plants of both these cities, and the natural gas wells and pipe lines supplying them. The Mormon people whose tithes aided these properties—whose good-will maintained them—whose leaders designed them as a community work for a community benefit—these people are now being mercilessly exploited by the Eastern "interests" to whom the Prophet of the Church has sold them bodily. The difference between selling the bonds of the sugar company to Bannigan, in order to raise money to support the factory, and selling half the stock to the sugar trust, in order to make a monopoly profit out of the Mormon consumers of sugar, has either not occurred to Smith or has been divinely waived by him.

However, this is by the way and in advance of my story. In 1894 we had no more fear of the Eastern money power than we had of the return of the Church to politics or to polygamy. Throughout 1893 and 1894 I was engaged in the work of re-establishing the Church's business affairs with my father and a sort of finance committee of which the other two members were Colonel N. W. Clayton, of Salt Lake City, and Mr. James Jack, the cashier of the Church. In the summer of 1894 I heard various rumors that when Utah should gain its statehood, my father would probably be a candidate for the United States Senate. Since this would be a palpable breach of the Church's agreement to keep out of politics, I took occasion—one day, on a railroad journey—to ask him if he intended to be a candidate.

He told me that he was being urged to stand for the Senatorship, but that for his part he had no desire to do so; and he asked me what I thought about

it. I replied that if I had felt it was right for him to take the office and he desired it, I would walk barefoot across the continent to aid him. But I reminded him of the pledges which he and I had made repeatedly—on our own behalf, in the name of his associates in leadership, and on the honor of the Mormon people—to subdue thereafter the causes of the controversy that had divided Mormon and Gentile in Utah. He replied with an emphatic assurance of his purpose to keep those pledges, and dismissed the subject with a finality that left no doubt in my mind.

I know that he might have desired the Senatorship as a public vindication, since, in the old days of quarrel, he had been legislated out of his place in the House of Representatives; and, for the first and only time in my life, I undertook to philosophize some comfort for him—out of the fact that to the position of authority which he held in Utah a Senatorship was a descent. He replied dryly: "I understand, my son—perfectly." The fact was that he needed no comfort from me or any other human being. He seemed all—sufficient to himself, because of the abiding sense he had of the constant presence of God and his habit of communing with that Spirit, instead of seeking human intercourse or earthly counsel. He did not need my affection. He did not need, much less seek, the approbation of any man. In the events to which this conversation was a prelude, he acted without explaining himself to me or to anyone else, and apparently without caring in the slightest what my opinion or any other man's might be of his course or of the motives that prompted it.

Some months later, in the office of the Presidency (at a business meeting with him, Colonel Clayton and Joseph F. Smith), I excused myself from attending any further sittings of the committee for that day, because I had to go to Provo to receive the Republican nomination for Congress.

My father said: "I am sorry to hear it. I thought Judge Zane—or someone else would be nominated. I wished you to be free to help with these business matters. Why have you not consulted us?"

I reminded him that I had told him, some weeks before, that I expected to be nominated for Congress this year—and that I was practically certain, if elected, of going to the Senate when we were granted statehood. "I talked with you, then, as my father," I said. "But I'm sure you'll remember that I have not consulted you as a leader of the Church, or any of your colleagues

as leaders of the Church, on the subject of partisan politics since the People's Party was dissolved."

He accepted this mild declaration of political independence without protest, and I went to Provo, happily, a free man. The Republicans nominated me by acclamation, and the chairman of the committee that came to offer me the nomination was Colonel Wm. Nelson, then managing editor of the Salt Lake Tribune, a Gentile, a former leader of the Liberal Party, an opponent of Mormonism as practiced, who had fought the Church hierarchy for years. Here was a new evidence that we were now beyond the old quarrels—a further guarantee that we were prepared to take our place among the states of the Union, free of parochialism and its sectarian enmities.

The campaign gave every proof of such political emancipation. The people divided, on national party lines, as completely as any American community in my experience. The Democrats, having nominated Joseph L. Rawlins, had the prestige that he had gained in helping to pass the Enabling Act; a Democratic administration was in power in Washington; Apostle Moses Thatcher, Brigham H. Roberts, and other members of the Church inspired the old loyalty of the Mormons for the Democracy. But the Republicans had been re-enforced by the dissolution of the Liberal Party, whose last preceding candidate (Mr. Clarence E. Allen) went on the stump for us. The Smith jealousy of Moses Thatcher divided the Church influence; and though charges of ecclesiastical interference were made on both sides, such interference was personal rather than official. Mr. Rawlins was defeated, and I was elected delegate in Congress from the territory—with the United States Senatorship practically assured to me.

In the spring of 1895 the constitutional convention at Salt Lake City formulated a provisional constitution for the new Utah; and, in the Fall of the year, a general election was held to adopt this constitution and to elect officers who should enter upon their duties as soon as Utah became a state. The election was marked by a most significant and important incident.

The Democrats, in their convention, nominated for Congress, Brigham H. Roberts, one of the first seven "presidents of the seventy," and for the United States Senate, Joseph L. Rawlins and Apostle Moses Thatcher. Immediately, at a priesthood meeting of the hierarchy, Joseph F. Smith denounced the candidacies of Roberts and Thatcher; and the grounds for the

denunciation were subsequently stated in the "political manifesto" of April, 1896, in which the First Presidency announced, as a rule of the Church, that no official of the Church should accept a political nomination until he had obtained the permission of the Church authorities and had learned from them whether he could "consistently with the obligations already entered into with the Church, take upon himself the added duties and labors and responsibilities of the new position."

This action, I knew, was the result of the old jealousy of Thatcher which the Smiths had so long nursed. But it was also in line with the Church's pledge, to keep its leaders out of politics. By it, the hierarchy bound themselves and set the people free. The leaders, thereafter, according to their own "manifesto," could not enter politics without the consent of their quorums; and, therefore, by any American doctrine, they could not enter politics at all. Thatcher and Roberts revolted against the inhibition as an infringement of their rights as citizens, and it was so construed by the whole Democratic party; but everyone knew that a Mormon apostle had no rights as a citizen that were not second to his Church allegiance, and the political manifesto simply made public the fact of such subservience, authoritatively. We Republicans welcomed it, with our eyes on the future freedom of politics in Utah; Thatcher and Roberts refused to accept the dictation of their quorums, and what was practically an "edict of apostasy" went out against them. They were defeated. The Republican candidates (Heber M. Wells, as governor, and Clarence B. Allen, as member of Congress) were elected. Thatcher, subsequently refusing to accept the "political manifesto," was deposed from his apostolic authority, and deprived of all priesthood in the Church. Roberts recanted and was reconciled with the hierarchy.

[FOOTNOTE: He was afterwards elected to the House of Representatives and was refused his seat as a polygamist.]

The Republicans elected forty-three out of sixty-three members of the legislature, and everyone of these had been pledged to support me, for the United States Senate, either by his convention, or by letter to me, or by a promise conveyed to me by friends; and none of these pledges had I solicited.

The rumors of my father's candidacy now became more general—although he was a Democrat, although the new "political manifesto" bound him, although it was doubtful whether the Senate would allow him to be

seated. Two influences were urging his election. One was the desire of the Smith faction to have the First Councillor break the ice at Washington for Apostle John Henry Smith, who was ambitious to be a Senator and was disqualified by the fact that he was a Church leader and a polygamist. The other was the desire of some Eastern capitalists to have my father's vote in the Senate to aid them in the promotion of a railroad from Salt Lake City to Los Angeles. A preliminary agreement for the construction of the road had already been signed by men who represented that they had close affiliations with large steel interests in the East, as one party, and my father as business representative of a group of associates, including the Presidency of the Church. The Church's interest in the project was communistic, and so was my father's. But his vote and influence in the Senate would be valuable to the promotion of the undertaking, and he had received written assurances from Republican leaders, senators and politicians, that if he were elected he would be allowed his seat.

As a result of our Republican success in the two political campaigns that had just ended, I felt that I represented the independent votes of both Mormons and Gentiles; and I decided to confront the First Presidency (as such a representative) and try to make them declare themselves in the matter of my father's candidacy. Not that I thought his candidacy would be so vitally important for I did not then believe the Church authorities had power to sway the legislature away from its pledges. But every day, at home or abroad, I was being asked: "Are you sure that the Church's retirement from politics is sincere?" My friends were accepting my word, and I wished to add certainty to assurance that the Church leaders intended to fulfill the covenant of their personal honor and respect the constitution of the state by keeping out of politics.

Without letting them know why I wished to see them, I procured an appointment for the interview. When we were all seated at the table I explained: "I'm going to Washington to attend to my duties as delegate in Congress. Before I return, Utah will be admitted to statehood, and the legislature will have to elect two United States Senators. As you all know, I've been a candidate for one of these places. It has been assured to me by the probably unanimous vote of the Republican caucus when it shall convene." I laid my clenched hand on the table, knuckles down, with a calculated abruptness. "The first senatorship from Utah is there," I said.

"If it's to be disturbed by any ecclesiastical direction, I want to know it now, so that the men who are supporting me may be aware of what they must encounter if they persist in their support. I ask you, as the Presidency of the Church: what are you going to do about the Senatorship?" And I opened my hand and left it lying open before them, for their decision.

It was evident enough, from their expressions, that this was a degree of boldness to which they were unaccustomed. It was, evident also that they were unprepared to reply to me. My father remained silent, with his usual placidity, waiting for the others to fail to take the initiative. President Woodruff blinked, somewhat bewildered, looking at my hand as if the sight of its emptiness and the assumption of what it held, confused him. Joseph F. Smith, frowning, eyed it askance with a darting glance, apparently annoyed by the mute insolence of its demand for a decision which he was not prepared to make.

My father, at length, looking at me imperturbably, asked: "Are you inquiring of our personal view in this matter, Frank?"

The question contained, of course, a tacit allusion to my refusal to consult the Church leaders about politics. I answered: "No, sir. I already have your personal view. That is the only personal view I have ever asked concerning the Senatorship. And I have purposely refrained from any allusions to it of late, with you, because I wished to lay it before the Presidency, as a body, formally, in order that there might be no possible misunderstanding."

"In that case," he said, "the matter rests with President Woodruff."

The President, thus forced to an explanation, made a very characteristic one. Several of the Church's friends in the East, he said, had urged father's name for the Senatorship, but it was impossible to see how he could be spared from the affairs of the priesthood. Zion needed him—and so forth.

Apparently, to President Woodruff, the question of the Senatorship was resolvable wholly upon Church considerations. His mind was so filled with zealous hope for the advancement of "the Kingdom of God on Earth," that he seemed quite unaware of the political aspects of the case, the violation of the Church's pledge, and the difficulties in the Senate that would surely attend upon my father's election.

In the general discussion that ensued, both Joseph F. Smith and my father spoke of the appeal that had been made to them on behalf of the business

interests of the community, with which the financial interests of the East were now eager to co-operate. But both followed the President's example in dismissing the possibility of the First Councillor's candidacy as infringing upon his duties in the Church. I pointed out to them that such a candidacy would be considered a breach of faith, that it would raise a storm of protest. They accepted the warning without comment, as if, having decided against the candidacy, they did not need to consider such aspects of it. I kept my hand open before them until my father said, with some trace of amusement: "You'd better take up that senatorship, Frank. I think you're entitled to it."

I took it up, satisfied that there would be no more Church interference in the matter. The decision seemed to me final and momentous. I felt that the new Utah had faced the old and had been assured of independence.

About this same time (although I cannot place it accurately in my recollection), President Woodruff, speaking from the pulpit, declared that it was the right of the priesthood of God to rule in all things on earth, and that they had in no wise relinquished any of their authority. The sermon raised a dangerous alarm in Salt Lake City, and I was immediately summoned from Ogden (by a messenger from Church headquarters) to see the proprietor and the editor of the Salt Lake Tribune—which paper, it was feared, might oppose Utah's admission to statehood, construing President Woodruff's remarks to mean that the Church's political covenants were to be broken.

I found Mr. P. H. Lannan, the proprietor of the paper, anxious, indignant and ready to denounce the Church and fight against the admission to statehood. "When I heard of that sermon," he said, "my heart went into my boots. We Gentiles have trusted everything to the promises that have been made by the leaders of the Church. If the Tribune had not supported the movement for statehood, the Gentiles would never have taken the risk. I feel like a man who has sold his brethren into slavery."

I assured him (as I was authorized to do) that President Woodruff was not speaking for our generation of the Mormon people nor for his associates in the leadership of the Church. I pleaded that it was the privilege of an old man (and President Woodruff was nearly ninety) to dream again the visions of his youth; his early life had been spent in the belief that a Kingdom of God was to be set up in the valleys of the mountains, governed by the priesthood and destined to rule all the nations of the earth; he had planted the first flag of the country over the Salt Lake Valley; he was still living in

days that had passed for all but him, and cherishing hopes that he alone had not abandoned. But if the Tribune and the Gentiles would be magnanimous in this matter, they would add to the gratitude that already bound the younger generations of the Church to the fulfillment of its political promises.

Mr. Lannan responded instantly to the appeal to his generosity, and after consultation with the editor-in-chief (Judge C. C. Goodwin) and the managing editor (Colonel Wm. Nelson) the Tribune continued to trust in Mormon good faith.

I reported the result of my conference to Church headquarters. The news was received with relief and gratitude. And, in a long conversation with the authorities, I was told that it would be incumbent on us of the younger generation to see that all the Church's covenants to the nation should be scrupulously observed.

I accepted my part of the charge with a light heart, and late in November, 1895, I took train for Washington for convening of Congress. Of the incidents of my brief services as delegate I shall write nothing here, since those incidents were merely introductory to matters which I shall have to consider later. But I was greeted with a great deal of cordiality by the Republicans who credited me with having brought a state and its national representation into the Republican party, and they assured me that my own political future would be as bright as that of my native state!

President Cleveland, on January 4, 1896, proclaimed Utah a sovereign state of the Union, and its admission to statehood ended, of course, my service as a territorial delegate. I stood beside his desk in the White House to see him sign the proclamation—the same desk at which he had received me, some eight years before, when I came beseeching him to be merciful to the proscribed people whose freedom he was now announcing. Perhaps the manumission that he was granting, gave a benignity to his face. Perhaps the emotion in my own mind transfigured him to me. But I saw smiles and pathos in the ruggedness of his expression of congratulation as he said a few words of hope that Utah would fulfill every promise made, on her behalf, by her own people, and every happy expectation that had been entertained for her by her friends. His enormous rigid bulk, a little bowed now by years of service, seemed softened, as his face was, to the graciousness of clement power. He gave me the pen with which he had

signed the paper, and dismissed me to some of the happiest hours of my life.

I walked out of the White House dispossessed of office, but now, at last, a citizen of the Republic. I stood on the steps of the White House, to look at the city through whose streets I had so many times wandered in a worried despair, and I saw them with an emotion I would not dare transcribe. I do not know that the sun was really shining, but in my memory the scene has taken on all the accumulated brightnesses of all the radiant days I ever knew in Washington. And I remember that I saw the Washington Monument and the Capitol with a sense of almost affectionate personal possession!

In an excited exultation I went to thank the men who had helped us in the House and the Senate—to wire jubilant messages home—to send Governor Wells the pen with which the President had signed his proclamation, and to procure from friends in the War Department the first two flags that had been made with forty-five stars—the star of Utah the forty-fifth. Wherever I went, some sinister aspect seemed to have gone out of things; and I remember that I enjoyed so much the sense of their new inhostility, that I planned to delay my return to Utah until I had made a pilgrimage to every spot in Washington where I had despaired of our future.

All this may seem almost sentimental to you, who perhaps accept your citizenship as an unregarded commonplace of natural right. But, for me, the freeing of our people was an emancipation to be compared only to the enfranchisement of the Southern slaves and greater even than that, for we had come from citizenship in the older states, and we could appreciate our deprivation, smart under our ostracism, and resent the rejection that set us apart from the rest of the nation as an inferior people unfit for equal rights.

I sat down to my dinner, that evening, with the appetite that comes from a day of fasting and emotional excitement; and I recall that I was planning a visit of self-congratulation to Arlington, for the morrow, when one of the hotel bell-boys brought me a telegram. I opened it eagerly—to enjoy the expected message of felicitation from home.

It was in cipher, and that fact gave me a pause of doubt, since the days of political mysteries and their cipher telegrams were over for us, thank God! It was signed with President Woodruff's cipher name.

I went to my room to translate it, and I did not return to my dinner. The message read: "It is the will of the Lord that your father shall be elected

Senator from Utah."

I do not need to explain all the treacherous implications of that announcement. As soon as I had recovered my breath, I wired back, for such interpretation as they should choose to give: "God bless Utah. I am coming home,"—and packed my trunk, for trouble.

Chapter VII. The First Betrayals

Before I reached Utah, my friends, Ben Rich and James Devine, met me, on the train. The news of President Woodruff's "revelation" had percolated through the whole community. The Gentiles were alarmed for themselves. My friends were anxious for me. All the old enmities that had so long divided Utah were arranging themselves for a new conflict. And Rich and Devine had come to urge me to remember my promise that I would hold to my candidacy no matter who should appear in the field against me.

Of my father's stand in the crisis Rich could give me only one indication: after a conference in the offices of the Presidency, Rich had said to President Woodruff: "Then I suppose I may as well close up Frank's rooms at the Templeton"—the hotel in which my friends had opened political headquarters for me—and my father, accompanying him to an anteroom, had hinted significantly: "I think you should not close Frank's rooms just yet. He may need them."

Rich brought me word, too, that the Church authorities were expecting to see me; and soon as I arrived in Salt Lake City, I hastened to the little plastered house in which the Presidency had its offices.

President Woodruff, my father, and Joseph F. Smith were there, in the large room of their official apartments. We withdrew, for private conference, into the small retiring room in which I had consulted with "Brother Joseph Mack" when he was on the underground—in 1888—and had consulted with President Woodruff about his "manifesto," in 1890. The change in their circumstances, since those unhappy days, was in my mind as I sat down.

President Woodruff sat at the head of a bare walnut table in a chair so large that it rather dwarfed him; and he sank down in it, to an attitude of nervous reluctance to speak, occupied with his hands. Smith took his place at the opposite end of the board, with dropped eyes, his chair tilted back, silent, but (as I soon saw) unusually alert and attentive. My father assumed his inevitable composure—firmly and almost unmovingly seated—and looked at me squarely with a not unkind premonition of a smile.

President Woodruff continued silent. Ordinarily, anything that came from the Lord was quite convincing to him and needed no argument (in his mind) to make it convincing to others. I could not suppose that the look of determination on my face troubled him. It was more likely that something unusual in the mental attitudes of his councillors was the cause of his hesitation; and with this suspicion to arouse me I became increasingly aware (as the conference proceeded) of two rival watchfulnesses upon me.

"Well?" I said. "What was it you wanted of me?"

Smith looked up at the President. And Smith had always, hitherto, seemed so unseeing of consequences, and, therefore, unappreciative of means, that his betrayal of interest was indicative of purpose. I thought I could detect, in the communication which his manner made, the plan of my father's ecclesiastical rivals to remove him from the scene of his supreme influence over the President, and the plan of ambitious church politicians to remove me from their path by the invocation of God's word appointing father to the Senate.

"Frank," the President announced, "it is the will of the Lord that your father should go to the Senate from Utah."

As he hesitated, I said: "Well, President Woodruff?"

He added, with less decision: "And we want you to tell us how to bring it about?"

It was evident that getting the revelation was easy to his spiritualized mind, but that fulfilling it was difficult to his unworldliness.

"President Woodruff," I replied, "you have received the revelation on the wrong point. You do not need a voice from heaven to convince anyone that my father is worthy to go to the Senate, but you will need a revelation to tell how he is to get there."

He seemed to raise himself to the inspiration of divine authority. "The only difficulty that we have encountered," he said, "is the fact that the legislators are pledged to you. Will you not release them from their promises and tell them to vote for your father?"

"No," I said. "And my father would not permit me to do it, even if I could. He knows that I gave my word of honor to my supporters to stand as a candidate, no matter who might enter against me. He knows that he and I have given our pledges at Washington that political dictation in Utah by the

heads of the Mormon Church shall cease. Of all men in Utah we cannot be amenable to such dictation. If you can get my supporters away from me—very well. I shall have no personal regrets. But you cannot get me away from my supporters."

This inclusion of my father in my refusal evidently disconcerted President Woodruff; and, as evidently, it had its significance to Joseph F. Smith.

I went on: "Before I was elected to the House of Representatives, I asked my father if he intended to be a candidate for the Senate. I knew that some prominent Gentiles, desiring to curry favor at Church headquarters had solicited his candidacy. I had been told that General Clarkson and others had assured him by letter that his election would be accepted at Washington, and elsewhere. I discussed the matter with him fully. He agreed with me that his election would be a violation of the understanding had with the country; and he declared that he did not care to become again the storm center of strife to his people, nor did he feel that he could honorably break our covenant to the country. With this clear understanding between us, I made my pledges to men who, in supporting me, cast aside equally advantageous relations which they might have established with another. I can't withdraw now without dishonor."

My father said: "Don't let us have any misunderstandings. As President Woodruff stated the matter to me, I understood that it would be pleasing to the Lord, if the people desired my election to the Senate and it wouldn't antagonize the country."

"Yes, yes," the President put in. "That's what I mean."

Smith said, rather sourly: "The people are always willing to do what the Lord desires—if no one gives them bad counsel."

Both he and my father emphasized the fact that the business interests of the East were making strong representations to the Presidency in support of my father's election; and I suspected (what I afterwards found to be the case) that both Joseph F. Smith and Apostle John Henry Smith, were by this time, in close communication with Republican politicians. There was a calm assumption, everywhere, that the Church had power to decide the election, if it could be induced to act; and this assumption was a deplorable evidence, to me, of the willingness of some of our former allies to drag us swiftly to the shame of a broken covenant, if only they could profit in purse

or politics by our dishonor. I would not be an agent in any such betrayal, but I had to refuse without offending my father's trust in the divine inspiration of President Woodruff's decision and without aiding the Smiths in their conspiracy.

Either at this conference or one of the later ones, two or three apostles came into the room; and among them was Apostle Brigham Young, son of the Prophet Brigham who had led the Mormons to the Salt Lake Valley. When he understood my refusal to abandon my candidacy, he said angrily: "This is a serious filial disrespect. I know my father never would have brooked such treatment from me." And I retorted: "I don't know who invited you into this conference, but I deny your right to instruct me in my filial duty. If my father doesn't understand that the senatorship has lost its value for me—that it's a cross now—then my whole lifetime of devotion to him has been in vain."

My father rose and put his arm around my shoulders. "This boy," he said, "is acting honorably. I want him to know—and you to know—that I respect the position he has taken. If he is elected, he shall have my blessing."

That was the only understanding I had with him—but it was enough. I could know that I was not to lose his trust and affection by holding to our obligations of honor; and—an assurance almost as precious—I could know that he would not consciously permit legislators to be crushed by the vengeance of the Church if they refused to yield to its pressure.

A few days after my arrival in Utah, and while this controversy was at its height, my father's birthday was celebrated (January 11, 1896), with all the patriarchal pomp of a Mormon family gathering, in his big country house outside Salt Lake City. All his descendants and collateral relatives were there, as well as the members of the Presidency and many friends. After dinner, the usual exercises of the occasion were held in the large reception hall of the house, with President Woodruff and my father and two or three other Church leaders seated in semi-state at one end of the hall, and the others of the company deferentially withdrawn to face them. Towards the end of the program President Woodruff rose from his easy chair, and made a sort of informal address of congratulation; and in the course of it, with his hand on my father's shoulder, he said benignly: "Abraham was the friend of God. He had only one son on whom all his hopes were set. But the voice of the Lord commanded him to sacrifice Isaac upon an altar; and Abraham

trusted the Lord and laid his son upon the altar, in obedience to God's commands. Now here is another servant of the Most High and a friend of God. I refer to President Cannon, whose birthday we are celebrating. He has twenty-one sons; and if it shall be the will of the Lord that he must sacrifice one of them he ought to be as willing as Abraham was, for he will have twenty left. And the son should be as willing as Isaac. We can all safely trust in the Lord. He will require no sacrifice at our hands without purpose."

I remarked to a relative beside me that the altar was evidently ready for me, but that I feared I should have to "get out and rustle my own ram in the thicket." I received no reply. I heard no word of comment from anyone upon the President's speech. It was accepted devoutly, with no feeling that he had abused the privileges of a guest. Everyone understood (as I did) that President Woodruff was the gentlest of men; that he had often professed and always shown a kindly affection for me; but that the will of the Lord being now known, he thought I should be proud to be sacrificed to it!

Among the legislators pledged to me were Mormon Bishops and other ecclesiasts who had promised their constituents to vote for me and who now stood between a betrayal of their people and a rebellion against the power of the hierarchy. I released one of them from his pledge, because of his pathetic fear that he would be eternally damned if he did not obey "the will of the Lord." The others went to the Presidency to admit that if they betrayed their people they would have to confess what pressure had been put upon them to force them to the betrayal. I went to notify my father (as I had notified the representatives of every other candidate) that we were going to call a caucus of the Republican majority of the legislature, and later I was advised that President Woodruff and his Councillor's had appointed a committee to investigate and report to them how many members could be counted upon to support my father's candidacy. The committee (composed of my uncle Angus, my brother Abraham, and Apostle John Henry Smith) brought back word that even among the men who had professed a willingness to vote for my father there was great reluctance and apprehension, and that in all probability his election could not be carried. With President Woodruff's consent, my father then announced that he was not a candidate. I was nominated by acclamation.

When I called upon my father at the President's offices after the election, he said to me before his colleagues: "I wish to congratulate you on having

acted honorably and fearlessly. You have my blessing." He turned to the President. "You see, President Woodruff," he added, "it was not the will of the Lord, after all, since the people did not desire my election!"

I have dwelt so largely upon the religious aspects of this affair because they are as true of the Prophet in politics today as they were then. At the time, the personal complication of the situation most distressed me—the fact that I was opposing my father in order to fulfill the word of honor that we had given on behalf of the Mormon leaders. But there was another view of the matter; and it is the one that is most important to the purposes of this narrative. In the course of the various discussions and conferences upon the Senatorship, I learned that the inspiration of the whole attempted betrayal had come from certain Republican politicians and lobbyists (like Colonel Isaac Trumbo), who claimed to represent a political combination of business interests in Washington. Joseph F. Smith admitted as much to me in more than one conversation. (I had offended these interests by opposing a monetary and a tariff bill during my service as delegate in Congress—a matter which I have still to recount). They had chosen my father and Colonel Trumbo as Utah's two Senators. I made it my particular business to see that Trumbo's name was not even mentioned in the caucus. The man selected as the other senator was Arthur Brown, a prominent Gentile lawyer who was known as a "jack-Mormon" (meaning a Gentile adherent to Church power), although I then believed, and do now, that Judge Chas. C. Goodwin was the Gentile most entitled to the place, because of his ability and the love of his people.

I was, however, content with the victory we had won by resisting the influence of the business interests that had been willing to sell our honor for their profit, and I set out for Washington with a determination to continue the resistance. I was in a good position to continue it. The election of two Republican Senators from Utah had given the Republicans a scant majority of the members of the Upper House, and the bills that I had fought in the Lower House were now before the Senate.

These bills had been introduced in the House of Representatives, immediately upon its convening in December, 1895, by the committee on rules, before Speaker Reed had even appointed the general committees. One was a bill to authorize the issuance of interest-bearing securities of the United States at such times and in such sums as the Executive might

determine. The other was a general tariff bill that proposed increases upon the then existing Wilson-Gorman bill. The first would put into the hands of the President a power that was not enjoyed by any ruler in Christendom; the second would add to the unfair and discriminatory tariff rates then in force, by making ad valorem increases in them. Many new members of Congress had been elected on the two issues thus created: the arbitrary increase of the bonded indebtedness by President Cleveland to maintain a gold reserve; and the unjust benefits afforded those industries that were least in need of aid, by duties increased in exact proportion to the strength of the industrial combination that was to be protected.

The presentation of the two bills by the Committee on Rules—with a coacher to each proposing to prevent amendment and limit discussion—raised a revolt in the House. A caucus of the insurgent Republican members was held at the Ebbitt Hotel, and I was elected temporary chairman. We appointed a committee to demand from Speaker Reed a division of the questions and time for opposition to be heard. We had seventy-five insurgents when our committee waited on. Reed; and most of us were new men, elected to oppose such measures as these bills advocated. He received us with sarcasm, put us off with a promise to consider our demands, and then set his lieutenants at work among us. Under the threat of the Speaker's displeasure if we continued to "insurge" and the promise of his favor if we "got into line," forty-one (I think) of our seventy-five deserted us. We were gloriously beaten in the House on both measures.

Some of the older Republican members of the House came to ask me how I had been "misled"; and they received with the raised eyebrow and the silent shrug my explanation that I had been merely following my convictions and living up to the promises I had made my constituents. I had supposed that I was upholding an orthodox Republican doctrine in helping to defend the country from exploitation by the financial interests, in the matter of the bond issue, and from the greed of the business interests in the attempt to increase horizontally the tariff rates.

I do not need, in this day of tariff reform agitation, to argue the injustice of the latter measure. But the bond issue—looking back upon it now—seems the more cruelly absurd of the two. Here we were, in times of peace, with ample funds in the national treasury, proposing to permit the unlimited issuance of interest-bearing government bonds in order to procure gold, for

that national treasury, out of the hoards of the banks, so that these same banks might be able to obtain the gold again from the treasury in return for paper money. The extent to which this sort of absurdity might be carried would depend solely upon the desire of the confederation of finance to have interest-bearing government bonds on which they might issue national bank notes, since the Executive was apparently willing to yield interminably to their greed, in the belief that he was protecting the public credit by encouraging the financiers to attack that credit with their raids on the government gold reserve. The whole difficulty had arisen, of course, out of the agitation upon the money question. The banks were drawing upon the government gold reserve; and the government was issuing bonds to recover the gold again from the banks.

I had been, for some years, interested in the problem of our monetary system and had studied and discussed it among our Eastern bankers and abroad. The very fact that I was from a "silver state" had put me on my guard, lest a local influence should lead me, into economic error. I had grown into the belief that our system was wrong. It seemed to me that some remedy was imperative. I saw in bimetallism a part of the remedy, and I supported bimetallism not as a partisan of free coinage but as an advocate of monetary reform.

The arrival of Utah's two representatives in the Senate (January 27, 1896) gave the bimetallists a majority, and when the bond-issue bill came before us we made it into a bill to permit the free coinage of silver. (February 1). A few days later, the Finance Committee turned the tariff bill into a free-coinage bill also. On both measures, five Republican Senators voted against their party—Henry M. Teller, of Colorado; Fred T. Dubois, of Idaho; Thos. H. Carter, of Montana; Lee Mantle, of Montana; and myself. We were subsequently joined by Richard F. Pettigrew of South Dakota. Within two weeks of my taking the oath in the Senate we were read out of the party by Republican leaders and Republican organs.

All this happened so swiftly that there was no time for any remonstrances to come to me from Salt Lake City, even if the Church authorities had wished to remonstrate. The fact was that the people of Utah were with us in our insurgency, and when the financial interests subsequently appealed to the hierarchy, they found the Church powerless to aid them in support of a gold platform. But they obtained that aid, at last, in support of a tariff that

was as unjust to the people as it was favorable to the trusts, and my continued "insurgency" led me again into a revolt against Church interference.

The thread of connection that ran through these incidents is clear enough to me now: they were all incidents in the progress of a partnership between the Church and the predatory business interests that have since so successfully exploited the country. But, at the time, I saw no such connection clearly. I supposed that the partnership was merely a political friendship between the Smith faction in the Church and the Republican politicians who wished to use the Church; and I had sufficient contempt for the political abilities of the Smiths to regard their conspiracy rather lightly.

Believing still in the good faith of the Mormon people and their real leaders in authority, I introduced a joint resolution in the Senate restoring to the Church its escheated real estate, which was still in the hands of a receiver, although its personal property had been already restored. In conference with Senators Hoar and Allison,—of the committee to which the resolution was referred—I urged an unconditional restoration of the property, arguing that to place conditions upon the restoration would be to insult the people who had given so many proofs of their willingness to obey the law and keep their pledges. The property was restored without conditions by a joint resolution that passed the Senate on March 18, 1896, passed the House a week later, and was approved by the President on March 26. The Church was now free of the last measure of proscription. Its people were in the enjoyment of every political liberty of American citizenship; and I joined in the Presidential campaign of 1896 with no thought of any danger threatening us that was not common to the other communities of the country.

But before I continue further with these political events, I must relate a private incident in the secret betrayal of Utah—an incident that must be related, if this narrative is to remain true to the ideals of public duty that have thus far assumed to inspire it—an incident of which a false account was given before a Senate Committee in Washington during the Smoot investigation of 1904, accompanied by a denial of responsibility by Joseph F. Smith, the man whose authority alone encouraged and accomplished the tragedy—for it was a tragedy, as dark in its import to the Mormon

community as it was terrible in its immediate consequences to all our family.

By his denial of responsibility and by secret whisper within the Church, Smith has placed the disgrace of the betrayal upon my father, who was guiltless of it, and blackened the memory of my dead brother by a misrepresentation of his motives. I feel that it is incumbent upon me, therefore, at whatever pain to myself, to relate the whole unhappy truth of the affair, as much to defend the memory of the dead as to denounce the betrayal of the living, to expose a public treason against the community not less than to correct a private wrong done to the good name of those whom it is my right to defend.

Late in July, 1896, when I was in New York on business for the Presidency, I received a telegram announcing the death of my brother, Apostle Abraham H. Cannon. We had been companions all our lives; he had been the nearest to me of our family, the dearest of my friends but even in the first shock of my grief I realized that my father would have a greater stroke of sorrow to bear than I; and in hurrying back to Salt Lake City I nerved myself with the hope that I might console him.

I found him and Joseph F. Smith in the office of the Presidency, sitting at their desks. My father turned as I entered, and his face was unusually pale in spite of its composure; but the moment he recognized me, his expression changed to a look of pain that alarmed me. He rose and put his hand on my shoulder with a tenderness that it was his habit to conceal. "I know how you feel his loss," he said hoarsely, "but when I think what he would have had to pass through if he had lived I cannot regret his death."

The almost agonized expression of his face, as much as the terrible implication of his words, startled me with I cannot say what horrible fear about my brother. I asked, "Why! Why—what has happened?"

With a sweep of his hand toward Smith at his desk—a gesture and a look the most unkind I ever saw him use—he answered: "A few weeks ago, Abraham took a plural wife, Lillian Hamlin. It became known. He would have had to face a prosecution in Court. His death has saved us from a calamity that would have been dreadful for the Church—and for the state."

"Father!" I cried. "Has this thing come back again! And the ink hardly dry on the bill that restored your church property on the pledge of honor

that there would never be another case—" I had caught the look on Smith's face, and it was a look of sullen defiance. "How did it happen?"

My father replied: "I know—it's awful. I would have prevented it if I could. I was asked for my consent, and I refused it. President Smith obtained the acquiescence of President Woodruff, on the plea that it wasn't an ordinary case of polygamy but merely a fulfillment of the biblical instruction that a man should take his dead brother's wife. Lillian was betrothed to David, and had been sealed to him in eternity after his death. I understand that President Woodruff told Abraham he would leave the matter with them if he wished to take the responsibility—and President Smith performed the ceremony."

Smith could hear every word that was said. My father had included him in the conversation, and he was listening. He not only did not deny his guilt; he accepted it in silence, with an expression of sulky disrespect.

He did not deny it later, when the whole community had learned of it. He went with Apostle John Henry Smith to see Mr. P. H. Lannan, proprietor of the Salt Lake Tribune, to ask him not to attack the Church for this new and shocking violation of its covenant. Mr. Lannan had been intimately friendly with my brother, and he was distressed between his regard for his dead friend and his obligation to do his public duty. I do not know all that the Smiths said to him; but I know that the conversation assumed that Joseph F. Smith had performed the marriage ceremony; I know that neither of the Smiths made any attempt to deny the assumption; and I know that Joseph F. Smith sought to placate Mr. Lannan by promising "it shall not occur again." And this interview was sought by the Smiths, palpably because wherever the marriage of Abraham H. Cannon and Lillian Hamlin was talked of, Joseph F. Smith was named as the priest who had solemnized the offending relation. If it had not been for Smith's consciousness of his own guilt and his knowledge that the whole community was aware of that guilt, he would never have gone to the Tribune office to make such a promise to Mr. Lannan.

All of which did not prevent Joseph F. Smith from testifying—in the Smoot investigation at Washington in 1904—that he did not marry Abraham Cannon and Lillian Hamlin, that he did not have any conversation with my father about the marriage, that he did not know Lillian Hamlin had been betrothed to Abraham's dead brother, that the first time he heard of the

charge that he had married them was when he saw it printed in the newspapers!

[FOOTNOTE: See Proceedings before Senate Committee on Privileges and Elections, 1904, Vol. 1, pages 110, 126, 177, etc.]

If this first polygamous marriage had been the last—if it were an isolated and peculiar incident as the Smiths then claimed it was and promised it should be—it might be forgiven as generously now as Mr. Lannan then forgave it. But, about the same time there became public another case—that of Apostle Teasdale—and as this narrative shall prove, here was the beginning of a policy of treachery which the present Church leaders, under Joseph F. Smith, have since consistently practiced, in defiance of the laws of the state and the "revelation of God," with lies and evasions, with perjury and its subornation, in violation of the most solemn pledges to the country, and through the agency of a political tyranny that makes serious prosecution impossible and immunity a public boast.

The world understands that polygamy is an enslavement of women. The ecclesiastical authorities in Utah today have discovered that it is more powerful as an enslaver of men. Once a man is bound in a polygamous relation, there is no place for him in the civilized world outside of a Mormon community. He must remain there, shielded by the Church, or suffer elsewhere social ostracism and the prosecution of bigamous relations. Since 1890, the date of the manifesto (and it is to the period since 1890 that my criticism solely applies) the polygamist must be abjectly subservient to the prophets who protect him; he must obey their orders and do their work, or endure the punishment which they can inflict upon him and his wives and his children. Inveigled into a plural marriage by the authority of a clandestine religious dogma—encouraged by his elders, seduced by the prospect of their favor, and impelled perhaps by a daring impulse to take the covenant and bond that shall swear him into the dangerous fellowship of the lawlessly faithful—he finds himself, at once, a law breaker who must pay the Church hierarchy for his protection by yielding to them every political right, every personal independence, every freedom of opinion, every liberty of act.

I do not believe that Smith fully foresaw the policy which he has since undoubtedly pursued. I believe now, as I did then, that in betraying my brother into polygamy Smith was actuated by his anger against my father

for having inspired the recession from the doctrine; that he desired to impair the success of the recession by having my brother dignify the recrudescence of polygamy by the apostolic sanction of his participation; and that this participation was jealously designed by Smith to avenge himself upon the First Councillor by having the son be one of the first to break the law, and violate the covenant. I saw that my brother's death had thwarted the conspiracy. Smith was so obviously frightened—despite his pretense of defiance—that I believed he had learned his needed lesson. And I accepted the incident as a private tragedy on which the final curtain had now fallen.

Chapter VIII. The Church and the Interests

Meanwhile, I had been taking part in the Presidential campaign of 1896, and I had been one of the four "insurgent" Republican Senators (Teller of Colorado, Dubois of Idaho, Pettigrew of South Dakota and myself) who withdrew from the national Republican convention at St. Louis, in fulfillment of our obligations to our constituents, when we found that the convention was dominated by that confederation of finance in politics which has since come to be called "the System." I was a member of the committee on resolutions, and our actions in the committee had indicated that we would probably withdraw from the convention if it adopted the single gold platform as dictated by Senator Lodge of Massachusetts acting for a group of Republican leaders headed by Platt of New York, and Aldrich of Rhode Island. At the most critical point of our controversy I received a message from Church headquarters warning me that "we" had made powerful friends among the leading men of the nation and that we ought not to jeopardize their friendship by an inconsiderate insurgency. Accordingly, in bolting the convention, I was guilty of a new defiance of ecclesiastical authority and a new provocation of ecclesiastical vengeance.

President Woodruff spoke to me of the matter after I returned to Utah, and I explained to him that I thought the Republican party, under the leadership of Mark Hanna and the flag of the "interests," had forgotten its duty to the people of the nation. I argued, to the President, that of all people in the world we, who had suffered so much ourselves, were most bound to bow to no unfairness ourselves and to oppose the imposition of unfairness upon others. And I talked in this strain to him not because I wished his approval of my action but because I wished to fortify him against the approach of the emissaries of the new Republicanism, who were sure to come to him to seek the support of the Church in the campaign.

Some days later, while I was talking with my father in the offices of the Presidency, the secretary ushered in Senator Redfield Proctor of Vermont. I withdrew, understanding that he wished to speak in private with President Woodruff and his councillors. But I learned subsequently that he had come

to Salt Lake to persuade the leaders of the Church to use their power in favor of the Republican party throughout the intermountain states.

Senator Proctor asked me personally what chance I thought the party had in the West. I pointed out that the Republican platform of 1892 had reproached Grover Cleveland for his antagonism to bimetallism—"a doctrine favored by the American people from tradition and interest," to quote the language of that platform—and the Republicans of the intermountain states still held true to the doctrine. It had been repudiated by the St. Louis platform of June, 1896, and the intermountain states would probably refuse their electoral votes to the Republican party because of the repudiation.

Senator Proctor thought that the leaders of the Church were powerful enough to control the votes of their followers; and he argued that gratitude to the Republican party for freeing Utah ought to be stronger than the opinions of the people in a merely economic question.

I reminded him that one of our covenants had been that the Church was to refrain from dictating to its followers in politics; that we had been steadily growing away from the absolutism of earlier times; and that for the sake of the peace and progress of Utah I hoped that the leaders would keep their hands off. I did not, of course, convince him. Nor was it necessary. I was sure that no power that the Church would dare to use would be sufficient at this time to influence the people against their convictions.

Joseph F. Smith, soon afterward, notified me that there was to be a meeting of the Church authorities in the Temple, and he asked me to attend it. Since I had never before been invited to one of these conferences in the "holy of holies," I inquired the purposes of the conclave. He replied that they desired to consider the situation in which our people had been placed by my action in the St. Louis convention, and to discuss the perceptible trend of public opinion in the state. I saw, then, that Senator Proctor's visit had not been without avail.

On the appointed afternoon, I went to the sacred inner room of the temple, where the members of the Presidency and several of the apostles were waiting. I shall not describe the room or any of the religious ceremonies with which the conference was opened. I shall confine myself to the discussion—which was begun mildly by President Woodruff and Lorenzo Snow, then president of the quorum of apostles.

To my great surprise, Joseph F. Smith made a violent Republican speech, declaring that I had humiliated the Church and alienated its political friends by withdrawing from the St. Louis convention. He was followed by Heber J. Grant, an apostle, who had always posed as a Democrat; and he was as Republican and denunciatory as Smith had been. He declaimed against our alienation of the great business interests of the country, whose friendship he and other prominent Mormons had done so much to cultivate, and from whom we might now procure such advantageous co-operation if we stood by them in politics.

President Woodruff tried to defend me by saying that he was sure I had acted conscientiously; but by this time I desired no intervention of prophetic mercy and no mitigation of judgment that might come of such intervention. As soon as the President announced that they were prepared to hear from me, I rose and walked to the farther side of the solemn chamber, withdrawn from the assembled prophets and confronting them. Having first disavowed any recognition of their right as an ecclesiastical body to direct me in my political actions, I rehearsed the events of the two campaigns in which I had been elected on pledges that I had fulfilled by my course in Congress, in the Senate, and finally in the St. Louis convention. That course had been approved by the people. They had trusted me to carry out the policies on which they had elected me to Congress. They had reiterated the trust by electing me to the Senate after I had revolted against the Republican bond and tariff measures in the lower House. I could not and would not violate their trust now. And there was no authority on earth which I would recognize as empowered to come between the people's will and the people's elected servants.

The prophets received this defiance in silence. Their expressions implied condemnation, but none was spoken—at least not while I was there. President Woodruff indicated that the conference was at an end, so far as I was concerned; and I withdrew. Some attempts were subsequently made to influence the people during the campaign, but in a half-hearted way and vainly. The Democrats carried Utah overwhelmingly; only three Republican members of the legislature were elected out of sixty-three.

It was this conference in the Temple which gave me my first realization that most of the Prophets had not, and never would have, any feeling of citizenship in state or nation; that they considered, and would continue to

consider, every public issue solely in its possible effect upon the fortunes of their Church. My father alone seemed to have a larger view; but he was a statesman of full worldly knowledge; and his experience in Congress, during a part of the "reconstruction period," and throughout the Tilden-Hayes controversy, had taught him how effectively the national power could assert itself. The others, blind to such dangers, seemed to feel that under Utah's sovereignty the literal "kingdom of God" (as they regard their Church) was to exercise an undisputed authority. Unable, myself, to take their viewpoint, I was conscious of a sense of transgression against the orthodoxy of their religion. I was aware, for the first time, that in gaining the fraternity of American citizenship I had in some way lost the fraternity of the faith in which I had been reared. I accepted this as a necessary consequence of our new freedom—a freedom that left us less close and unyielding in our religious loyalty by withdrawing the pressure that had produced our compactness. And I hoped that, in time, the Prophets themselves—or, at least, their successors—would grow into a more liberal sense of citizenship as their people grew. I knew that our progress must be a process of evolution. I was content to wait upon the slow amendments of time.

My hope carried me through the disheartening incidents of the Senatorial campaign that followed upon the election of the legislature—a campaign in which the power of the hierarchy was used publicly to defeat the deposed apostle, Moses Thatcher, in his second candidacy for the United States Senate. But the Church only succeeded in defeating him by throwing its influence to Joseph L. Rawlins, whom the Prophets loved as little as they loved Thatcher; and I felt that in Rawlins' election the state at least gained a representative who was worthy of it.

What was quite as sinister a use of Church influence occurred among the Mormons of Idaho, where I went to help Senator Fred. T. Dubois in his campaign for re-election. He had aided us in obtaining Utah's statehood as much as any man in Washington. He had accepted all the promises of the Mormon leaders in good faith—particularly their promise that no Church influence should intrude upon the politics of Idaho. Yet in his campaign I was followed through the Mormon settlements by Charles W. Penrose, a polygamist, since an apostle of the Church, and at that time editor of the Church's official organ, the *Deseret News*.

I supposed that he was lying in his claim to represent the Presidency; and as soon as I returned to Salt Lake, I went to Church headquarters and asked whether Penrose had been authorized to say (as he had been saying) that he was sent out to prevent my making any misrepresentations of the political attitude of the Presidency.

Joseph F. Smith replied, "Yes,"—speaking for himself and apparently for President Woodruff.

"And when"—I demanded—"when did I ever claim to represent or misrepresent you in politics? Haven't I always said that I don't recognize you as politicians—and always denied that you have any right to dictate the politics of our people?"

President Woodruff interposed gently:

"Well, you know, Frank, we have no criticism to pass on you, but we were advised that you might tell the voters of Idaho we were friendly to Senator Dubois, and so we sent Brother Penrose, at the request of President Budge" (a Mormon stake president in Idaho) "to counsel our people. And Brother Penrose says you attacked him in one of your meetings, and said he was not a trustworthy political guide."

President Woodruff's mildness was always irresistible. "If that's all he told you I said about him," I replied, "he didn't do justice to my remarks." And I explained that I had described Penrose as "a lying, oily hypocrite," come to advise the Idaho Mormons that the Presidency wished them to vote a certain political ticket although the Presidency had no interest in the question and although I myself had taken to Washington the Presidency's covenant of honor that the Church would never attempt to interfere in Idaho's political affairs.

Smith sprang to his feet angrily. "I don't care what has been promised to Dubois or anyone else," he said. "He was the bitterest enemy our people had in the old days, and I'll never give my countenance to him in politics while the world stands. He sent many a one of our brethren to prison when he was marshal of the territory, and I can't forget his devilish persecutions—even if you can."

I closed the conversation by remarking that not one among us would have had a vote as a citizen either of Utah or of Idaho if Dubois and men of his kind had not accepted our pledges of honor; and if we were determined

to remember the persecutions and not the mercy, we ought to go back to the conditions from which mercy had rescued us.

I left for Washington, soon after, with an unhappy apprehension that there were evil influences at work in Utah which might prove powerful enough to involve the whole community in the worst miseries of reaction. I saw those influences embodied in Joseph F. Smith; and because he was explosive where others were reflective, he had now more influence than previously—there being no longer any set resistance to him. The reverence of the Mormon people for the name of Smith was (as it had always been) his chief asset of popularity. He had a superlative physical impressiveness and a passion that seemed to take the place of magnetism in public address. But he never said anything memorable; he never showed any compelling ability of mind; he had a personal cunning without any large intelligence, and he was so many removes from the First Presidency that it seemed unlikely he would soon attain to that position of which the power is so great that it only makes the blundering more dangerous than the astute.

I was going to Washington, before Congress reconvened, to confer with Senator Redfield Proctor. He wished to see me about the new protective tariff bill that was proposed by the Republican leaders. I wished to ask him not to use his political influence in Idaho against Senator Fred. T. Dubois, who had been Senator Proctor's political protege. I knew that Senator Proctor had once been given a semi-official promise that the Mormon Church leaders would not interfere in Idaho against Dubois. I wished to tell Proctor that this promise was not being kept, and to plead with him to give Dubois fair play—although I knew that Senator Dubois' "insurgency" had offended Senator Proctor.

He received me, in his home in Washington, with an almost paternal kindness that became sometimes more dictatorial than persuasive—as the manner of an older Senator is so apt to be when he wishes to correct the independence of a younger colleague. He explained that the House was Republican by a considerable majority; a good protective tariff bill would come from that body; and a careful canvass of the Senate had proved that the bill would pass there, if I would vote for it. "We have within one vote of a majority," he said. "As you're a devoted protectionist in your views—as your state is for protection—as your father and your people feel grateful to the Republican party for leading you out of the wilderness—I have felt that

it was proper to appeal to you and learn your views definitely. If you'll pledge your support to the bill, we shall not look elsewhere for a vote—but it's essential that we should be secure of a majority."

I replied that I could not promise to vote for the measure until I should see it. It was true that I had been a devoted advocate of protection and still believed in the principle; but I had learned something of the way in which tariff bills were framed, and something of the influences that controlled the party councils in support of them. I could not be sure that the new measure would be any more just than the original Dingley bill, which I had helped to defeat in the Senate; and the way in which this bill had been driven through the House was a sufficient warning to me not to harness myself in a pledge that might be misused in legislation.

Senator Proctor did me the honor to say that he did not suppose any improper suggestion of personal advantage could influence me, and he hoped I knew him too well to suppose that he would use such an argument; "but," he added, "anything that it's within the 'political' power of the party to bestow, you may expect; I'm authorized to say that we will take care of you."

As I still refused to bind myself blindly, he said, with regret: "We had great hopes of you. It seems that we must look elsewhere. I will leave the question open. If you conclude to assure us of your vote for the bill, I shall see that you are restored to a place in Republican councils. If I do not hear anything from you, it will be necessary to address ourselves to one or two other Senators who are probably available."

It is, of course, a doctrine of present-day Republicanism that the will of the majority must rule within the party. An insurgent is therefore an apostate. The decision of the caucus is the infallible declaration of the creed. In setting myself up as a judge of what it was right for me to do, as the sworn representative of the people who had elected me, I was offending against party orthodoxy, as that orthodoxy was then, and is now, enforced in Washington.

I was given an opportunity to return to conformity. I was sent a written invitation to attend the caucus of Republican Senators after the assembling of Congress; and, with the other "insurgents," I ignored the invitation. It was finally decided by the party leaders to let the tariff bill rest until after the inauguration of the President-elect, William McKinley, with the

understanding that he would call a special session to consider it; and, in the interval, the Republican machine, under Mark Hanna, was set to work to produce a Republican majority in the Senate.

Hanna was elected Senator, at this time, to succeed John Sherman, who had been removed to the office of Secretary of State, in order to make a seat for Hanna. The Republican majority was produced. (Senator Dubois had been defeated). And when the special session was called, in the spring of 1897, my vote was no longer so urgently needed. I was invited to a Republican caucus, but I was unwilling to return to political affiliations which I might have to renounce again; for I saw the power of the business interests in dictating the policy of the party and I did not propose to bow to that dictation.

When the tariff bill came before the Senate, I could not in conscience support it. The beneficiaries of the bill seemed to be dictating their own schedules, and this was notably the case with the sugar trust, which had obtained a differential between raw and refined sugar several times greater than the entire cost of refining. I denounced the injustice of the sugar schedule particularly. A Mr. Oxnard came to remonstrate with me on behalf of the beet sugar industry of the West. "You know," he said, "what a hard time we're having with our sugar companies. Unless this schedule's adopted I greatly fear for our future."

I replied that I was not opposing any protection of the struggling industries of the country, or of the sugar growers, but I was set against the extortionate differential that the sugar trust was demanding. Everybody knew that the trust had built its tremendous industrial power upon such criminally high protection as this differential afforded, and that its power now affected public councils, obtained improper favors, and terrorized the small competing beet sugar companies of the West. I argued that it was time to rally for the protection of the people as well as of the beet sugar industry.

He predicted that if the differential was reduced the protection on beet sugar would fail. I laughed at him. "You don't know the temper of the Senate," I said. "Why, even some of the Democrats are in favor of protecting the beet sugar industry. That part of the bill is safe, whatever happens to the rest."

"Senator Cannon," he replied, with all the scorn of superior knowledge, "you're somewhat new to this matter. Permit me to inform you that if we

don't do our part in supporting the sugar schedule, including the differential, the friends of the schedule in the Senate will prevent us from obtaining our protection."

"That," I retorted angrily, "is equivalent to saying that the sugar trust is writing the sugar schedule. I can't listen with patience to any such insult. The Senate of the United States cannot be dictated to, in a matter of such importance, by the trust. I will not vote for the differential. I will continue to oppose it to the end. If you're right—if the trust has such power—better that our struggling sugar industry should perish, so that we may arouse the people to the iniquitous manipulation that destroyed it."

I continued to oppose the schedule. Soon after, I received a message from the Church authorities asking me to go to New York to attend to some of their financial affairs. I entered the lobby of the Plaza Hotel on Fifth Avenue about nine o'clock at night; I was met, unexpectedly, by Thomas R. Cutler, manager of the Utah Sugar Company, who was a Bishop of the Mormon Church; and he asked, almost at once, how the tariff bill was progressing at Washington.

I had known Bishop Cutler for years. I knew that he had labored with extraordinary zeal and intelligence to establish the sugar industry in Utah. I understood that he had risked his own property, unselfishly, to save the enterprise when it was in peril. And I had every reason to expect that he would be as indignant as I was, at the proposal to use the support of the beet sugar states in behalf of their old tyrant.

I told him of my conversation with Oxnard. "I'm glad," I said, "that we're independent enough to refuse such an alliance with the men who are robbing the country."

A peculiar, pale smile curled Bishop Cutler's thin lips. "Well, Frank," he replied, "that's just what I want to see you about. We"—with the intonation that is used among prominent Mormons when the "we" are voicing the conclusions of the hierarchy—"wouldn't like to do anything to hurt the sugar interests of the country. I've looked into this differential, and I don't see that it is particularly exorbitant. As a matter of fact, the American Sugar Refining Company is doing all it can to help us get our needed protection, and we have promised to do what we can for it, in return. I hope you can see your way clear to vote for the bill. I know that the brethren"—meaning the Church authorities—"will not approve of your opposition to it."

I understand what his quiet warning meant, and when we had parted I went to my room to face the situation. Already I had been told, by a representative of the Union Pacific Railway, that the company intended to make Utah the legal home of the corporation, and to enter into a close affiliation with the prominent men of the Church. I had been asked to participate, and I had refused because I did not feel free, as a Senator, to become interested in a company whose relations with the government were of such a character. But I had not foreseen what this affiliation meant. Bishop Cutler's warning opened my eyes. The Church was protecting itself, in its commercial undertakings, by an alliance with the strongest and most unscrupulous of the national enemies.

I saw that this was natural. The Mormon leaders had been for years struggling to save their community from poverty. Proscribed by the Federal laws, their home industries suffering for want of finances, fighting against the allied influences of business in politics, these leaders had been taught to feel a fearful respect for the power that had oppressed them. They were now being offered the aid and countenance of their old opponents. Our community, so long the object of the world's disdain, was to advance to favor and prosperity along the easy road of association with the most influential interests of the country.

I remembered the long hard struggle of our people. I remembered the days and nights of anxiety that I myself had known when we were friendless and proscribed. Here was an open door for us, now, to power and wealth and all the comfort and consideration that would come of these. Other men better than I in personal character, more experienced in legislation than I, and wiser by natural gift, were willing to vote for the bill; and Bishop Cutler, a man whom I had always esteemed, the representative of the men whom I most revered, had urged me, for them, to support the bill, under suggestion of their anger if I refused to be guided by their leadership.

I saw why the "interests" were eager to have our friendship; we could give them more than any other community of our size in the whole country. In the final analysis, the laws of our state and the administration of its government would be in the hands of the church authorities. Moses Thatcher might lead a rebellion for a time, but it would be brief. Brigham H. Roberts might avow his independence in some wonderful burst of

campaign oratory, but he would be forced to fast and pray and see visions until he yielded. I might rebel and be successful for a moment, but the inexorable power of church control would crush me at last. Yet, if I surrendered in this matter of the tariff, I should be doing exactly what I had criticized so many of my colleagues for doing—for more than one man in the House and the Senate had given me the specious excuse that it was necessary to go against his conscience, here, in order to hold his influence and his power to do good in other instances.

I did not sleep that night. On the day following, I transacted the financial affairs that I had been asked to undertake, and then I returned to Washington. My wife met me at the railway station, and—if you will bear with the intimacy of such psychology—the moment I saw her I knew how I would vote. I knew that neither the plea of community ambition, nor the equally invalid argument of an industrial need at home, nor the financial jeopardy of my friends who had invested in our home industries, nor the fear of church antagonism, could justify me in what would be, for me, an act of perfidy. When I had taken my oath of office I had pledged myself, in the memory of old days of injustice, never to vote as a Senator for an act of injustice. The test had come. By all the sanctities of that old suffering and the promise that I had made in its spirit, I would keep the faith.

When the tariff bill came to its final vote in the Senate, I had the unhappy distinction of being the only Republican Senator who voted against it. A useless sacrifice! And yet if it had been my one act of public life, I should still be glad of it. The "interests" that forced the passage of that bill are those that have since exploited the country so shamefully. It is their control of Republican party councils that has since caused the loss of popular faith in Republicanism and the split in the party which threatens to disrupt it. It is their control of politics in Utah that has destroyed the whole value of the Mormon experiment in communism and made the Mormon Church an instrument of political oppression for commercial gain. They are the most dangerous domestic enemy that the nation has known since the close of the Civil War. My opposition was as doomed as such single independence must always be—but at least it was an opposition. There is a consolation in having been right, though you may have been futile!

My father, visiting Washington soon afterwards, took occasion to criticize my vote publicly, in a newspaper interview; but he was content, by

that criticism, to clear himself and his colleagues of any responsibility for my act. "You made a great mistake," he told me privately. "You are alienating the friends who have done so much for us." He added as if casually—with an air of off-handedness that was significant to me—"You lay yourself open to attack from your political enemies. When a man's head is high, it is easily hit." I was afterwards to understand how serious a danger he then foresaw and thus predicted.

Many reports soon reached me of attacks that were being made upon me by the ecclesiastical authorities, particularly by Joseph F. Smith and Apostle Heber J. Grant. The formal criticism passed upon me by my father was magnified to make my tariff vote appear an inexcusable party and community defection. A vigorous and determined opposition was raised against me. And in this, Smith and his followers were aided by the perfect system of Church control in Utah—a system of complete ecclesiastical tyranny under the guise of democracy.

Practically every Mormon man is in the priesthood. Nearly every Mormon man has some concrete authority to exercise in addition to holding his ordination as an elder. Obedience to his superiors is essential to his ambition to rise to higher dignity in the church; and obedience to his superiors is necessary in order to attract obedience to himself from his subordinates. There can be no lay jealousy of priestly interference in politics, because there are no laymen in the proper sense of the word. A man's worldly success in life is largely involved in his success as a churchman, since the church commands the opportunities of enterprise, and the leaders of the Church are the state's most powerful men of affairs. It is not uncommon, in any of our American communities, for men to use their church membership to support their business; but in Utah the Mormons practically must do so, and even the Gentiles find it wise to be subservient.

Add to this temporal power of the Church the fact that it was establishing a policy of seeking material success for its people, and you have the explanation of its eagerness to accept an alliance with the "interests" and of its hostility to anyone who opposed that alliance. The Mormons, dispossessed of their means by the migration from Illinois, had been taught the difficulty of obtaining wealth and the value of it when once obtained. They fancied themselves set apart, in the mountains, by the world's exclusion. They were ambitious to make themselves as financially powerful

in proportion to their numbers as the Jews were; and it was a common argument among them that the world's respect had turned to the Jews because of the dependence of Christian governments upon the Jewish financiers.

The exploitation of this solid mass of industry and thrift could not long be obscured from the eyes of the East. The honest desire of the Mormon leaders to benefit their people by an alliance with financial power made them the easy victims of such an alliance. With the death of the older men of the hierarchy, the Church administration lost its tradition of religious leadership for the good of the community solely, and the new leaders became eager for financial aggrandizement for the sake, of power. Like every other church that has added a temporal scepter to its spiritual authority, its pontiffs have become kings of a civil government instead of primates of a religious faith.

Chapter IX. At the Crossways

In 1897, the Church, freed of proscription, with its people enjoying the sovereignty of their state rights, had—as I have already said—only one further enfranchisement to desire: and that was its freedom from debt. The informal "finance committee" of which I was a member, had succeeded in concentrating the bulk of the indebtedness in the East, on short term loans, and had brought a certain order out of the confusion of the older methods of administration. But, in 1897, my father proposed a comprehensive plan of Church finance that included the issuance of Church bonds and the formation of responsible committees to regulate and manage the business affairs of the Church, so that the bonds might be made a normal investment for Eastern capital by having a normal business method of administration to back them. The idea was tentatively approved by the Presidency, and I was asked to draw up the plan in detail.

To this end there were placed in my hands sheets showing the assets, liabilities, revenues and disbursements of the Church. They gave a total cash indebtedness of \$1,200,000, approximately. The revenues from tithes for the year 1897 were estimated at a trifle more than a million dollars—the total being low because of the financial depression from which the country was just recovering. The available property holdings—exclusive of premises used for religious worship, for educational and benevolent work, and such kindred purposes—were valued at several millions (from four to six), although there was no definite appraisal or means of obtaining appraisal, since the values would largely attach only when the properties were brought into business use. I was advised that the incomes of the Church would probably increase at the rate of ten per cent per annum, but I do not know by what calculations this ratio was reached.

The disbursements were chiefly for interest on debt, for the maintenance of the temples and tabernacles, for educational and charitable work, for missionary headquarters in other countries, and for the return of released missionaries. The missionaries themselves received no compensation; they were supposed to travel "without purse or scrip;" their expenses were defrayed by their relatives, and they had to pay out of their own pockets for

the printed tracts which they distributed. Neither the President nor any of the general authorities received salaries. There was an order that each apostle should be paid \$2,000 a year, but this rule had been suspended, except, perhaps, in the cases of men who had to give their whole time to religious work and who had no independent incomes. Some occasional appropriations had been made for meeting houses in communities that had been unable to erect their own chapels of worship, but for the most part there were few calls made upon the Church revenues to support its religious activities, its priests or its propaganda.

Our proposed committees, therefore, were a committee on missionary work, one on publication, one on colonization, one on political protective work for the Mormons in foreign countries, and most important—a finance committee selected from the body of apostles, with the addition of some able men connected with financial institutions. As a basis for the work of the finance committee, we proposed the establishment of an interest fund, a sinking fund, and a scale of percentage disbursements for the various community purposes. These committees were to be appointed by the Conferences of the people, and the committee reports were to be public. President Woodruff eagerly accepted the plan as relieving the Presidency of administrative cares that were becoming too great for the quorum to carry. Joseph F. Smith did not at once awake to the real meaning of the proposal; but when the scheme was submitted in its matured details, he spoke of the danger of allowing power to pass from the hands of the "trustee in trust" in business matters. His idea was sufficiently clear in its resistance to any diffusion of authority, but it was correspondingly void of any suggestion of substitute. For the time being he was pacified by the assurance that the "Kingdom of God" and the rule of its prophets would not be endangered by the organization of committees and the submission of financial plans to the general knowledge, and even to the consent, of the people.

It was, of course, evident to the First Councillor that this scheme of Church administration would give the Mormon people a measure of responsible government, and the proposal was a part of his wisdom as a community leader seeking the common welfare. While we had been a people on whom the whole world seemed to be making war, a dictatorship had been necessary; but now that we had arrived at peace and liberty, a concentration of irresponsible power would surely become dangerous to progress. Without, therefore, impairing the religious authority of the

Prophet, the First Councillor was willing to divide the temporal power of the Church among its members.

He was as silent, about these aims, with me as with all others; but I had learned to understand him in his silences; and, in joining with him in his work of reform, I was as sure of his purpose as I have since been sure of the disaster to the Mormon people that has come of the failure to effect the reform.

When the Presidency had approved of the flotation of bonds, I went with my father to New York to aid him in interesting Eastern capitalists in the investment. We interviewed Judge John F. Dillon and Mr. Winslow Pierce, of the law firm of Dillon and Pierce, attorneys for some of the Union Pacific interests; and through them we met Mr. Edward H. Harriman, Mr. George J. Gould and members of the firm of Kuhn Loeb and Company. It was interesting to watch the encounters between the Mormon prophet and some of these astutest of the nation's financiers; for it was as if one of the ancient patriarchs had stepped down from the days of early Israel to discuss the financial problems of his people with a modern "captain of industry." He described a condition of society that was, to Wall Street, archaic. He spoke with a serene assurance that the order of affairs in Utah was constituted in the wisdom of the word of God. He was listened to, with the interest of curiosity, as the chief living exponent of the Mormon movement, its processes and its aims; and I was impressed by the fact that these men of the world had a large and splendid sympathy for any wholesome social effort designed to abolish poverty and establish a quicker justice in the practical affairs of the race.

It was of the abolition of poverty and the justice of the social order among the Mormons, that the First Councillor chiefly spoke. "Your clients," he said to Judge Dillon, "make their investments frequently in railroad stocks and bonds. What are the underlying bases of the values of railroad securities? Largely the industry and stability of the communities through which the railroad lines shall operate. Then, in reality, the security is valuable in proportion to the value of the community in its steadfastness, its prosperity and the safety of its productive labor. In your railroad investments you are obliged to take such considerations as a secondary security. In negotiating this Church loan with your clients, you can offer the

same great values as a primary security. Probably no where else in the world is there a people at once so industrious and so stable as ours."

It was the boast of the Mormons that there had not been an almshouse or an almshouse in any of their settlements, up to the time of the escheat proceedings by the Federal officials; and this was literally true. Every man had been helped to the employment for which he was best fitted. If an immigrant, in his former estate, had been a silk-weaver, efforts were made to establish his industry and give it public support. If he had been a musician of talent, a little conservatory was founded, and patronage obtained for him. When the growth of population made it necessary to open new valleys for agriculture, the Church, out of its community fund, rendered the initial aid; in many instances the original irrigation enterprises of small settlements were thus financed; and the investments were repaid not only directly, by the return of the loan, but indirectly, many times over, by the increased productiveness and larger contributions of the people. Cooperation, in mercantile, industrial and stock-raising undertakings, assured the support and patronage of each community for its own particular enterprise, prevented destructive competition and checked the greed of the individual—for the more he toiled for himself, the larger the share of the general burden he had to carry.

It was the First Councillor's theory that when people contributed to a common fund they became interested in one another's material welfare. The man who paid less in tithes this year than last was counselled with as to why his business had been unsuccessful, and the wise men of his little circle aided him with advice and material help. The man who contributed largely was glad of a prosperity from which he yielded a part—in recognition of what the community had done for him and in a reverent gratitude to God for making him "a steward of mighty possessions"—but he was anxious that his neighbor also should be a larger contributor each year.

The whole system of tithe-paying was built upon a series of purported "revelations" received by Joseph Smith, the original Prophet. It was declared to be the will of God that all men, as stewards of their possessions, should give of their increase annually into "the storehouse of the Lord," which should always be open for the relief of the poor. Inasmuch as the man who received help—or whose widow and children did so—had been a tithe-payer during all his productive years, there was none of the feeling of

personal humiliation on the part of the recipient, nor any of the feeling of condescending charity on the part of the giver, in the distribution of funds to the needy. And it was astonishing how few the needy were—because of the abstemious lives, the industry, and the thrift of the workers.

The Church tribunals heard and settled all disputes over property or personal rights not involving the criminal law. Expensive litigation was thus avoided. Society was saved the cost of innumerable courts. There were many counties in which no lawyer could be found; and everywhere, among the Mormons, it was considered an act of evil fellowship, amounting almost to apostasy, for a man to bring suit against his brother in the civil tribunals.

In short—as my father pointed out—Utah, at that time, expressed the only full-bodied social proposition in the United States. There never had been in America another community whose future, in the economic aspects, offered so clear a solution of problems which still remain generally unsettled. It was as if a segment of the great circle of modern humanity had been transported to another world, otherwise unpopulated, and there with the experience gained through centuries of human travail—had attempted the establishment of a just, beneficent and satisfying social order.

I am here repeating this argument—this exposition—because the financial absolutism of the Prophets of the Church has since ruined the whole Mormon experiment in communism, put the Mormon paupers into the public poor houses, used the tithes to support the large financial ventures of the Prophet's favorites, and turned the Church's "community enterprises" into monopolistic exploitations of the Mormon people. And this change began even while our negotiations were pending in New York—for they were prolonged, for various reasons, into the summer of 1898, and they were interrupted finally by the death of President Woodruff.

As soon as I received word of his illness I took train for Utah. The news of his death met me on the journey home. Since I derived my authority solely from him, upon my arrival in Salt Lake I went to the Cashier of the Church, gave him the keys and the password to the safety deposit box in New York, and withdrew from any further participation in the Church's financial affairs. When I came to the office of the Presidency I found that my father had removed his desk; and this was an indication to me of what was happening in the inner circles of Church intrigue.

The president of the quorum of apostles invariably succeeds to the Presidency of the Church, although it is left to the apostles to decide, and their choice is supposed to be directed by inspiration. His election is subsequently ratified by the General Conference; but this ratification is a mere form, because the conference must either accept the choice of the apostles or rebel against "the revelation of God."

Apostle Lorenzo Snow was president of the quorum of apostles, and therefore in line for the Presidency. But usually, after the death of a President, a considerable period was allowed to elapse before the selection of his successor, with the government resting in the quorum of apostles meanwhile, even for a term of years. As soon as I arrived in Salt Lake, Apostle Snow asked me to a private interview (in the same small back room of the President's offices), inquired about the financial negotiations that I had been conducting, and asked me whether it was not essential to the success of our business affairs that as soon as possible the Church should elect a President, empowered as "trustee in trust." I replied that it was. He invited me to attend a conference of the apostles and give my views upon the situation to them.

This seemed to me an act of rather shallow cunning, for I knew I was too unimportant a person to be so consulted unless he thought my report would aid his intrigue. Such intriguing was offensive to the religious traditions of the Church; and it outraged my feeling for President Woodruff, who was hardly cold in death before this personal and worldly ambition caught at the reins of his office. Snow had been a man of small weight in the government of the Church. He had known none of the responsibilities of great leadership. He was eighty-four years old.

However, it was impossible for us to maintain the Church's credit in the East unless our community were represented by some choate authority, since our credit rested on the belief that the Mormon people were ready to consecrate all their possessions at any time to the service of the Church at the command of the President. I advised the apostles of this fact. Snow was elected President on September 13, 1898, eleven days after Woodruff's death. He followed the usual precedent in choosing my father and Joseph F. Smith as his Councillors.

But he took possession of his new authority with the manner of an heir entering upon the ownership of a personal estate for which he had long

waited—and which he proposed to enjoy to the full for his remaining years. In a most literal sense he held that all the property of the people of the Church was subject to his direction, as chief earthly steward of "the Divine Monarch," and he proceeded to exercise his assumed prerogatives with an autocracy that made even Joseph F. Smith complain because the Councillors were never asked for counsel. As resident apostle of Box Elder County and president of the Box Elder "stake of Zion," Snow had already shown his ambition as a financier, disastrously; and it was as the financial head of the Church that he was chiefly to rule during his term of absolutism.

Of all the Church leaders whom I had known he was the only man who showed none of the robustness of the Western experience. Tall, stately, white-bearded, elegant and courtly, he prided himself most obviously on his manners and his culture. He rarely spoke in any but the most subdued and silken tones of suavity. He walked with a step that was almost affected in its gentility. If he had any passions, he held them in such smooth concealment that the public credited him with neither force nor unkindness. He had been a great traveler (as a missionary); he had written his autobiography, somewhat egotistically; he was devoted to the forms of his religion, like a mediaeval Prince of the Church and an elegante. But under all the artificialities of personal vanity and exterior grace, he proved to have a cold determination that seemed more selfishly ambitious than religiously zealous.

At once, upon his accession to power, he notified us that he did not intend to carry out any such plan as we had suggested for the administration of the Church's finances. It meant a diffusion of authority; and he held that the best results had been obtained by keeping all power in the hands of the Prophet, Seer and Revelator, and of those whom he might appoint to work with him. Joseph F. Smith, at a meeting of the Presidency, was even more positive. No good, he said, could come of publishing the affairs of the community to the people of it; those affairs were purely the concern of the Prophets; the Lord revealed His will to the Prophets and they were responsible only to Him.

My father necessarily bowed to the President's decision. "It is within the authority of the Prophet of the Lord," he counselled me, "to determine how he will conduct the business of the Church. President Snow has his own ideas."

By that decision, as I see it now, an autocracy of financial power was confirmed to the President of the Mormon Church at a time when a renewal of prosperity among its people was about to make such power fatal to their liberties. It was confirmed to a man who proved himself eager for it, ambitious to increase it and secretly unscrupulous in his use of it. He proceeded at once to preach the doctrine of contribution with unexampled zeal, but he administered the "common fund," so collected, with none of the old feeling of responsibility to the people who contributed it. He became the first of the new financial pontiffs of the Church who have used the "money power" as an aid to hierarchical domination.

Moreover, in his desire to fill the coffers of the Church, he engaged in "practical politics" and made a profit out of Church influence, both in business enterprises and in political campaigns. He proved himself peculiarly qualified by nature to construct and direct a secret political machine—a machine whose operations were never to be observable except to the close student of Utah's ecclesiasticism—a machine that was to be all the more effective because of its silent certainty. As the succeeding chapters of this narrative will show, although he affected a fine superiority to unclean political work and always publicly professed that the Church of Christ was holding itself aloof from the strife of partisanship, there was no political event on which he did not fix the calculating eye of his ambitious clericalism and no candidacy that he did not reach with those slender but powerful fingers that controlled the destiny of a state and trifled with the honor of a people.

His accession marked the change from the old to the new regime in Utah. Leadership was no longer a dangerous honor. Proscription no longer made the authorities of the Church strong by persecution—hardy chiefs of a poverty-stricken people—leaders as sensible of the obligations of power as their followers were faithful in their allegiance of duty. Political freedom and worldly prosperity made the office of President a luxurious sovereignty, easily tyrannical, fortified in its religious absolutism by its irresponsible power of finance, and protected in its social abuses, from the interference of the nation, by an alliance with the commercial rulers of the nation and by a duplicity that worldliness has learned to dignify with the respectability of material success.

Chapter X. On the Downward Path

During the last years of President Woodruff's life there had been a slow decline of the feeling that it was necessary for self-protection that the hierarchy should preserve a political control over the people. I cannot say that the feeling had wholly passed. It had continued to show itself, here and there, whenever a candidate was so pertinacious in his independence that words of disfavor were sent out from Church headquarters in one of those whispers that carry to the confines of the kingdom of the priests. But the progress was apparent. The tendency was clear. And in 1898 there was neither internal revolt nor external threat to provoke a renewal of the exercise of that force which is necessarily despotic if it be used at all.

Yet, in September, 1898, President Snow, if he did not instigate, at least authorized the candidacy of Brigham H. Roberts for Congress—a polygamist who had been threatened with excommunication for his opposition to the "political manifesto" of 1896 and who had recanted and made his peace with the hierarchy. His election, now, would be a proof that the Church could punish a brilliant orator and courageous citizen in the time of his independence and then reward him in the day of his submission; and the authorities would thus demonstrate to all the people that the one way to political preferment lay through the annihilation of self-will and the submergence of national loyalty in priestly devotion. Such a candidacy was a sufficient shame to the state; but there was also a United States Senatorship to be bestowed; and it was deliberately bargained for, between the Church authorities and a man who deserved better than the alliance into which he entered.

Alfred W. McCune was a citizen of Utah who had gone out from the territory in the days of its poverty (and his own), had made a fortune in British Columbia and Montana, and had returned to his home state to enrich it with his generosities. He was not a Mormon, but he had wide Mormon connections. He spent his millions in public enterprises and benefactions; and the Church had benefited in the sum of many thousands by his subscriptions to its funds and institutions.

Apostle Heber J. Grant, a Republican by sentiment but a Democrat by pretension, was selected by President Snow to barter the Senatorship to McCune. There can be no doubt of it. Everyone immediately suspected it. Letters from Grant, published in the newspapers of January, 1899, subsequently confirmed it. And President Snow's actions, toward the end of the campaign, proved it.

The other candidates were Judge O. W. Powers, a prominent Democrat; William H. King, also a Democrat, a former member of Congress and at one time a Federal judge; and myself as an independent Silver Republican. I had not allied myself with the Democrats after withdrawing from the Republican convention of 1896, and the Republican machine in Utah (thanks to the power of the "interests") had repudiated me, in September, 1898, by adopting a platform that refused to support as Senator any man who had opposed the Dingley Tariff Bill. But I had the votes of my own county of Weber, and some other votes that had been pledged to me before the election of members of the legislature; and though my return to the Senate seemed plainly impossible, I went into the fight in fulfillment of understandings which I had with progressive elements in Utah and with the "insurgents," of that day, in Washington.

During the campaign to elect members of the Legislature, I supported the Democratic State and Congressional ticket. Brigham H. Roberts had been nominated for Congress on this ticket despite the protests of my father and many others who foresaw the evil results of electing a polygamist. I accepted Roberts' nomination as proof that this question must be settled anew at Washington; and I contented myself with predicting, throughout the campaign, that the House of Representatives would determine whether it would admit a polygamist and a member of the hierarchy as a lawmaker, and would so forever dispose of these ecclesiastical candidacies of which Utah refused to dispose for itself. (And it is a fact that since the prompt exclusion of Roberts from the House of Representatives no known polygamist has been elected to either House of Congress.)

A Democratic legislature was elected, and A. W. McCune was put forward prominently as a candidate for the United States senatorship. He was assisted by his own newspaper, the Salt Lake Herald, by numberless business interests, cleverly by the Deseret News (the organ of the hierarchy) flagrantly and for financial reasons by Apostle Heber J. Grant, and

incidentally by the Smiths on behalf of the Church. Also a Republican assistance was given him by my former colleague in the Senate, Arthur Brown, who specialized as an opponent to my candidacy.

My old campaign manager, Ben Rich, had been withdrawn from me by a Church order appointing him in control of the Eastern missions. I was without the support of either the Democratic or Republican organizations: my following was a personal one: and consequently the attack upon me chiefly took the form of stories of personal immorality, privately circulated. These stories culminated in a motion before the Woman's Republican Club, demanding my withdrawal from the Senatorial contest on the ground of "gross misconduct"—a motion introduced by a Mrs. Anna M. Bradley, a woman politician (who was a stranger to me), with the assistance of Mrs. Arthur Brown, wife of the former Senator.

If I ever had any resentment against these unfortunate women for allowing themselves to be used as the agents of slander, it passed in the miseries that overtook them later; for Mrs. Brown died of the scandal of her husband's intimacy with Mrs. Bradley, and Mrs. Bradley shot and killed ex-Senator Brown, in a Washington hotel, because he refused to marry her and recognize her child after her divorce from her husband.

My anger then, and since, was not against the women, but against the men who hid behind them—against Apostle Heber J. Grant and Apostle John Henry Smith and their tool, ex-Senator Brown. In my anger I decided to take an action that looked as desperate as it proved successful. I hired the Salt Lake Theatre—for a night (February 9, 1899), and announced that I would speak on "Senatorial Candidates and Pharisees"—intending to use the opportunity of self-defense in order to attack the "financial apostles" who were selling Church influence.

In taking that step I understood, of course, that it meant the death for me of any political ambition in Utah. It meant offending my father, who besought me not to raise my hand against "the Lord's anointed," but to leave my enemies "to God's justice"—as he had always done with his. It meant a breach with many of my friends in the Church who would blindly resent my criticism of the political apostles as an encouragement to the enemies of the faith. But the part that I had taken in helping Utah to gain its statehood made it impossible for me to stand aside, now, and see all our pledges broken, all our promises betrayed. I had to offer myself as a sacrifice to

hierarchical resentment in the hope that my destruction might give at least a momentary pause to the reactionaries in their career.

It is needless that I should relate all the incidents of that wild night. The theatre was packed with people who joined me for the moment in a sympathetic protest against the disgrace of Utah. President Lorenzo Snow, his two councillors and several apostles were present, and I spoke without any reservations on account of personal relationship, my own candidacy or the possible effect upon my own affairs. I appealed to the people to prevent the sale of Utah's senatorship to McCune by Apostle Grant and the Church reactionaries; and by turning the light of publicity upon the methods that were being employed in the legislature, I made it impossible for the hierarchy to sway enough votes to elect McCune. The men who had pledged themselves to the other candidates could not be shaken from their support without a national scandal. The election settled for the time into a deadlock, in which no candidate could obtain enough votes to elect him.

Apostle Heber J. Grant started to write letters that should counteract the effect of my speech, but President Snow forbade him to continue the controversy and sent word to me that he had forbidden Grant to continue it. I did not know why President Snow wished me to feel that he was friendly to me, but I was soon to learn.

The deadlock in the legislature continued, in spite of all the efforts of the Church authorities to break it. Our political workers, summoned one by one by messengers from Church headquarters, had gone to interviews from which they did not return to us—until I had left only Judge Ed. F. Colborn (a famous character in Kansas, Colorado and Utah), and an old friend, Jesse W. Fox. One night, about a week after the meeting in the theatre, we three were sitting alone in my rooms, when the door opened and someone beckoned to Fox. He went out. Judge Colborn opened a window to see Fox getting into a carriage with a man from Church headquarters—and we knew that our last worker was gone.

He returned only to tell me that President Snow wished to see me—that if I were willing, the President would like to have me call upon him, at half past nine the following evening, in his residence. And I understood the significance of such an invitation for such an hour. I had been too often in contact with the power of the Prophets to doubt what was required of me. I was curious merely to know what form the ultimatum would take.

President Snow was then living with his youngest wife in a house a few blocks from the offices of the Presidency. I drove there in a carriage and ordered the driver to wait for me. President Snow opened the door to me himself, received me with his usual engaging smile, and ushered me into a reception room that was shut off, by portieres, from a larger parlor. There, when he had invited me to be seated, he said, winningly: "I was not sure you would come in answer to my message."

I assured him that I had not so far lost my regard for the men with whom my father was associated. "And besides," I said, "if there were no other reason, it is my place, as the younger of the two, to attend on your convenience."

"I did not know," he replied, "but that you thought me one of the 'Pharisees' of whom you spoke."

I did not accept this invitation to reply that I did not consider him one of the Pharisees. I explained merely that I had identified the Pharisees in my speech by name and deed and accusation. "Unless something there said is applicable to you, I have no charge to make against you."

He excused himself a moment to go to an infant whom we could hear crying in an inner room; and, when he returned, he had the child in his arms—a little girl, in a night gown. He sat down, petting her, stroking her hair with his supple lean hand, affectionately, and smiling with a sort of absentminded tenderness as he took up the conversation again.

This memory of him sticks in my mind as one of the most extraordinary pictures of my experience. I knew that I had come there to hear my own or some other person's political death sentence. I knew that he would not have invited me at such an hour, with such secrecy, unless the issue of our conference was to be something dark and fatal. And in the soft radiance of the lamp he sat smiling—fragile of build, almost spiritual, white-haired, delicately cultured—soothing the child who played with his long silvery beard and blinked sleepily. He inquired whether my carriage was waiting for me, and I replied that it was. He asked me to dismiss it. When I returned to the room, the little girl was resting quiet, and he excused himself to take her to her cot. I heard him closing the doors behind him as he came back. "We may now talk with perfect freedom," he announced. "There's no one else in this part of the house."

He sat down in his chair, composing himself with an air that might have distinguished one of the ancient kings. "I have sent for you to talk about the Senatorial situation. May I speak plainly to you?"

I replied that he might. He was watching me, under his gray eyebrows, with his soft eyes, in which there was a glitter of blackness but none of the rheum of old age.

"It would be most unfortunate," he said, "for us, as a people, if we failed to elect a Senator. I've had many business and other anxieties for the Church, and I want this question settled. If we act wisely—with the power and influence at our command—aid will come to me. I think you would not willingly permit our situation to become more difficult."

He must have seen a change in my expression—a change that indicated how well I understood the significance of this guarded introduction. Suddenly, his manner broke into animation, and holding out both hands to me, palms up, he said, smiling: "You must know, Brother Frank, that I had nothing to do with Mr. McCune's candidacy for the Senate, do you not? I was not responsible for what Brother Grant did. Before we go on, I want you to acquit me of responsibility for that project."

"President Snow," I replied, "I can't admit so much. I, too, wish to talk plainly—with your permission. Your responsibility is evident even to the casual observer—to say nothing of one reared as I've been. Every man in this community knows that when you point your finger your apostles go, and when you crook your finger your apostles return—and Heber J. Grant has only done what you permitted him to do with your full knowledge."

He drew himself up, coldly. "What I have done," he retorted, "has been done with the knowledge of my Councillor's."

The thrust was obvious. I replied: "If my father desires to discuss with me his responsibility for this indignity to the state, he knows I'm at his command. And if I have any charge to make, involving his good faith toward the country, I'll seek him alone."

"Very well," he said, with a frigid suavity. "We will leave that part of the question." He paused. "Last night," he continued, "lying on my bed, I had a vision. I saw this work of God injured by the political strife of the brethren. And the voice of the Lord came to me, directing me to see that your father was elected to the Senate." He studied me a moment before he added: "What have you to say?"

I answered: "It seems to me impossible. This legislature is strongly Democratic. My father's a Republican. It seems to me not only impracticable but very unwise—if it could be done."

"Never mind that," he said. "The Lord will take care of the event. I want you to withdraw from the race and throw your strength to your father. It is the will of the Lord that you do so."

"Have you a revelation to that effect also?" I asked.

He answered, pontifically, "Yes."

"You'll publish it to the world, then, the same as other revelations?"

"No," he replied. "No."

"Then I'll not obey it," I said, "because if God is ashamed of it, I am."

His air of prophetic authority changed to one of combative resolution. He explained that one of the other candidates, a strong Democrat, had agreed to accept the revelation if I would; that the two of us could give our strength to the church candidate; that the Church would turn to my father the votes that it had already in command for McCune, and my father's election would be carried.

I felt that the thumb-screws were being put on me again. For the second time I was being forced to the point of denying the Senatorship to my father by refusing him my support. And there could not have been, for me, a more vivid and instantaneous illumination of the hidden depths in this Church system—or in the individual Prophet of the cult—than was made by Snow's determined insistence that I should break my word of honor to the people of the state and of the nation, pledge that broken faith to him, induce all my supporters in the legislature to violate their covenants—Mormon and Gentile alike!—and upon his mere assumption of divine authority, direct Mormon and Gentile to stultify and disgrace themselves forever as men and public officials. There was something appalling in the calculating cruelty with which he proposed to devote us all to destruction and dishonor. There was something inhumanly malignant in the plan to use my known affection for my father in order to make me guilty of the very betrayal of the people which I had publicly denounced. I looked at him—and heard him, now, placidly, confidently, with a renewed suavity, urging me to do the thing.

"President Snow," I interrupted, "does my father know of this?"

He answered: "No."

"I'm glad of it," I said. (And I was!) "This is not the way to work out either the destiny of 'God's people' or the destiny of this state. It would place my father in a most humiliating position to be elected—at the orders of the Church—under the assumption that God Almighty had directed men to break their solemn promises to their constituents. I have as high an admiration for my father's wisdom and ability as you or the Democratic candidate who has offered to withdraw at the will of the Church, but I should be paying no honor to my father by dishonoring my pledge to my constituents and asking other men to dishonor theirs."

He dismissed me with an air of benignant sorrow!

The deadlock in the legislature continued unbroken. Among my supporters was Lewis W. Shurtliff, the President of the "Stake of Zion" in which I lived; he was one of the highest Church dignitaries in the legislature and was regarded as my foremost champion in the Senatorial contest. On the last day of the legislative session, at President Snow's instruction, my father, known as a Republican, was offered as a senatorial candidate to this Democratic legislature, and all the power of the Church influence was thrown to him. President Shurtliff's wife came to our headquarters, that night, and knelt, with a number of other ladies, to pray that her husband might be spared the humiliation of breaking his repeated promise not to desert me! We all knew that if he broke his promise, it would cause him more mental anguish than anyone else; but we knew, too, that if the command came from Church headquarters, he would have to obey it. Men broke their political pledges to their people and outraged their own feelings of personal independence or partisan loyalty, rather than offend against "the will of the Lord." The forces of the other candidates went to pieces, and on the last night of the session my father's vote reached twenty-three. (It required thirty-two votes to elect.)

The situation was saved by the action of a number of Democrats who got together and obtained a recess; when the recess was ended, a final ballot was taken, and, since no candidate had enough votes to elect him, the presiding officer, by pre-concertment, declared the joint assembly adjourned sine die, by operation of law. No Senator was elected.

But it was the last time that the Church authorities were to be balked. Since that day, they have dictated the nominations and carried the elections of the United States Senators from Utah as if these were candidates for a

church office. The present Senator, Reed Smoot, is an apostle of the Church; he obtained the Mormon President's "permission" to become a candidate, as he admitted to an investigating committee of the Senate; and when the recent tariff bill was being attacked by insurgent Republicans and carried by Senator Aldrich, Senator Smoot acted as Aldrich's lieutenant in debate, and remained to watch the defense of the "interests" when his chief was absent from the Senate chamber. (Not because Smoot was such an able defender of those "interests"! Not because his constituents would uphold his course! But because he has no constituents, and is responsible to no one but the hierarchical partners of those "interests.")

Every pledge of the Mormon leaders that the Church would not interfere in politics has been broken at every election in Utah since President Snow that night pleaded to me that he had had many business anxieties for the Church and that if we elected the Church candidate "aid" would come to him. The covenants by which Utah obtained its statehood have been violated again and again. The provisions of the state constitution have been nullified. The trust of the Mormon people has been abused; their political liberties have been denied them; their Gentile brethren have been betrayed. And all this has been done not for the protection of the people, who were threatened with no proscription—and not for the advancement of the faith, which has been free to work out its own future. It has been done as a part of the alliance between the "financial" prophets of the Church and the financial "interests" of the country—which have been exploiting the people of Utah as they have exploited the whole nation with the aid of the ecclesiastical authorities in Utah.

Chapter XI. The Will of the Lord

The Mormon leaders were now hurried down their chosen path of dishonor with a fateful rapidity. A reform movement was demanding of Washington the adoption of a constitutional amendment that should give Congress power to regulate the marriage and divorce laws of all the states in the Union. And this proposed amendment—partly inspired by a growing doubt of the good faith of the Mormon leaders—gave the politicians in Washington something to trade for Mormon votes, in the presidential campaign of 1900.

The Republicans had lost the electoral votes of Utah and the surrounding states, in 1896.

Utah was now Democratic, and its one United States Senator (who was still in office) was a Democrat. Senator Hanna's lieutenant, Perry S. Heath, came to Salt Lake City in the summer of 1900, to confer with the heads of the Mormon Church. His authority (as representative of the ruler of the Republican party) had been authenticated by correspondence; and he was received by President Snow as royalty receives the envoy of royalty.

Heath negotiated with his usual directness. In the phrase of the time, "he laid down his cards on the table, face up, and asked Snow to play to that hand." If the Mormon Church would pledge its support to the Republican party, the Republican leaders would avert the threatened constitutional amendment that was to give Congress the power to interfere in the domestic affairs of the Mormon people. But if the Church denied its support to the Republican party, the constitutional amendment would be carried, and the Mormons, in their marriage relations, would be returned to the Federal jurisdiction from which they had escaped when the territory was admitted to statehood.

The sentiment of the country was known to be in favor of giving Congress such power. A strong body of reformers was urging the amendment, and the Church leaders had sent Apostle John Henry Smith and Bishop H. B. Clawson to lobby against it. After consulting with my father, I had written to President Snow pointing out the danger to the Mormons of

having a lobby opposing such an amendment—for I was not then aware of the secret return to the practice of polygamy, after 1896. President Snow replied to me (in a message of guarded prudence) that although the Church inhibited plural marriage and did not intend to allow the practice, he was opposed to the interference of Congress in the domestic concerns of the other states of the Union!

He made his "deal" with Perry Heath. Church messengers were sent out secretly to the Mormons in Idaho, Wyoming, Colorado, Nevada, Montana, Washington, Oregon, California and the territories, with the whispered announcement that it was "the will of the Lord" that the Republicans should be aided. Utah went Republican; the Mormons in the surrounding states either openly supported, or secretly voted for McKinley; and the constitutional amendment was "side tracked" and forgotten.

Utah elected a Republican legislature. Apostle Reed Smoot applied to President Snow for permission to become a candidate for the United States Senatorship, and obtained a promise that if he stood aside, for the time, he should receive his reward later. President Snow had decided that Thomas Kearns, already an active candidate, was the man whom the Church would support—since Mr. Kearns' ability, his wealth and his business connection promised greater advantages for the state and (under cunning manipulation by the priests) greater advantages for the Church than the election of any other candidate. And all this may be fairly said without assuming that there was any definite arrangement between the Church and any friends of Mr. Kearns.

Kearns was associated with Senator Clark of Montana and R. C. Kerens of St. Louis in building a railroad from Salt Lake to Los Angeles, and the Church owned some fifteen miles of track that had been laid from Salt Lake City, as the beginning of a Los Angeles line. It was apparently assumed by President Snow that Kearns' election to the Senate would facilitate the sale of this Church railroad to the Clark-Kearns syndicate. The Church had a direct interest in numerous iron and coal properties in Southern Utah, and many members of the Church also had private properties there, which the Los Angeles line would develop. Some of Kearns' friends were negotiating for the purchase of Church properties, and one of his partners was proposing to buy (and subsequently bought) the Church's "Amelia Palace,"

a useless and expensive property which Brigham Young had built for his favorite wife, and which the Church had long been eager to sell.

My father had been in ill-health for some months and he was away from Utah a large part of the time. President Snow took counsel of his Second Councillor, Joseph F. Smith, and of Apostle John Henry Smith; and to the Smiths, he indicated Thos. Kearns as the one whose election to the United States Senate might do most to advance Snow's concealed purpose. But the Smiths had other plans, that were equally advantageous to the Church and more advantageous to the Smiths; they rebelled against President Snow's dictation, and he ordered them both away on temporary "missions."

As Joseph F. Smith was leaving the President's offices, in a rage, he met an old friend, Joseph Howell, who (at this writing) is a member of Congress from Utah, and was then a member of the Utah legislature. He told Smith that President Snow had sent for him, and Smith, controlling himself—without betraying any knowledge of the probable purpose of Snow's summons to Howell—said affectionately: "Brother Howell, I want you to make a promise to me on your honor as an elder in Israel. I want you to pledge yourself never to vote in this legislature for Thomas Kearns as Senator. I ask it as your friend, and as a Prophet to the people."

Howell gave his promise, and proceeded to his interview with President Snow. There he received the announcement that it was "the will of the Lord" that he should vote for Kearns, and he had to reply that he had already received an inspired instruction, on this point, from a Prophet of the Lord, and had given his pledge against Kearns.

The incident became one of the jokes of the campaign, for Howell held to his promise to Smith (and was subsequently rewarded by Smith with a seat in Congress), and President Snow was compelled to waive the question of conflicting "revelations."

Kearns was elected. But he had had a powerful political machine of his own, and he had been supported by a strong Gentile vote. He immediately showed his independence by refusing to take orders from the political Church leaders. He declined, further, for himself and his financial confreres, to engage with the Church in business affairs. Many charges were made that he was breaking his agreement of cooperation with the authorities, but there never has been produced any evidence of such an agreement, and I do not

believe (from my knowledge of Senator Kearns) that the agreement was ever made.

The railroad into Southern Utah was later built by the Harriman interests in combination with Clark and Kearns; but there, too, Snow was disappointed. The expected development of the Church properties proved far less profitable than had been supposed, and the financial prophecies of the Seer and Revelator were not fulfilled.

By this time it was abundantly evident that some of the Church leaders intended to rule their people in politics with an absolutism as supreme as any that Utah had ever known in the old days. And for these leaders to maintain their authority—despite the covenant of their amnesty, the terms of Utah's statehood and the provisions of the constitution—and to maintain that authority against the robust American sentiment that would be sure to assert itself—it was necessary that they should have the most effective political protection afforded by any organization in the whole country. The ideal arrangement of evil was offered to them by the men then in temporary leadership of the Republican party. The Prophets were able to make the Republican party a guilty partner of their perfidy by making it a recipient of the proceeds of that perfidy, and to assure themselves protection in every religious tyranny so long as they did not run counter to Republican purpose.

For the moment, the Church took more benefit from the partnership than it conferred. The result of the presidential elections of 1900 showed that the Republicans could have elected their ticket without any help from the Prophets. But without the help of the dominant party the Prophets could not have renewed the rule of the state by the Church could not have prevented the passage of a constitutional amendment punishing polygamy by Federal statute—and could not have obtained such intimate relation and commanding influence with the great "interests" of the country.

Throughout all these miserable incidents, I had a vague hope that they would prove merely temporary and peculiar to the term of Snow's presidency. He was now in his eighty-sixth year. My father was next in succession for the Presidency, and he was seventy-three. He had remained personally faithful to every pledge that he had made to the nation, and though he had been powerless to prevent the breaches of covenant that had followed the sovereignty of statehood, I knew that he had opposed some of them and been a willing party to none. It is true that he had become a

director of the Union Pacific Railway and was close to the leading financiers of the East; but his Union Pacific connection had come from the fact that he had been one of the builders of the road that had afterward merged in the Oregon Short Line; and his financial relations had been those of a financier and not a politician. In all the years that I had been working with him, I had never known him to have any purpose that was not communistic in its final aspect and designed for the good of his people.

Up to his seventieth year, he had shown no ill result of his early hardships. Living the abstemious life of the orthodox Mormon, to whom wine, tobacco and even tea and coffee are prohibited, he had seemed inexhaustibly robust and untiring. But almost from the day of President's Snow accession to office—deprived of the sustaining consciousness of the responsibilities of leadership—his physical strength gave signs of breaking. In the fall of 1900 he made a trip to the Sandwich Islands, to recuperate, and to assist at the fiftieth anniversary of the Mormon mission that he had founded there; but the Utah winter proved too rigorous for him on his return, and in March, 1901, he was taken to California—to Monterey. In April the word came to me in New York that he was sinking.

I found him in a cottage overlooking the beautiful Bay of Monterey and its wooded slope; and the doctors in attendance told me that he had been kept alive only by the determination to see me before he died. There was no hope. He had still a clear mind, but with ominous lapses of unconsciousness that foreboded the end; and in these intervals of coma, as we wheeled him to and fro on the veranda in an invalid chair—in an attempt to refresh him with the motion of the sea air—he would swing his right hand upward, with an old pulpit gesture, and say "Priesthood! Priesthood!" as if in that word he expressed the ruling thought of his life, the inspiration that had sustained his power, the obligation that had governed him in his direction of his people.

On the afternoon of the 11th of April, he was lying in a stupor on a couch before an open window, with the sound of the surf in the quiet room. One of the doctors entered, looked at him intently, and said to me: "I can do nothing more here—and my patients need me in San Francisco. He can't last long. He'll probably never recover consciousness. If there's anything imperative—anything you must say to him—any word you wish to have from him—you could perhaps rouse him"—I said "No." We had never intruded upon any mood of his silence during his masterful life; and I felt a

jealous rebellion against the idea that we should intrude now upon this last, helpless silence of unconsciousness. The doctor left us. I summoned the other members of the family from the veranda to the bedside. He lay motionless and placid, scarcely breathing, his eyes closed, his hands folded. In accordance with the rites of the Church, we laid our hands on his head, while my eldest brother said the prayer of filial blessing that "sealed" the dying man to eternity.

In the silence that followed the last "Amen" of the prayer, he opened his eyes, and said in a steady, strong voice: "You thought I was passing away?"

We replied that we had seen he was very weak.

With a glance at the door through which the physician had departed, he said resolutely: "I shall go when my Father calls me—and not till then. I shall know the moment, and I will not struggle against His command. Lift me up. Carry me out on the balcony I want to see the water once more. And I want to talk with you."

To me, it was the last struggle of the unconquerable will that had silently, composedly, cheerfully fought and overcome every obstacle that had opposed the purposes of his manhood for half a century. He would not yield even to death at the dictation of man. He would go when he was ready—when his mind had accepted the inevitable as the decree of God.

We sat around his couch on the veranda, and for two hours he talked to us as clearly and as forcibly as ever. He spoke of the Church and of its mission in the world, with all the hope of a religious altruist. From the humblest beginnings, it had grown to the greatest power. From the depths of persecution, it had risen to win favor from the wisest among men. It had abolished poverty for hundreds of thousands, by its sound communal system. In its religious solidarity, it had become a guardian and administrator of equal justice within all the sphere of its influence. It was full of the most splendid possibilities of good for mankind.

With his eyes fixed on the sea—facing eternity as calmly as he faced that great symbol of eternity—he voiced the sincerity of his life and the hope that had animated his statesmanship. In an exaltation of spirituality that made the moment one of the sublime experiences of my life, he adjured us all to hold true to our covenants. I do not write of his personal words of love and admonition to the members of his family. I wish to express only the aspects that may be of public interest, in his last aspirations—for these were

the aspirations of the Mormon leaders of the older generation, whom he represented—and they are the aspirations of all the wise among the Mormons today, whatever may be the folly and the treachery of their Prophets.

Ten hours later, he was dead.

I cannot pretend that I had any true apprehension, then, of what his loss meant to the community. I had no clearer vision of events than others. I felt that I had no longer any tie to connect me closely with the government of the Church, and I was willing to stand aside from its affairs, believing that the momentum of progress imparted to it would carry it forward. The nation had cleared the path for it. Its faith, put into practice as a social gospel, had been freed of the offensive things that had antagonized the world. My father's last messages of hope remained with me as a cheering prophecy.

At his funeral in the great tabernacle, President Snow put forward a favorite son, Leroy, to read an official statement in which the President took occasion to deny that my father had dictated the recent policies of the Church: those policies, he said, had been solely the President's. (He is welcome to the credit of them!) Joseph F. Smith showed more generosity of emotion, now that his path of succession was clear of the superior in authority whom he had so long regarded enviously; and he spoke of my father, both privately and in public, in a way that won me to him.

The shock of grief had perhaps "mellowed" me. I felt more tolerant of these men, since I was no longer necessarily engaged in opposing them. When President Snow died (October, 1901), I shared only the general interest in the way Joseph F. Smith set about asserting his family's title to rulership of the "Kingdom of God on Earth;" for, in effect, he notified the world that his branch of the Smith family had been designated by Divine revelation to rule in the affairs of all men, by an appointment that had never been revoked. He has since made his cousin, John Henry Smith, his First Councillor; and he has inducted his son Hyrum into the apostolate by "revelation." This latter act roused the jealousy of the mother of his son Joseph F. Smith, Jr., and the amused gossip of the Mormons predicted another revelation that should give Joseph Jr. a similar promotion. The revelation came. So many others have also come that the Smith family is today represented in the hierarchy by Joseph F. Smith, President, "Prophet, Seer and Revelator to all the world;" John Smith (a brother) presiding

Patriarch over the whole human race; John Henry Smith (a cousin) Apostle and First Councillor to the President; Hyrum Smith and Joseph F. Smith (sons) Apostles; George A. Smith (son of John Henry) apostle; David S. Smith (son of Joseph F.) Councillor to the presiding Bishop of the Church and in line of succession to the bishopric; and Bathseba W. Smith, President of the Relief Societies. [FOOTNOTE: She has died since this was written.]

As Joseph F. Smith has still thirty other sons—and at least four wives who are not represented in the apostolate—there may yet be a quorum of Smiths to succeed endlessly to the Presidency and make the Smith family a perpetual dynasty in Utah.

It is one of the fascinating contradictions of Mormonism that many of the sincere people—who smilingly predicted the Divine interposition by which this family succession was founded—accept its rule devoutly. "The Lord," they will tell you, "will look after the Church. If these men are good enough for God, they are good enough for me. I do not have to save the Kingdom." And they continue paying their devotion (and their tithes) to a family autocracy whose imposition would have provoked a rebellion in any other community in the civilized world!

It is "the will of the Lord!"

Chapter XII. The Conspiracy Completed

The Smiths were no sooner firm in power than rumors began to circulate of a recrudescence of plural marriage, and I heard reports of political plots by which the Prophets were to reestablish their autocracy in worldly affairs in the name of God. I sought to close my mind against such accusations, for I remembered how often my father had been misjudged, and I felt that nothing but the most direct evidence should be permitted to convince me of a recession by the Church authorities from the miraculous opportunity of progress that was now open to their leadership. Such direct evidence came, in part, in the state elections of 1902.

The Utah Democrats re-nominated Wm. H. King for Congress; Senator Joseph L. Rawlins was their candidate to succeed himself in the United States Senate. The Republicans nominated President Smith's friend, Joseph Howell, for Congress; and there began to spread a rumor that Apostle Reed Smoot was to become a Republican candidate for the Senatorship under an old promise given him by President Snow and now endorsed by President Smith. I had been made state chairman of the Democratic party; and with the growing report of Apostle Smoot's candidacy, I observed a gradual cessation of political activity on the part of those prominent Democrats who were close to the Church leaders.

Now, our party was not making war on the Church nor on any of its proper missions in the world. Our candidates were capable and popular men against whom no just ecclesiastical antagonism could be raised. We were asking no favors from the Church. And we were determined to have no opposition from the Church without a protest and an understanding.

For this reason—after consulting confidentially with the leaders of our party—undertook to make a personal visit to President Smith's office to demand that the Church authorities should keep their hands out of politics. But even while I discussed the matter with our party leaders, I was afraid that some of them might betray our concerted purpose to Church headquarters. And my fear was well grounded. When I went to the offices of the Presidency, the authorities—for the first, last and only time—refused

to see me; and the secretary betrayed a knowledge of my mission by telling me that I should hear from some one of the hierarchy, later.

Two or three days afterward, Apostle M. F. Cowley came to me with word that my call had been considered and that he had been deputed to talk with me. We appointed a time for conference in my rooms at Democratic headquarters, where we spent the large part of a day in consultation. And since the argument between us covered the whole ground of Apostle Smoot's candidacy, I wish to give an account of that interview, as a brief exposition of some of the present-day aspects of the Church's interference in politics.

Apostle Cowley and I had been boyhood friends. He had been one of the older students at the school that I had attended as a child; and I knew the integrity and directness of his character. He was a stocky, strong man, with a wholesome sort of face, brown with the sunburn of his missionary travels in Canada and in Mexico. (He had been, in fact, solemnizing plural marriages in these polygamous refuges—as we found out later.)

As soon as it was clearly understood between us that I represented the Democratic state committee and he represented the Church authorities, I asked for an explanation of Apostle Smoot's candidacy.

Cowley began by admitting the candidacy, which President Smith had endorsed (he said) in spite of the opposition of some of the apostles. He argued that Apostle Smoot was only exercising his right of American citizenship in aspiring to the Senatorship; and he explained that the Church authorities did not see why the Church should be drawn into the campaign.

But, as I pointed out to him, the Church had already drawn itself in. It had held a solemn conclave of its hierarchy to authorize an apostle's candidacy. The opponents of Church rule would circulate the fact; in any close campaign, the apostle's friends would use the fact upon the faithful; and the Church would be compelled to support its apostle in an assumed necessity of defending itself.

Perhaps I was objectionably forceful in my reply to him. With his characteristic gentleness, he rebuked me by recalling that President Woodruff had once taken him into "sacred places," assured him that "Frank Cannon, like David, was a man after God's own heart," and asked him to "labor" for me in politics. If it had been right for the Prophet of God to favor me, why was it not right for the Prophet now to favor some one else?

My personal regard for Apostle Cowley kept me from showing the amusement I felt at finding myself in this new scriptural role remembering how President Woodruff had once devoted me to destruction like another Isaac on the altar of Church control. I replied to Cowley, as soberly as I could, that I had never consciously received the aid of any Church influence; that I had always objected to its use, either for or against either party; that I could oppose it now with free hands.

He retreated upon the favorite argument of the ecclesiasts: that an apostle did not relinquish his citizenship because of his Church rank; that the very political freedom which we demanded, to be effective, must apply to all men, in or out of the Church. He asked naively: "What did we get statehood for—and amnesty—and our political rights—if we're not to enjoy them?"

The answer to that was obvious: The Mormon Church is so constructed that the apostle carries with him the power of the Church wherever he appears. The whole people recognize in him the personified authority of the Church; and if an apostle were allowed to make a political campaign without a denunciation from the other Church authorities, it would be known that he had been selected for political office by "the mouthpiece of the Almighty." I cited the case of Apostle Moses Thatcher as proof that the Church did exercise power openly to negative an apostle's ambition. If it failed now to rebuke Smoot, this very failure would be an affirmative use of its power in his behalf; all Mormons who did not wish to raise their hands "against the Lord's anointed," would have to support Smoot's legislative ticket, regardless of their political convictions; and all Gentiles and independent Mormons would have to fight the intrusion of the Church into open political activities.

Cowley replied that "the brethren"—meaning the hierarchy—believed that a Mormon should have as many political rights, as a Catholic; and he asked me if I would object to seeing a Catholic in the Senate.

Of course not. There are, and have been, many such. "But suppose," I argued, "that the Pope were to select one of his Italian cardinals to come to this country and be naturalized in some state of this Union that was under the sole rule of the Roman Catholic Church; and suppose that still holding his princedom in the Catholic Church and exercising the plenary authority conferred on him by the Pope—suppose he were to appear before the Senate in his robes of office, with his credentials as a Senator from his

Church-ruled state—all of this being a matter of public knowledge—do you think the Senate would seat him? Certainly not. Yet the cases are exactly analogous. We were but lately alien and proscribed. We were admitted into the Union on a covenant that forbade Church interference in politics. It is the whole teaching of the Church that a Prophet wears his prophetic authority constantly as a robe of office. The case of Moses Thatcher is proof to the world that the Church appoints and disappoints at its pleasure. I don't believe that Smoot, if elected, will be allowed to hold his seat, and—if he is allowed to hold it—a greater trouble than his exclusion will surely follow. For, with the princes of the Mormon Church holding high place in the national councils—and using the power of the Church to maintain themselves there—we are assuring for ourselves an indefinite future of the most bitter controversy."

When Cowley had no more arguments to offer, he said: "Well, the Prophet has spoken. That's enough for me. I submit cheerfully when the will of the Lord comes to me through his appointed servants. The matter has been decided, and it does not lie in your power—or anyone else's—to withstand the purposes of the Almighty." He rose and put his hand on my shoulder, affectionately. "Your father is gone, Frank. I loved him very dearly. I hope that you are not going to be found warring against the Lord's anointed."

"Mat," I replied, "you have already pointed out that Apostle Smoot appears in politics only as an American citizen. For the purposes of this fight—and to avoid the consequences that you fear I'll regard him as a politician merely, and fight him as such."

"But, you know, Frank," he remonstrated, "he has been consecrated to the apostleship, and I'm afraid that you'll overstep the bounds."

"Mat," I assured him, "I'll watch carefully, and unless he makes his lightning changes too fast, I'll aim my shots only when he's in his political clothes. If the change is too indefinite, blame yourselves and not us. The whole teaching of the Church is that an apostle must be regarded as an apostle at all times; but the whole teaching of politics is that all men should appear upon equal terms—in this country. That's why we insist that no apostle should become a candidate for public office."

Cowley took his departure with evident relief. He had discharged his ambassadorial duty—and given me the warning which he had been

authorized to deliver—without a rupture of our personal friendship. And I saw him go, for my part, in a sorrowful certainty that the Church had thrown off all disguise and proposed to show the world, by the election of an apostle to the United States Senate, that the "Kingdom of God" was established in Utah to rule in all the affairs of men. I knew that if Smoot were excluded from the Senate, his exclusion would be argued a proof that the wicked and unregenerate nation was still devilishly persecuting God's anointed servants, to its own destruction; and, if he were permitted to take his seat, that this fact would be cited to the faithful as proof that the Prophets had been called to save the nation from the destruction that threatened it!

Of course, throughout the campaign that followed, the Church's newspapers and many of its political workers kept protesting publicly that the election of the Republican legislative ticket did not mean the election of Apostle Smoot to the Senate. But by means of the authoritative whisper of ecclesiasts—carried by visiting apostles to Presidents of Stakes, from them to the bishops, and from the bishops to the presiding officers of subsidiary organizations—the inspired order was given to the faithful that they must vote for the legislators who could be relied upon to do the will of the Lord by voting for the Lord's anointed prophet, Apostle Reed Smoot. This message was delivered to the sacred Sunday prayer circles. Even Senator Rawlins' mother received it, from one of the ecclesiastical authorities of her ward, who instructed her to vote against the election of her own son; and it was "at the peril of her immortal soul" that she disobeyed the injunction. Long before election day, every Mormon knew that he had been called upon by the Almighty to sacrifice his individual conviction in politics to protect his "assailed Church."

The profound effectiveness of that appeal needs no further proof than the issue of the election. King and Rawlins, the popular leaders of the Democracy in a state that had but recently been overwhelmingly Democratic—after a campaign in which they studiously avoided an attack upon the Church—were overwhelmingly defeated. The Republican legislative ticket was carried. Apostle Smoot was elected to the United States Senate; and on January 21, 1903, Governor Wells issued to him a certificate of election.

Five days later, a number of prominent citizens signed a protest, to President Roosevelt and the Senate, against allowing Apostle Smoot to take his seat. And the grounds of the protest, briefly stated, were these: The Mormon priesthood claimed supreme authority in politics, and such authority was exercised by the first presidency and the twelve apostles, of whom Smoot was one. They had not only not abandoned the practice of political dictation, but they had not abandoned the belief in polygamy and polygamous cohabitation; they connived at and encouraged its practice, sought to pass laws that should nullify the statutes against the practice, and protected and honored the violators of those statutes. And they had done all these things despite the public sentiment of the civilized world, in violation of the pledges given in procuring amnesty and in obtaining the return of the escheated Church property, contrary to the promises given by the representatives of the Church and of the territory in their plea for statehood, contrary to the pledges required by the Enabling Act and given in the State constitution, and contrary to the laws of the State itself.

These charges were supported by innumerable citations from the published doctrines of the Church, and from the published speeches and sermons of the Prophets. Evidence was offered of the continuance of polygamous cohabitation (since 1890) by President Smith, all but three or four of the apostles, the entire Presidency of the Salt Lake Stake of Zion, and many others. New polygamy was specifically charged against three apostles, and against the son of a fourth. A second protest, signed by John L. Leilich, repeated these grounds of objection to Apostle Smoot, and charged further that Apostle Smoot was himself a polygamist; but no attempt was made to prove this latter charge.

Upon the filing of the protest, there was a storm of anger at Church headquarters; and the ecclesiastical newspapers railed with the bitterness of anxious apprehension. Throughout Utah it seemed to be the popular belief that Apostle Smoot would be excluded—on the issue of whether a responsible representative of a Church that was protecting and encouraging law-breaking should be allowed a seat in the highest body of the nation's law-makers. But the issue against him was not to be heard until twelve months after his election, and every agent and influence of the Church was set to work at once to nullify the effect of the protest.

Every financial institution, East or West, to which the Church could appeal, was solicited to demand a favorable hearing of the Smoot case from the Senators of its state. Every political and business interest that could be reached was moved to protect the threatened Apostle. The sugar trust magnates and their Senators were enlisted. The mercantile correspondents of the Church were urged to write letters to their Congressmen and to their Senators, and to use their power at home to check the anti-Mormon newspapers. The Utah representative of a powerful mercantile institution, that had vital business relations with the Church, confessed to me that he had been called East to consult with the head of his company, who had been asked to use his influence for Smoot. "I could not advise our president," he said, "to send the letter that was demanded of him. And yet I couldn't take the responsibility of injuring the company by advising him to refuse the Church request. You know, if we had refused it, point-blank, they would have destroyed every interest we had within the domain of their power. I should have been ruined financially. All our stockholders would have suffered. They would never have forgiven me."

The president of the company failed to send the letter. His failure became known, through Church espionage and the report of the Church's friends in the Senate. Pressure was brought to bear upon him; and, with the aid of his Utah representative, he compromised on a letter that did partial violence to his conscience and partially endangered his business relations with the Church.

Both these men were aware that the Church had broken its covenants to the country, and that Apostle Smoot could not be either a loyal citizen of the nation or a free representative of the people of his state. "I did not like the compromise we made," my friend told me. "I feel humiliated whenever I think of it. But I tried to do the best I could under the circumstances."

The results of this pressure of political and business interests upon Washington showed gradually in the tone of the political newspapers throughout the whole country. It showed in the growing confidence expressed by the organs of the Church authorities in Utah. It showed in the cheerful predictions of the Prophets that the Lord would overrule in Apostle Smoot's behalf. It showed in Smoot's exercise of an autocratic leadership in the political affairs of the State.

He was allowed to take his oath of office as Senator on March 5, 1903; the protests against him were referred to the Senate Committee on Privileges and Elections for a hearing (January 27, 1904); and a contest began that lasted from January, 1904, to February, 1907. During those years was completed the business and political conspiracy between financial "privilege" and religious absolutism, of which conspiracy this narrative has described the beginning and the growth.

It is almost impossible to expose the progression of incident by which the end of that conspiracy was approached—since it was necessarily approached in the darkest secrecy. But several indications of the method and the progress did show, here and there, on the surface of events; and these indications are powerfully significant.

As early as 1901 it had become known that Apostle Smoot was negotiating a sale, to the sugar trust, of the Church's sugar holdings. On May 13, 1902, the president of the trust reported to the trust's executive committee—

[FOOTNOTE: See a synopsis of the minutes of the trust's executive committee, published in Hampton's Magazine, in January, 1910.]

that he had agreed to buy a one-half interest in the consolidation of the Mormon factories of La Grande, Logan and Ogden. (The following day, May 14, 1902, is given by Apostle Smoot as the day on which he obtained President Joseph F. Smith's permission to become a candidate for the Senatorship.) On June 24, 1902 the sugar trust's executive committee was informed of the trust's purchase of one-half of the capital stock of these three Church-owned sugar companies. On July 5, 1902 the three companies were consolidated under the name of the Amalgamated Sugar Company, with David Eccles, polygamist, trustee of Church bonds, and protege of Joseph F. Smith, as President; and the sugar trust took half the stock, in exchange for its holdings in the three original companies.

Similarly, in this same year, the old Church-owned Utah Sugar Company increased its stock in order to buy the Garland sugar factory, and the sugar trust, it is understood, was concerned in the purchase. In 1903, 1904 and 1905, the Idaho Sugar Company, the Freemont Sugar Company, and West Idaho Sugar Company were incorporated; and in 1906 all these companies were amalgamated in the present Utah-Idaho Sugar Company, of which Joseph F. Smith is president, T. R. Cutler, a Mormon, is vice-president,

Horace G. Whitney, the general manager of the Church's Deseret News, is secretary and treasurer, and other Church officials are directors. Of the stock of this company the sugar trust holds fifty-one per cent. So that between 1902 and 1906 a partnership in the manufacture of beet sugar was effected between the Church and the trust; and Apostle Smoot became a Sugar trust Senator, and argued and voted as such.

Furthermore, it was at this same period that the Church sold the street railway of Salt Lake City and its electric power company to the "Harriman interests" under peculiar circumstances—a matter of which I have written in an earlier chapter. The Church owners of this Utah Light and Railway Company, through the Church's control of the City Council, had attempted to obtain a hundred-year franchise from the city on terms that were outrageously unjust to the citizens; and finally, on June 5, 1905, a franchise was obtained for fifty years, for the company of which Joseph F. Smith was the president. On August 3, 1905, another city ordinance was passed, consolidating all former franchises, then held by the Utah Light and Power Company, but originally granted to D. F. Walker, the Salt Lake and Ogden Gas and Electric Light Company, the Pioneer Power Company and the Utah Power Company; and this ordinance extended the franchises to July 1, 1955. The properties were bonded for \$6,300,000, but it was understood that they were worth not more than \$4,000,000. They were sold to "the Harriman interests" for \$10,000,000. The equipment of the Salt Lake City street railway was worse than valueless, and the new company had to remove the rails and discard the rolling stock. But the ten millions were well invested in this public-utility trust, for the company had a monopoly of the street railway service and electric power and gas supply of Salt Lake City; and its franchises left it free to extort whatever it could from the people of the whole country side, by virtue of a partnership with the Church authorities whereby extortion was given the protection of "God's anointed Prophets."

Joseph F. Smith, of course, was already a director of Harriman's Union Pacific Railroad, a position to which he had been elected after his accession to the First Presidency. And he was so elected not because of his railroad holdings—for he came to the Presidency a poor man—and not because of his ability or experience as a financier or a railroad builder, for he had not had any such experience and he had not shown any such ability. He was elected because of the partnership between the Church leaders and the

Union Pacific Railroad—a partnership that was doubtlessly used in defense of Apostle Smoot's seat in the Senate, just as the power of the Sugar Trust was used and the influence of the whole financial confederation in politics.

Chapter XIII. The Smoot Exposure

Just before the subpoenas were issued in the Smoot investigation, I met John R. Winder (then First Councillor to President Smith) on the street in Salt Lake City, and he expressed the hope that when I went "to Washington on the Smoot case," I would not "betray" my "brethren." I assured him that I was not going to Washington as a witness in the Smoot case; that the men whom he should warn, were at Church headquarters. He replied, with indignant alarm, "I don't see what 'the brethren' have to do with this!"

But when the subpoenas arrived for Smith and the hierarchy, alarm and indignation assumed a new complexion. The authorities, for themselves, and through the mouths of such men as Brigham H. Roberts, began to boast of how they were about to "carry the gospel to the benighted nation" and preach it from the witness stand in Washington. The Mormon communities resounded with fervent praises to God that He had, through His servant, Apostle Smoot, given the opportunity to His living oracles to speak to an unrighteous people! And when the Senators decided that they would not summon polygamous wives and their children en bloc to Washington to testify (because it was not desired to "make war on women and children") some of Joseph F. Smith's several wives even complained feelingly that they "were not allowed to testify for Papa."

The first oracular disclosure made by the Prophets, on the witness stand, came as a shock even to Utah. They testified that they had resumed polygamous cohabitation to an extent unsuspected by either Gentiles or Mormons. President Joseph F. Smith admitted that he had had eleven children borne to him by his five wives, since pledging himself to obey the "revealed" manifesto of 1890 forbidding polygamous relations. Apostle Francis Marion Lyman, who was next in succession to the Presidency, made a similar admission of guilt, though in a lesser degree. So did John Henry Smith and Charles W. Penrose, apostles. So did Brigham H. Roberts and George Reynolds, Presidents of Seventies. So did a score of others among the lesser authorities. And they confessed that they were living in polygamy in violation of their pledges to the nation and the terms of their amnesty, against the laws and the constitution of the state, and contrary to the

"revelation of God" by which the doctrine of polygamy had been withdrawn from practice in the Church!

President Joseph F. Smith admitted that he was violating the law of the State. He was asked: "Is there not a revelation that you shall abide by the law of the State and of the land?" He answered, "Yes, sir." He was asked: "And if that is a revelation, are you not violating the laws of God?" He answered: "I have admitted that, Mr. Senator, a great many times here."

Apostle Francis Marion Lyman was asked: "You say that you, an apostle of your Church, expecting to succeed (if you survive Mr. Smith) to the office in which you will be the person to be the medium of Divine revelations, are living, and are known to your people to live, in disobedience of the law of the land and the law of God?" Apostle Lyman answered: "Yes, sir." The others pleaded guilty to the same charge.

But this was not the worst. There had been new polygamous marriages. Bishop Chas. E. Merrill, the son of an apostle, testified that his father had married him to a plural wife in 1891, and that he had been living with both wives ever since. A Mrs. Clara Kennedy testified that she had been married to a polygamist in 1896, in Juarez, Mexico, by Apostle Brigham Young, Jr., in the home of the president of the stake. There was testimony to show that Apostle George Teasdale had taken a plural wife six years after the "manifesto" forbidding polygamy, and that Benjamin Cluff, Jr., president of the Church university, had taken a plural wife in 1899. Some ten other less notorious cases were exposed—including those of M. W. Merrill, an apostle, and J. M. Tanner, superintendent of Church schools. It was testified that Apostle John W. Taylor had taken two plural wives within four years, and that Apostle M. F. Cowley had taken one; and both these men had fled from the country in order to escape a summons to appear before the Senate committee.

President Joseph F. Smith, in his attempts to justify his own polygamy, gave some very involved and contradictory testimony. He said that he adhered to both the divine revelation commanding polygamy and the divine revelation "suspending" the command. He said he believed that the principle of plural marriage was still as "correct a principle" as when first revealed, but that the "law commanding it" had been suspended by President Woodruff's manifesto. He said that he accepted President Woodruff's manifesto as a revelation from God, but he objected to having it

called "a law of the Church;" he insisted that it was only "a rule of the Church." He admitted that the manifesto forbidding polygamy had never been printed among the other revelations in the Church's book of "Doctrine and Covenants," in which the original revelation commanding polygamy was still printed without note or qualification of any kind. He admitted that this anti-polygamy manifesto was not printed in any of the other doctrinal works which the Mormon missionaries took with them when they were sent out to preach the Mormon faith. He claimed that the manifesto was circulated in pamphlet form, but he subsequently admitted that the pamphlet did not "state in terms" that the manifesto was a "revelation." He finally pleaded that the manifesto had been omitted from the book of "Doctrine and Covenants" by an "oversight," and he promised to have it included in the next edition!

[FOOTNOTE: He did not keep his promise. The manifesto was not added to the book of revelations until some time later, after considerable protest in Utah.]

In short, it was shown, by the testimony given and the evidence introduced, not only that the Church authorities persisted in living in polygamy, not only that polygamous marriages were being contracted, but that the Church still adhered to the doctrine of polygamy and taught it as a law of God.

President Joseph F. Smith denied the right of Congress to regulate his "private conduct" as a polygamist. "It is the law of my state to which I am amenable," he said, "and if the officers of the law have not done their duty toward me I can not blame them. I think they have some respect for me."

A mass of testimony showed why the officers of the law did not do their duty. During the anti-polygamy agitation of 1899 (which ended in the refusal of Congress to seat Brigham H. Roberts) a number of prosecutions of polygamists had been attempted. In many instances the county attorney had refused to prosecute even upon sworn information. Wherever prosecutions were had, the fines imposed were nominal; these were in some cases never paid, and in other cases paid by popular subscription. It was testified that in Box Elder County subscription lists had been circulated to collect money for the fines, but that the fines were never paid, though the subscriptions had been collected. All the prosecutions had been dropped, at last. It was pleaded that there was a strong Gentile sentiment against these

prosecutions, because of the hope that no new polygamous marriages were being contracted; but it was shown also, that the Church authorities controlled the enforcement of the law by their influence in the election of the agents of the law.

The Church controlled, too, the making of the law. For example, testimony was given to show that in 1896 the Church authorities had appointed a committee of six elders to examine all bills introduced into the Utah legislature and decide which were "proper" to be passed. In the neighboring state of Idaho, the legislature, in 1904, unanimously and without discussion passed a resolution for a new state constitution that should omit the anti-polygamy test oath clauses objectionable to the Mormons; and in this connection it was testified that the state chairman of both political parties in Idaho always went to Salt Lake City, before a campaign, to consult with the Church authorities; that every request of the authorities made to the Idaho political leaders was granted; that six of the twenty-one counties in Idaho were "absolutely controlled" by Mormons, and the "balance of power" in six counties more was held by Mormons; and that it was "impossible for any man or party to go against the Mormon Church in Idaho." Apostle John Henry Smith testified that one-third of the population of Idaho was Mormon and one-fourth of the population of Wyoming, and that there were large settlements in Nevada, Colorado, California, Arizona and the surrounding states and territories.

A striking example of the power of the Church as against the power of the nation was given to the Senate committee by John Nicholson, chief recorder of the temple in Salt Lake City. He had failed to produce some of the temple marriage records for which the committee had called. He was asked whether he would bring the books, on the order of the Senate of the United States, if the First Presidency of the Church forbade him to bring them. He answered: "I would not." He was asked: "And if the Senate should send the Sergeant-at-Arms of the Senate and arrest you and order you to bring them" (the records) "with you, you would still refuse to bring them, unless the First Presidency asked you to?" He answered, "Yes, sir."

It was shown that classes of instruction in the Mormon religion had been forced upon teachers in a number of public schools in Utah by the orders of the First Presidency. (These orders were withdrawn after the exposure before the committee.) Church control had gone so far in Brigham City,

Box Elder County, Utah, that in a dispute between the City Council and the electric lighting company of the city, the local ecclesiastical council interfered. In the same city, two young men built a dancing pavilion that competed with the Church-owned Opera House; the ecclesiastical council "counselled" them to remove the pavilion and dispose of "the material in its construction;" they were threatened that they would be "dropped" if they did not obey this "counsel;" and they compromised by agreeing to pay twenty-five percent of the net earnings of their pavilion into the Church's "stake treasury." In Monroe ward, Sevier County, Utah, in 1901, a Mormon woman named Cora Birdsall had a dispute with a man named James E. Leavitt about a title to land. Leavitt went into the bishop's court and got a decision against her. She wrote to President Joseph F. Smith for permission either to appeal the case direct to him or "to go to law" in the matter; and Smith advised her "to follow the order provided of the Lord to govern in your case." The dispute was taken through the ecclesiastical courts and decided against her. She refused to deed the land to Leavitt and she was excommunicated by order of the High Council of the Sevier Stake of Zion. She became insane as a result of this punishment, and her mother appealed to the stake president to grant her some mitigation. He wrote, in reply: "Her only relief will be in complying with President Smith's wishes. You say she has never broken a rule of the Church. You forget that she has done so by failing to abide by the decision of the mouthpiece of God." She finally gave up a deed to the disputed land and was rebaptized in 1904. (Letters of the First Presidency were, however, introduced to show that it had been the policy of the presidency—particularly in President Woodruff's day—not to interfere in disputes involving titles to land.)

It was testified that a Mormon merchant was expelled from the Church, ostensibly for apostasy, but really because he engaged in the manufacture of salt "against the interests of the President of the Church and some of his associates;" that a Mormon Church official was deposed "for distributing, at a school election, a ticket different from that prescribed by the Church authorities"—and so on, interminably.

Witness after witness swore to the incidents of Church interference in politics which this narrative has already related in detail. But no attempt was made to show the Church's partnership with the "interests;" and the power of the Church in business circles was left to be inferred from President Smith's testimony that he was then president of the Zion's

Cooperative Mercantile Institution, the State Bank of Utah, the Zion's Savings Bank and Trust Company, the Utah Sugar Company, the Consolidated Wagon and Machine Company, the Utah Light and Power Company, the Salt Lake and Los Angeles Railroad Company, the Saltair Beach Company, the Idaho Sugar Company, the Inland Crystal Salt Company, the Salt Lake Knitting Company, and the Salt Lake Dramatic Association; and that he was a director of the Union Pacific Railway Company, vice-president of the Bullion-Beck and Champion Mining Company, and editor of the Improvement Era and the Juvenile Instructor.

It was shown that Utah had not been admitted to statehood until the Federal government had exacted, from the Church authorities and the representatives of the people of Utah, every sort of pledge that polygamy had been forever abandoned and polygamous relations discontinued by "revelation from God"; that statehood had not been granted until solemn promise had been given and provision made that there should be "no union of church and state," and no church should "dominate the state or interfere with its functions;" and that the Church's escheated property had been restored upon condition that such property should be used only for the relief of the poor of the Church, for the education of its children and for the building and repair of houses of worship "in which the rightfulness of the practice of polygamy" should not be "inculcated."

Therefore the testimony given before the Senate committee by these members of the Mormon hierarchy, showed that they had not only broken their covenants and violated their oaths, but that they had been guilty of treason. What was the remedy? Jeremiah M. Wilson, a lawyer employed by the Church authorities in 1888 to argue, before a Congressional committee, in behalf of the admission of Utah to statehood, had pointed out the remedy in these words:

"It is idle to say that such a compact may be made, and then, when the considerations have been mutually received—statehood on the one side and the pledge not to do a particular thing on the other—either party can violate it without remedy to the other. But you ask me what is the remedy, and I answer that there are plenty of remedies in your own hands.

"Suppose they violate this compact; suppose that after they put this into the constitution, and thereby induce you to grant them the high privilege and political right of statehood, they should turn right around and exercise

the bad faith which is attributed to them here—what would you do? You could shut the doors of the Senate and House of Representatives against them; you could deny them a voice in the councils of this nation, because they have acted in bad faith and violated their solemn agreement by which they succeeded in getting themselves into the condition of statehood. You could deny them the Federal judiciary; you could deny them the right to use the mails—that indispensable thing in the matter of trade and commerce of this country. There are many ways in which peaceably, but all powerfully, you could compel the performance of that compact."

This argument by Mr. Wilson in 1888 was recalled by the counsel for the protestants in the investigation. It was recalled with the qualification that though Congress might not have the power to undo the sovereignty of the state of Utah it could deal with Senator Smoot. And it was further argued: "The chief charge against Senator Smoot is that he encourages, countenances, and connives at the defiant violation of law. He is an integral part of a hierarchy; he is an integral part of a quorum of twelve, who constitute the backbone of the Church.... He, as one of that quorum of twelve apostles, encourages, connives at, and countenances defiance of law."

On June 11, 1906, a majority of the committee made a report to the Senate recommending that Apostle Smoot was not entitled to his seat in the Senate. They found that he was one of a "self-perpetuating body of fifteen men, uniting in themselves authority in both Church and state," who "so exercise this authority as to encourage a belief in polygamy as a divine institution, and by both precept and example encourage among their followers the practice of polygamy and polygamous cohabitation;" that the Church authorities had "endeavored to suppress, and succeed in suppressing, a great deal of testimony by which the fact of plural marriages contracted by those who were high in the councils of the Church might have been established beyond the shadow of a doubt;" and that "aside from this it was shown by the testimony that a majority of those who give law to the Mormon Church are now, and have been for years, living in open, notorious and shameless polygamous cohabitation." Concerning President Woodruff's anti-polygamy manifesto of 1890, the majority of the committee reported that "this manifesto in no way declares the principle of polygamy to be wrong or abrogates it as a doctrine of the Mormon Church, but simply suspends the practice of polygamy to be resumed at some more convenient

season, either with or without another revelation." They found that Apostle Smoot was responsible for the conduct of the organization to which he belonged; that he had countenanced and encouraged polygamy "by repeated acts and in a number of instances, as a member of the quorum of the twelve apostles;" and that he was "no more entitled to a seat in the Senate than he would be if he were associating in polygamous cohabitation with a plurality of wives."

The report continued: "The First Presidency and the twelve apostles exercise a controlling influence over the action of the members of the Church in secular affairs as well as in spiritual matters;" and "contrary to the principles of the common law under which we live, and the constitution of the State of Utah, the First Presidency and twelve apostles dominate the affairs of the State and constantly interfere in the performance of its functions.... But it is in political affairs that the domination of the First Presidency and the twelve apostles is most efficacious and most injurious to the interests of the State.... Notwithstanding the plain provision of the constitution of Utah, the proof offered on the investigation demonstrates beyond the possibility of doubt that the hierarchy at the head of the Mormon Church has, for years past, formed a perfect union between the Mormon Church and the State of Utah, and that the Church, through its head, dominates the affairs of the State in things both great and small." And the report concluded: "The said Reed Smoot comes here, not as the accredited representative of the State of Utah in the Senate of the United States, but as the choice of the hierarchy which controls the Church and has usurped the functions of the State in Utah. It follows, as a necessary conclusion from these facts, that Mr. Smoot is not entitled to a seat in the Senate as a Senator from the State of Utah."

On the same day a minority report was presented by Senators J. B. Foraker, Albert J. Beveridge, Wm. P. Dillingham, A. J. Hopkins and P. C. Knox. They found that Reed Smoot possessed "all the qualifications prescribed by the Constitution to make him eligible to a seat in the Senate;" that "the regularity of his election" by the Utah legislature had not been questioned; that his private character was "irreproachable;" and that "so far as mere belief and membership in the Mormon Church are concerned, he is fully within his rights and privileges under the guaranty of religious freedom given by the Constitution of the United States." Having thus summarily excluded all the large and troublesome points of the

investigation, these Senators decided that there remained "but two grounds on which the right or title of Reed Smoot to his seat in the Senate" was contested. The first was whether he had taken a certain "endowment oath" by which "he obligated himself to make his allegiance to the Church paramount to his allegiance to the United States;" and the second was whether "by reason of his official relation to the Church" he was "responsible for polygamous cohabitation" among the Mormons.

As to the first charge, the minority found that the testimony upon the point was "limited in amount, vague and indefinite in character and utterly unreliable, because of the disreputable character of the witnesses"—oddly overlooking the fact that one of these witnesses had been called for Apostle Smoot; that no attempt had been made to impeach the character of this witness; that the other witnesses had been denounced, by a Mormon bishop, named Daniel Connolly, as "traitors who had broken their oaths to the Church" by betraying the secrets of the "endowment oath;" and that all the Smoot witnesses who denied the anti-patriotic obligation of the oath refused, suspiciously enough, to tell what obligation was imposed on those who took part in the ceremony.

The charge that Smoot, as an apostle of the Church, had been responsible for polygamous cohabitation was as easily disposed of, by the minority report. He had himself, on oath, "positively denied" that he had "ever advised any person to violate the law either against polygamy or against polygamous cohabitation," and no witness had been produced to testify that Apostle Smoot had ever given "any such advice" or defended "such acts." True, it was admitted that he had "silently acquiesced" in the continuance of polygamous cohabitation by polygamists who had married before 1890; but it was contended that to understand this acquiescence it was "necessary to recall some historical facts, among which are some that indicate that the United States government is not free from responsibility for these violations of the law."

In short, although Reed Smoot was one of a confessed band of law-breaking traitors, he was of "irreproachable" private character. Although the band had been guilty of every treachery, none of the band had admitted that Smoot had encouraged them in their villainies. Smoot had only "silently acquiesced"—and in this he had been no guiltier than the intimidated bystanders and the gagged victims of the outrages. Although the gang had

stolen the machinery of elections and used it to print a Senatorial certificate for Smoot, there was nothing to show that the form of the certificate was not correct. Moreover, the band operated in politics as a religious organization, and the constitution of the United States protects a man in his right of religious freedom!

Chapter XIV. Treason Triumphant

While these disclosures of the Smoot investigation were shocking the sentiment of the whole nation, the Prophets carried on the conspiracy of their defense with all the boldness of defiant guilt. In Salt Lake City, the office of the United States Marshal and even the post-office were watched for the arrival of subpoenas from Washington; men were posted in the streets to give the alarm whenever the Marshal should attempt to serve papers; and before he entered the front door of a Mormon's house, the Church sentry had entered by the back door to warn the inmates. If the Federal power had been moving in a foreign land, it could not have been more determinedly opposed by local authority. Notorious polygamists, wanted as witnesses before the Senate committee, made a public flight through Utah, couriered, flanked and rear-guarded by the power of the hierarchy. One of these law-breakers (who, it was known, had been subpoenaed) went from Salt Lake City to take secret employment in one of the Church's sugar factories in Idaho. When he was discovered there and served with the Senate requisition, he gave his word that he would appear at Washington, and then he fled with his new polygamous wife to a polygamous Mormon settlement in Alberta, Canada—a fugitive, honored because he was a fugitive, and officially sustained as a ward of the Church.

Apostles John W. Taylor and Mathias F. Cowley left the country, to escape a summons to Washington; and President Smith pleaded that he had no control over their movements, and promised that he would, if possible, bring them back to comply with the Senate subpoenas. He knew, as every Mormon and every well-informed Gentile knew, that the slightest expression of a wish from him would be the word of God to those two men. They would have gloried in going to Washington to show the courage of their fanaticism. They would never have left the country without instructions from their President. But they could not have married plural wives after the manifesto, and solemnized plural marriages for other polygamists, without Smith's knowledge and consent; their testimony would have placed the responsibility for these unlawful practices upon the Prophet; and the penalty would have fallen on the Prophet's Senator.

They not only fled, but they allowed themselves in their absence to be made the scapegoats of the hierarchy. They were proven guilty of "new polygamy" before the Senate committee; and, for the sake of the effect upon the country, they were ostensibly deposed from the apostolate by order of the President, who, by their dismissal from the quorum, advanced his son Hyrum in seniority. But their apparent degradation involved none of the consequences that Moses Thatcher had suffered. They continued their ministrations in the Church. They remained high in favor with the hierarchy. They claimed and received from the faithful the right to be regarded as holily "the Lord's" anointed" as they had ever been. They still held their Melchisedec priesthood. One of them afterward took a new plural wife. It seems to be well authenticated that the other continued to perform plural marriages; and every Mormon looked upon them both—and still looks upon them—as zealous priests who endured the appearance of shame in order to preserve the power of the Prophet in governing the nation.

Another crucial point in President Smith's responsibility was his solemnization of the plural marriage between Apostle Abraham H. Cannon and Lillian Hamlin, of which I have already written. One of the women of the dead apostle's family was subpoenaed to give her testimony in the matter. She thrice telephoned to me that she wished to consult me; but she was surrounded by such a system of espionage that again and again she failed to keep her appointment. At last, late at night, she arrived at my office—the editorial office of the Salt Lake Tribune—having escaped, as she explained, in her maid's clothes. The agents of the hierarchy had been subtly and ingeniously suggesting to her that she was perhaps mistaken in her recollection of the facts to which she would have to testify, and she was distressed with the doubt and fear which they had instilled into her mind. I could only adjure her to tell the truth as she remembered it. But on her journey to Washington she was constantly surrounded by Church "advisers;" and the effect of their "advice" showed in the testimony that she gave—a testimony that failed to prove the known guilt of the Prophet.

For the Gentiles, there had begun a sort of "reign of terror," which can be best summed up by an account of a private conference of twelve prominent non-Mormons held as late as 1905. That conference was called to consider the situation, and to devise means of acquainting the nation with the desperate state of affairs in Utah. It was independent of the political movement that had already begun; it aimed rather to organize a social

rebellion, so that we might not be dependent for all our opposition upon the annual or semi-annual campaigns of politics.

The meeting first agreed upon the following statement of facts:

"Utah's statehood, as now administered, is but a protection of the Mormon hierarchy in its establishment of a theocratic kingdom under the flag of the republic. This hierarchy holds itself superior to the Constitution and to the law. It is spreading polygamy throughout the ranks of its followers. Through its agents, it dominates the politics of the state, and its power is spreading to other common-wealths. It exerts such sway over the officers of the law that the hierarchy and its favorites cannot be reached by the hand of justice. It is master of the State Legislature and of the Governor.

"By means of its immense collection of tithes and its large investments in commercial and financial enterprises, it dominates every line of business in Utah except mines and railroads; and these latter it influences by means of its control over Mormon labor and by its control of legislation and franchises. It holds nearly every Gentile merchant and professional man at its vengeance, by its influence over the patronage which he must have in order to be successful. It corrupts every Gentile who is affected by either fear or venality, and makes of him a part of its power to play the autocrat in Utah and to deceive the country as to its purposes and its operations. Every Gentile who refuses to testify at its request and in its behalf becomes a marked and endangered man. It rewards and it punishes according to its will; and those Gentiles who have gone to Washington to testify for Smoot are well aware of this fact. Unless the Gentiles of Utah shall soon be protected by the power of the United States they will suffer either ruin or exile at the hands of the hierarchy."

When this declaration had been accepted, by all present, as truly expressing their views of the situation, it was decided that they should confer with other leading Gentiles, hold a mass meeting, adopt a set of resolutions embodying the declaration on which they had agreed, and then dispatch the resolutions to the Senate committee, as a protest against the testimony of some of the Gentiles in the Smoot case, and as an appeal to the nation for help.

But although all approved of the declaration and all approved of the method by which it was to be sent to the nation, no man there dared to stand out publicly in support of such a protest, to offer the resolutions, or to speak

for them. The merchant knew that his trade would vanish in a night, leaving him unable to meet his obligations and certain of financial destruction. The lawyer knew not only that the hierarchy would deprive him of all his Mormon clients, but that it would make him so unpopular with courts and juries that no Gentile litigant would dare employ him. The mining man knew that the hierarchy could direct legislation against him, might possibly influence courts and could assuredly influence jurors to destroy him. And so with all the others at the conference.

They were not cowards. They had shown themselves, in the past, of more than average human courage, loyalty and ability. All recognized that if the power of the hierarchy were not soon met and broken it would grow too great to be resisted—that another generation would find itself hopelessly enslaved. Every father felt that the liberties of his children were at stake; that they would be bond or free by the issue of the conflict then in course at Washington. And yet not one dared to throw down the gauntlet to tyranny—to devote himself to certain ruin. They had to prefer simple slavery to beggary and slavery combined. They had to hope silently that the power of the nation would intervene. They could work only secretly for the fulfillment of that hope.

At first, in President Roosevelt they saw the promise of their salvation. He had opposed the election of Apostle Smoot. When the report of the apostle's candidacy had first reached Washington, the President had summoned to the White House Senator Thomas Kearns of Utah and Senator Mark Hanna, who was chairman of the National Republican committee; and to these two men he had declared his opposition to the candidacy of a Mormon apostle as a Republican aspirant for a Senatorship. At his request Senator Hanna, as chairman of the party, signed a letter of remonstrance to the party chiefs in Utah, and President Roosevelt, at a later conference, gave this letter to Senator Kearns to be communicated to the state leaders. Senator Kearns transmitted the message, and by so doing he "dug his political grave" as the Mormon stake president, Lewis W. Shurtliff, expressed it.

Colonel C. B. Loose of Provo went to Washington on behalf of the Church authorities. He was a Gentile, a partner of Apostle Smoot and of some of the other Mormon leaders in business undertakings, a wealthy mining man, a prominent Republican. It was reported in Utah that his

arguments for Smoot carried some weight in Washington. President Roosevelt was to be a candidate for election; and the old guard of the Republican party, distrustful of the Roosevelt progressive policies, was gathering for a grim stand around Senator Mark Hanna. Both factions were playing for votes in the approaching national convention. I have it on the authority of a Mormon ecclesiast, who was in the political confidence of the Church leaders, that President Roosevelt was promised the votes of the Utah delegation and such other convention votes as the Church politicians could control. The death of Senator Hanna made this promise unnecessary, if there ever was an explicit promise. But this much is certain. President Roosevelt's opposition to Apostle Smoot, for whatever reason, changed to favor.

The character and impulses of the President were of a sort to make him peculiarly susceptible to an appeal for help on the part of the Mormons. He had lived in the West. He knew something of the hardships attendant upon conquering the waste places. He sympathized with those who dared, for their own opinions, to oppose the opinions of the rest of the world. He had received the most adulating assurances of support for his candidacies and his policies. It would have required a man of the calmest discrimination and coolest judgment to find the line between any just claim for mercy presented by the Mormon advocates of "religious liberty" and the willful offenses which they were committing against the national integrity.

I have received it personally, from the lips of more than one member of the Senate committee, that never in all their experience with public questions was such executive pressure brought to bear upon them as was urged from the White House, at this time, for the protection of Apostle Smoot's seat in the Senate. The President's most intimate friends on the committee voted with the minority to seat Smoot. One of the President's closest adherents, Senator Dolliver, after having signed a majority report to exclude Smoot and having been re-elected, in the meantime, by his own State legislature, to another term in the Senate—afterwards spoke and voted against the report which he had signed. Senator A. J. Hopkins of Illinois, who had supported Smoot consistently, found himself bitterly attacked, in his campaign for reelection, because of his record in the Smoot case, and he published in his defense a letter from President Roosevelt that read: "Just a line to congratulate you upon the Smoot case. It is not my business, but it is

a pleasure to see a public servant show, under trying circumstances, the courage, ability and sense of right that you have shown."

After the outrageous exposures of the violations of law, the treason and the criminal indifference to human rights shown by the rulers of the Church, if an early vote had been taken by the committee and by the Senate itself, the antagonism of the nation would have forced the exclusion of the Apostle from the upper House. Delay was his salvation. More to the President's influence than to any other cause is the delay attributable that prolonged the case through a term of three years. During that time the unfortunate Gentiles of Utah learned that, instead of receiving help from the President, they were to have only the most insuperable opposition. They believed that the President was being grossly misled; that it was, of course, impossible for him to read all the testimony given before the Senate committee, and that the matters that reached him were being tinged with other purpose than the vindication of truth and justice. But it was impossible to obtain the opportunity of setting him right. Even the women who were leading the national protest against the polygamous teaching and practices of Smoot's fellow apostles were told that the President had made up his mind and could not be re-convinced.

The Mormon appeal to his generosity was not confined to Washington. On his travels he met President Smith more than once—the Prophet being accompanied by a different wife each time—and naturally Smith made every effort to impress President Roosevelt with his earnestness, the purity of his life, and the high motives that actuated the exercise of his authority. And at this sort of pretense the Lord's anointed are expert. They themselves may be crude in ideas and coarse in method, but their diplomacy is a growth of eighty years of applied devotion and energy.

The American people are used to meeting prominent Mormons who are models of demeanor who are hearty of manner; who carry a kindly light in their eyes; who have a spontaneity that precludes hypocrisy or even deep purpose. These are not the men who make the Church diplomacy—they simply obey it. It is part of that diplomacy to send out such men for contact with the world. But the ablest minds of the Church, whether they are of the hierarchy or not, construct its policies. And given a system whose human units move instantly and unquestioningly at command; given a system whose worldly power is available at any point at any moment; given a

system whose movement may be as secret as the grave until result is attained—and the clumsiest of politicians or the crudest of diplomats has a force to effect his ends that is as powerful for its size as any that Christendom has ever known.

Among the emissaries of the Church who were deputed to "reach" President Roosevelt, was our old friend Ben Rich, the gay, the engaging, the apparently irresponsible agent of hierarchical diplomacy. And I should like to relate the story of his "approach," as it is still related in the inner circle of Church confidences. Not that I expect it to be wholly credited—not that I doubt but it will be denied on all sides—but because it is so characteristic of Church gossip and so typical (even if it were untrue) of the humorous cynicism of Church diplomacy.

When President Roosevelt was making his "swing around the circle," Rich was appointed to join him, found the opportunity to do so, and (so the story is told) delighted the President by the spirit and candor of his good fellowship. When they were about to part, the President is reported to have said, "Why don't you run for Congress from your state? You're just the kind of man I'd like to have in the House to support my policies." And here (as the Mormons are told) is the dialogue that ensued:

Rich: "I have no ambition that way, Mr. President. For many reasons it's out of the question although I'm grateful for the flattering suggestion."

The President: "Then let me appoint you to some good office. You're the kind of man I'd like to have in my official family."

Rich (impressively and in a low tone): "Mr. President, I'd count it the greatest honor of my life to have a commission from you to any office. I'd hand that commission down to my children as the most precious heritage. But—I love you too much, Mr. President, to put you in any such hole. I'm a polygamist. It would injure you before the whole country."

The President (leaning forward eagerly): "No! Are you a polygamist? Tell me all about it."

Rich. "The Lord has bestowed that blessing on me. I wish you could go into my home and see how my wives are living together like sisters—how tender they are to each other—how they bear each other's burdens and share each other's sorrows—and how fond all my children are of Mother and Auntie."

The President: "Well—but how can women agree to share a husband?"

Rich: "They do it in obedience to a revelation from the Lord—a revelation that proclaimed the doctrine of the eternity and the plurality of the marriage covenant. We believe that men and women, sealed in this life under proper authority, are united in the conjugal relation throughout eternity. We believe that the husband is tied to his wives, and they to him; that their children and all the generations of their children will belong to him hereafter. We believe in eternal progression; that as man is, God was; and as God is, man shall be. We believe that by obedience to this revealed covenant, we will be exalted in the celestial realm of our Father, with power in ourselves to create and people worlds. It is a never ending and constantly increasing intelligence and labor. If I keep my covenants to my wives and they to me, in this world, all the powers and rights of our marriage relation will be continued and amplified to us in the life to come; and we, in our turn, will be rulers over worlds and universes of worlds."

Then—according to the unctuous gossip of the devout—President Roosevelt saw the true answer to his own desire to know what was to become of his mighty personality after this world should have fallen away from him! He saw, in this faith, a possible continuation throughout eternity of the tremendous energies of his being! He was to continue to rule not merely a nation but a world, a system of worlds, a universe of worlds! And it is told—sometimes solemnly, sometimes with a grin—that, in the Temple at Salt Lake, a proxy has stood for him and he has been baptized into the Mormon Church; that proxies have stood for the members of his family and that they have been sealed to him; and finally that proxies have stood for some of the great queens of the past (who had not already been sealed to Mormon leaders) and that they have been sealed to the President for eternity!

[FOOTNOTE: It is a not uncommon practice in the Mormon Church thus to "do a work" for a Gentile who has befriended the people or otherwise won the gratitude of the Church authorities.]

This may sound blasphemous toward Theodore Roosevelt—if not toward the Almighty—but it is told, and it is believed, by hundreds and thousands of the faithful among the Mormon people. It is given to them as the secret explanation of President Roosevelt's protection of the Mormon tyranny—a protection of which Apostle Hyrum Smith boasted in a sermon in the Salt

Lake tabernacle (April 5, 1905) in these equivocal words: "We believe—and I want to say this—that in President Roosevelt we have a friend, and we believe that in the Latter-Day Saints President Roosevelt has the greatest friendship among them; and there are no people in the world who are more friendly to him, and will remain friendly unto him just so long as he remains true, as he has been, to the cause of humanity."

The Smiths have their own idea of what "the cause of humanity" is.

Chapter XV. The Struggle For Liberty

As early as 1903, before the Smoot investigation began, the Utah State journal (of which I became editor) was founded as a Democratic daily newspaper, to attempt a restoration of political freedom in Utah and to remonstrate against the new polygamy, of which rumors were already insistent. I was at once warned by Judge Henry H. Rolapp (a prominent Democrat on the District bench, and secretary of the Amalgamated Sugar Company) that we need not look for aid from the political or business interests of the community, inasmuch as our avowed purpose had already antagonized the Church. He delivered this message in a friendly spirit from a number of Democrats whose support we had been expecting. And the warning proved to be well-inspired. Although a number of courageous Gentiles, like Colonel E. A. Wall of Salt Lake City, gave us material aid—and although there was no other Democratic daily paper in Utah (unless it was the Salt Lake Herald, owned by Senator Clark of Montana)—the most powerful Church Democratic interests stood against us, and we found it impossible to make any effective headway with the paper.

After the Prophets began to give their awful testimony at Washington, the Democratic National Convention of 1904 (which I attended as a delegate from Utah) considered a resolution in opposition to polygamy and the Church's rule of the state. This resolution was as vigorously fought by some Utah Gentiles as by the Mormon delegates, on the grounds that it would defeat the Democratic party in Utah. It carried in the convention. Upon returning to Salt Lake City I called a meeting of the Democratic state committee (of which I was chairman) and urged that we make our state campaign on the issue of ecclesiastical domination, in consonance with the party's national platform. Of the whole committee only the secretary, Mr. P. J. Daly, supported the proposal. The others considered it "an attempt to establish a quarantine against Democratic success." Some of them had been promised by members of the hierarchy that the party was to have "a square deal this time." Others had fatuously accepted the assurances of ecclesiasts that "it looked like a Democratic year." In short, the Democratic party in Utah, like the Republican party, proved to be then, as it is now, less a

political organization than the tool of a Church cabal. We found that we could no more hope to move the Democratic machine against the hierarchy than to move the Smoot-Republican machine itself.

But when Joseph F. Smith, before the Senate committee, admitted that he was violating "the laws of God and man" and tried to extenuate his guilt with the plea that the Gentiles of Utah condoned it, he issued a challenge that no American citizen could ignore. The Gentiles of Utah had been silent, theretofore, partly because they were ignorant of the extent of the polygamous offenses of the hierarchy, and partly because they were hoping for better things. Smith's boast made their silence the acquiescence of sympathy. A meeting was called in Salt Lake City, in May, 1904, and under the direction of Colonel William Nelson, editor of the Salt Lake Tribune, the principles of the present "American party" were enunciated as a protest against the lawbreaking tyranny of the Church leaders. Later, as it became clear that the opponents of the Smith misrule must organize their own party of progress, committees were formed and a convention was held (in September, 1904) at which a full state and county ticket was put in the field, in the name of the American Party of Utah.

We agreed that no war should be made on the Mormon religion as such; that no war should be made on the Mormon people because of their being Mormons; that we would draw a deadline at the year 1890, when the Church had effected a composition of its differences with the national government, and all the citizens of Utah, Mormon and Gentile alike, had accepted the conditions of settlement; that we would find our cause of quarrel in the hierarchy's violation of the statehood pledges; and that when we had corrected these evil practices we should dissolve, because (to quote the language used at the time) we did not wish "to raise a tyrant merely to slay a tyrant."

In the idea that we would fight upon living issues—that we would not open the graves of the past to dig up a dead quarrel and parade it in its ceremonies—the American party movement began. Its first enlistment included practically all the Gentiles in Salt Lake City who resented the claim of the Prophet that they acquiesced in his crimes and his treasons. But the most promising sign for the party was its attraction of hundreds of independent Mormons of the younger generation. As one Mormon of that hopeful time expressed it: "The flag represents the political power. The

golden angel Moroni, at the top of the Temple, represents the ecclesiastical authority. I will not pay to either one a deference which belongs to the other. I know how to keep them apart in my personal devotion."

This was exactly what the Church authorities would not permit. It would have destroyed all the special and selfish prerogatives of the Mormon hierarchs. It would have subverted their claim of absolute temporal power. It would have set up the nation and the state as the objects of civic devotion—instead of the Kingdom of God.

Although we of the American party disavowed and abstained from any attack upon the Mormon Church as such—and confined ourselves to a war upon the treasons, the violations of law, the breaches of covenant and the other offenses of the Church leaders, as the practices of individuals—these leaders dragged the whole body of the Church as a wall of defense around them, and in countless sermons and printed articles declared that the Church and its faith were the objects of our assault. In other words, though Smith claimed in Washington—and Smoot continues to claim before the nation—that the Church is not responsible for the crimes of its Prophets, whenever a criticism or a prosecution is directed against any of these men, they all unite in declaring that the Church is being persecuted; and the members of the hierarchy rouse all their followers, and use all their agencies, in a successful resistance.

There was no blithesomeness in the campaign. It was not lightened by any humor. It was a hopeless assault on the one side and a grim overpowering resistance on the other. The American party, being organized as a protest, had at first little regard for offices. It sought to promulgate the principles of its cause for the enlightenment of the citizens of Utah and for the preservation of their rights. Some of the Gentiles who did not join us felt, perhaps, as strong an indignation as those who did, but they were entangled in politics with the hierarchs, or had business connections that would be destroyed. These men, in course of time, became the most dangerous opponents of our progress. (The average Mormon is obedient and supine enough in the presence of his Prophets, but he is a man of personal independence compared with the sycophantic Gentile who accepts political or commercial favors from the Church chiefs and yet continues to deny the existence of the very power to which he bends the knee.) Of the rebellious but discreet Mormons many came to the leaders of our party to

say: "I think you're quite right. I, myself, have suffered under these tyrannies. I have no sympathy with new polygamy. But, as you know, I'm attorney for some of the Church interests"—or "I'm in business with high ecclesiasts"—or "I'm heavily in debt to the Church bank"—or "I'm closely connected by marriage with one of the Prophets"—"and I can do you more good by my quiet efforts than by coming out into the open. I'd be treated as an apostate. All my influence would be gone." And in most cases he preserved his influence, and we lost him. The Church had effective ways of recovering his support.

For many reasons the American party looked for its recruits chiefly among Republicans, the Democracy being almost entirely Mormon. And in the first flush of enthusiasm some of our leaders laughed at the boast of the Republican state chairman that, for every Republican he lost, he would get two Mormon Democrats to vote the Republican ticket. (This was Hon. William Spry, a Mormon, since made Governor of Utah, for services rendered the hierarchy.) But the claim proved anything but laughable. He got probably four Mormon Democrats for every Republican he lost. As usual the hierarchy "delivered the goods" to the national organization in power.

According to our best calculations we got from fifteen hundred to eighteen hundred Mormon votes. And, during this campaign and those that followed, I was approached by hundreds of Mormons who commended our work and gave private voice to the hope that we might succeed in freeing Utah so that they themselves might be free. After I joined the staff of the Salt Lake Tribune, as chief editor, these came to my office by stealth and in obvious fear. I could not blame them then, nor do I now. The cost of open defiance was too great.

One woman, the first wife of a prominent Mormon physician, came to me to enlist in the work of the party. (Her husband was living with a young plural wife.) We accepted her aid. Her husband cut off her monthly allowance, and she had to take employment as a book canvasser, so that she might be able to earn her living. One Mormon who came out openly for us, was superintendent of a business owned by Gentiles. He was somewhat prominent as an ecclesiast, and he was a Sunday School worker in his ward. He reconciled his wife and daughters to his revolt against the recrudescence of polygamy and the tyranny of the Church's political control. He carried

with him the sympathy of his brother, who was a newspaper editor. He won over some of his personal friends to pledge their support to our cause. He seemed too sturdy ever to retreat, too independent in his circumstances to be driven, and with too clear a vision to be led astray by the threats, the power, or the persuasions of the hierarchy. Yet, before long he came to confess that he could not continue to help us openly. His employers—his Gentile employers—had notified him that his work in the American party would be dangerously injurious to their business. They were in hearty accord with his views; they recognized his right as a citizen to act according to his convictions; but—they dared not provoke a war of business reprisals with the commercial and financial institutions of the Church. He must either cease his active opposition to the Church leaders, or lose his place of employment.... He retired from the fight.

Another Mormon who joined us was Don. C. Musser, a son of one of the Church historians. He had been a missionary in Germany and in Palestine. He had been a soldier in the Philippines, and he had edited the first American newspaper there. His contact with the world and his experience in the military service of the United States had given him a high ideal of his country; and a feeling of loyalty to the nation had superseded his earlier devotion to the Prophets. His family was wealthy, but he was supporting himself and his young wife by his own efforts in business. As soon as he came out openly with the American party, his father's home was closed against him. His business connections were withdrawn from him. He found himself unable to provide for his wife, who was in delicate health. After a losing struggle, he came to tell us that he could no longer earn a living in Utah; that he had obtained means to emigrate; that he must say good-bye. And we lost him.

Two other young men—the son and the son-in-law of an apostle—came to me and asked helplessly for advice. They admitted that the practices of the hierarchy were, to them, a violation of the covenant with the nation, a transgression of the revelation from God given to Wilford Woodruff, and destructive of all the securities of community association. But would I advise them to sacrifice their influence in the Church by joining the "American movement" publicly? Or had they better retain their influence and use it within the Church to correct the evils that we were attacking?

With awful sincerity they spoke of conditions that had come under their own eyes, and related instances to show how mercilessly the polygamous favorites of the Church were permitted to prey on the young women teachers in Church schools. They spoke of J. M. Tanner, who was at that time head of the Church schools, a member of the general Board of Education, and one of the Sunday School superintendents. According to these young men—and according to general report—Tanner was marrying right and left.

I knew of a young Mormon of Brigham City, who had been a suitor for the hand of L——, a teacher at the Logan College. He had been away from Utah for some time, and he had returned hoping to make her his wife. Stopping over night in Salt Lake, on his way home, he saw Tanner and L—— enter the lobby of the hotel in which he sat. They registered as man and wife and went upstairs together. He followed—to walk the floor of his room all night, struggling against the impulse to break in, and kill Tanner, and damn his own soul by meddling with the man who had been ordained by the Prophets to a wholesale polygamous prerogative.

He had kept his hands clean of blood, but he had been living ever since with murder in his heart. Could these two sons of the Church do more to remedy such horrors by using their influence to have Tanner deposed, or by sacrificing that influence in an open revolt against the conditions that made Tanner possible? I could only advise them to act according to their own best sense of what was right. They did use their influence to help force Tanner's deposition, but we lost the public example of their opposition to the crimes of the hierarchy.

I relate these incidents as typical of the different kinds of pressure that were brought to bear upon the independent Mormons who wished to aid us, and of the local difficulties against which we had to contend. Washington, of course, gave us no recognition. And we did not succeed in reaching the ear of the nation. Here and there a newspaper noted our effort and paid some small heed to our protest, but the overwhelming success of the Republican party—and the dumb-driven acquiescence of the Democracy—in Utah and the neighboring Church-ruled states, left the agitation with little of political interest for the country at large.

And yet the struggle went on. Animated by the spirit of the Salt Lake Tribune, the leading newspaper of the community, the American party

entered the city elections in the fall of 1905 and carried them against the hierarchy's Democratic ticket, with the help of the independent Mormons, under cover of the secret ballot. Emboldened by this success we proposed to move on the state and county offices, with the hope of gaining some members of the legislature and some of the judicial and executive offices, through which to enforce the laws that the Church leaders were defying. But here we failed. Outside of Salt Lake the rule of the Prophets was still absolute and unquestioned. The people bowed reverently to Joseph F. Smith's dictum: "When a man says 'You may direct me spiritually but not temporally,' he lies in the presence of God—that is, if he has got intelligence enough to know what he is talking about." The state politicians knew that they would destroy themselves by joining an organization opposed by the all-powerful-Church; and sufficient warning of this doom appeared to them in the fact that no member of the American party could obtain any recognition in Federal appointments. The Church had meanwhile dictated the election of another United States Senator (George Sutherland) to join Apostle Smoot, and Senator Kearns was retired for his opposition to the hierarchy. [FOOTNOTE: When Senator Aldrich was carrying the tariff bill of 1910 through the Senate, for the greater profit of the "Interests," Smoot and Sutherland did not once vote against him. Smoot supported him on every one of the one hundred and twenty-nine votes and missed none. Sutherland voted with him one hundred and seventeen times and was recorded as not voting on the remaining twelve. Only two other senators made anything like such a despicable record.]

It began to be more and more apparent that whatever success we might achieve locally, the power of the financial and political allies of the Prophets in Washington, aided by the executive "Big Stick" of the President, would beat us back from any attempt to rouse the state or the nation to our support.

Smoot was in a happy position: all the senators who represented the "Interests" were for him, and all the senators who represented the supposed progressive sentiment of Theodore Roosevelt were also for him. The women of the nation had sent a protest with a million signatures to the Senate; but they had not votes; they received, in reply, a public scolding. Long before the Senate voted on its committee's report, many of the notorious "new" polygamists of the Church returned from their exile in

foreign missions and began to walk the streets of Salt Lake with their old swagger of self-confident authority. We foresaw the end.

Early in December, 1906, Senator J. C. Burrows of Michigan, chairman of the committee that had investigated Smoot, called up the committee's report and spoke upon it in a denunciation of Smoot. Senator Dubois of Idaho followed, two days later, with a supplementary attack, and censured President Roosevelt for "allowing his name and office" to be used in defense of the Mormons. After an interval of a month, Senator Albert J. Hopkins, of Illinois, undertook to reply with a defense of Smoot that reduced the Apostle's excuses to the absurd. Smoot, he declared, had opposed polygamy, "even from his infancy;" there was "nothing in the constitution" prohibiting "a State from having an established Church;" the old practices of Mormonism were dying out; and Smoot, as an exponent of the newer Mormonism, was largely responsible for the improvement.

This bold falsehood was received with laughter by the members who had heard the testimony before the Senate committee or read the record of its sittings; but it was wired to all newspapers; and the contradictions that followed it failed (for reasons) to get the same publicity. It was repeated by Senator Sutherland (January 22, 1907); and he had the audacity to add that the Mormon Church, as well as Smoot, was opposed to polygamy; that the "sporadic cases" of new polygamy were "reprehended by Mormon and Gentile alike;" that polygamous marriages in Utah had been forbidden by the Enabling Act, but that polygamous cohabitation had been left to the state; and that the latter was rapidly dying out. And Sutherland knew, as every public man in Utah knew, that almost every word of this statement was untrue.

Senator Philander C. Knox, of Pennsylvania (February 14, 1907) took up the lie that Smoot had been "from his youth against polygamy," and he added to it a legal argument that the Senate could only expel a member, by a two-thirds vote, if he were guilty of crime, offensive immorality, disloyalty or gross impropriety during his term of service. Senator Tillman (February 15) accused President Roosevelt of protecting Smoot in return for a pledge of Mormon support given previous to the last campaign. Apostle Smoot (February 19) declared that cases of "new" polygamy were rare; that they were not sanctioned by the Church; that every case since 1890 "has the express condemnation of the Church;" and that he himself had always

opposed polygamy. On February 20, the question was forced to a vote after a debate that repeated these falsehoods, in spite of all disproof's of them. And Apostle Smoot was retained in his seat by a vote of fifty-one to thirty-seven, counting pairs.

After this event, no growth of organization was immediately possible to the American party. Having gained political control of Salt Lake City and given it good municipal government, we were able to hold a local adherency; but hundreds of Mormons, who still vote the American city ticket, vote for the Church in state elections, because, though they want reform, they are not willing to risk the punishment of their relatives and the leaders of the Church to attain that reform. And when the national government granted its patent of approval to the hierarchy—by holding the hierarchy's appointed representative in the Senate as its prophetic monitor—nearly all the people of the intermountain country lost heart in the fight. Thousands of Gentiles, who knew the truth and had fought for it for years, argued despairingly: "If the nation likes this sort of thing—I guess it's the sort of thing it likes. I'm not going to ruin myself financially and politically by keeping up a losing struggle with these neighbors of mine, and fight the government at Washington besides. If the administration wants to be bossed by the Prophet, Seer and Revelator, I can stand it."

The nation, having accepted responsibility for past polygamy, now, by accepting Senator Smoot, gave its responsible approval to the new polygamy and to the commercial and political tyrannies of the Church. In the old days the Mormons had claimed immunity for their practice of polygamy on the ground that the constitution of the United States protected them in the exercises of their faith. The Supreme Court of the country determined that the free-religion clause of the constitution did not cover violations of law; and the Church deliberately abandoned its claim of religious immunity. But now a majority of the Senate, supported by President Roosevelt, took the old ground—which the Supreme Court had made untenable and the Mormons themselves had vacated—and practically declared that violations of law were a part of the constitutional guaranty!

Chapter XVI. The Price of Protest

The members of the Mormon hierarchy continually boast that they are sustained in their power—and in their abuses of that power—"by the free vote of the freest people under the sun." By an amazing self deception the Mormon people assume that their government is one of "common consent;" and nothing angers them more than the expression of any suspicion that they are not the freest community in the world. They live under an absolutism. They have no more right of judgment than a dead body. Yet the diffusion of authority is so clever that nearly every man seems to share in its operation upon some subordinate, and feels himself in some degree a master without observing that he is also a slave.

The male members of the ward—who would be called "laymen" in any other Church—all hold the priesthood. Each is in possession of, or on the road to, some priestly office; and yet all are under the absolutism of the bishop of the ward. Of the hundreds of bishops, with their councillors, each seems to be exercising some independent authority, but all are obedient to the presidents of stakes. The presidents apparently direct the ecclesiastical destinies of their districts, but they are, in fact, supine and servile under the commands of the apostles; and these, in turn, render implicit obedience to the Prophet, Seer and Revelator. No policy ever arises from the people. All direction, all command, comes from the man at the top. It is not a government by common consent, but a government of common consent—of universal, absolute and unquestioning obedience—under penalty of eternal condemnation threatened and earthly punishment sure.

Twice a year, with a fine show of democracy, the people assemble in the Tabernacle at Salt Lake, and there vote for the general authorities who are presented to them by the voice of revelation. If there were no tragedy, there would be farce in the solemnity with which this pretense of free government is staged and managed. Some ecclesiast rises in the pulpit and reads from his list: "It is moved and seconded that we sustain Joseph F. Smith as Prophet, Seer and Revelator to all the world. All who favor this make it manifest by raising the right hand." No motion has been made. No second has been offered. Very often, no adverse vote is asked. And, if it

were, who would dare to offer it? These leaders represent the power of God to their people; and against them is arrayed "the power of the Devil and his cohorts among mankind." Three generations of tutelage and suppression restrain the members of the conference in a silent acquiescence. If there is any rebel among them, he must stand alone; for he has scarcely dared to voice his objections, lest he be betrayed, and any attempt to raise a concerted revolt would have been frustrated before this opportunity of concerted revolt presented itself. Being a member of the Church, he must combat the fear that he may condemn himself eternally if he raise his voice against the will of God. He must face the penalty of becoming an outcast or an exile from the people and the life that he has loved. He knows that the religious zealots will feel that he has gone wilfully "into outer darkness" through some deep and secret sin of his own; and that the prudent members of the community will tell him that he should have "kept his mouth shut." If there were a majority of the conference inclined to protest against the re-election of any of its rulers, the lack of communication, the pressure of training and the weight of fear would keep them silent. And in this manner, from Prophet down to "Choyer leader" (choir leader) the names are offered and "sustained by the free vote of the freest people under the sun."

During the days just before the American party's political agitation, a young Mormon, named Samuel Russell, returned from a foreign mission for the Church and found that the girl whom he had been courting when he went away was married as a plural wife to Henry S. Tanner, brother of the other notorious polygamist, J. M. Tanner. The discovery that his sweetheart was a member of the Tanner household drove Russell almost frantic. She was the daughter of an eminent and wealthy family, of remarkable beauty, well-educated and rarely accomplished. Young Russell was a college student—a youth of intellect and high mind—and he suffered all the torments of a horrifying shock. Unless he should choose to commit an act of violence there was only one possible way for him to protest. At the next conference, when the name of Henry S. Tanner was read from the list to be "sustained"—as a member of the general Sunday School Board—Russell rose and objected that Tanner was unworthy and a "new" polygamist. He was silenced by remonstrances from the pulpit and from the people. He was told to take his complaint to the President of his Stake. He was denied the opportunity to present it to the assemblage.

Almost immediately afterward, Tanner, for the first time in his life, was honored with a seat in the highest pulpit of the Church among the general authorities. And Russell was pursued by the ridicule of the Mormon community, the persecution of the Church that he had served, the contempt of the man who had wronged him, and the anger of the woman whom he had loved. One of the reporters of the Deseret News, the Church's newspaper, subsequently stated that he had been detailed, with others, to pursue Russell day and night, soliciting interviews, plaguing him with questions, and demanding the legal proofs of Tanner's marriage—which, of course, it was known that Russell could not give—until Russell's friends, fearing that he might be driven to violence, persuaded him to leave the state. Tanner is now reputed to have six plural wives (all married to him since the manifesto of 1890) of whom this young woman is one.

Similarly, at the General Conference of April, 1905, Don C. Musser (of whom I have already written) attempted to protest against the sustaining of Apostles Taylor and Cowley; but Joseph F. Smith promptly called upon the choir to sing, and Musser's voice was drowned in harmony. In more recent years Charles J. Bowen rose at a General Conference to object to the sustaining of some of the polygamous authorities, and he was hustled from the building by the ushers.

But the most notable case of individual revolt of this period was Charles A. Smurthwaite's. He had joined the Church, alone, when a boy in England, and the sufferings he had endured, for allying himself with an ostracized sect, had made him a very ardent Mormon. He had become a "teacher" in his ward of Ogden City, had succeeded in business as a commission merchant and was a great favorite with his bishop and his people, because of his charities and a certain gentle tolerance of disposition and kindly brightness of mind.

Smurthwaite, in partnership with Richard J. Taylor (son of a former President of the Church, John Taylor) engaged in the manufacture of salt, with the financial backing of a leading Church banker. Along the shores of Salt Lake, salt is obtained, by evaporation, at the cost of about sixty cents a ton; its selling price, at the neighboring smelting centers, ranges from three dollars to fourteen dollars a ton; and the industry has always been one of the most profitable in the community. In the early days, the Church (as I have already related) encouraged the establishment of "salt gardens," financed

the companies, protected them in their leasehold rights along the lake shores, and finally, through the Inland Crystal Salt Company, came to control a practical monopoly of the salt industry of the intermountain country. (This Inland Crystal Company, with Joseph F. Smith as its president, is now a part of the national salt trust.)

After Smurthwaite and Taylor had invested heavily in the land and plant of their salt factory, the Church banker who had been helping them notified them that they had better see President Smith before they went any further. They called on Smith in his office, and there—according to Smurthwaite's sworn testimony before the Senate committee—the Prophet gave them notice that they must not compete with his Inland Crystal Salt Company by manufacturing salt, and that if they tried to, he would "ruin" them. This proceeding convinced Smurthwaite that Smith had "so violent a disregard and non-understanding of the rights of his fellow-man and his duty to God, as to render him morally unqualified for the high office which he holds." For expressing such an opinion of Smith to elders and teachers—and adding that Smith was not fit to act as Prophet, Seer and Revelator, since, according to his own confession to the Senate Committee he was "living in sin"—for expressing these opinions, charges were preferred against Smurthwaite by an elder named Goddard of Ogden City, and excommunication proceedings were begun against him.

Smurthwaite replied by making a charge of polygamous cohabitation against Goddard; and after the April Conference of 1905, Don Musser and Smurthwaite joined in filing a complaint in the District Court of Salt Lake City demanding an accounting from Joseph F. Smith of the tithes which the Church was collecting. Meanwhile Smurthwaite had been "disfellowshipped" at a secret session of the bishop's court, on March 22, without an opportunity of appearing in his own defense or having counsel or witnesses heard in support of his case; and on April 4, after a similarly secret and ex-parte proceeding, he was excommunicated by the High Council of his Stake, for "apostasy and un-Christianlike conduct." His charges against Goddard were ignored, and his suit for an accounting of the tithes was dismissed for want of jurisdiction!

From the moment of his first public protest against Smith, all Smurthwaite's former associates fell away from him, and by many of the more devout he was shunned as if he were infected. Benevolent as he had

been, he could find no further fellowship even among those whom he had benefited by his service and his means. I know of no more blameless life than his had been in his home community—and, to this, every one of his acquaintances can bear testimony—yet after the brutally unjust proceedings of excommunication against him the Deseret News, the Church's daily paper, referred to "recent cases of apostasy and excommunication" as having been made necessary by the "gross immorality" of the victims. When a man like Chas. A. Smurthwaite could not remonstrate against the individual offenses of Joseph F. Smith, without being overwhelmed by financial disaster, and social ostracism, and personal slander, it must be evident how impossible is such single revolt to the average Mormon. Nothing can be accomplished by individual protest except the ruin of the protestant and his family.

In the case of my own excommunication, the issues were perhaps less clearly defined than in Smurthwaite's. I had not been for many years a formal member of the Church; and yet in the sense that Mormonism is a community system (as much as a religion) I had been an active and loyal member of it. In my childhood—when I was seven or eight years of age—I began to doubt the faith of my people; and I used to go into the orchard alone and thrust sticks lightly into the soft mould and pray that God would let them fall over if the Prophets had not been appointed by Him to do His work. And sometimes they fell and sometimes they stood! Later, when I was appalled by some of the things that had occurred in the early history of the Church, I silenced myself with the argument that one should not judge any religion by the crudities and intolerance's of its past. I felt that if I were not hypocritical—if I were myself guided by the truth as I saw it myself—and if I aided to the utmost of my power in advancing the community out of its errors, I should be doing all that could be asked of me. In the days of Mormon misery and proscription, I chose to stand with my own people, suffering in their sufferings and rejoicing with them in their triumphs. Their tendency was plainly upward; and I felt that no matter what had been the origin of the Church—whether in the egotism of a man or in an alleged revelation from God—if the tendencies were toward higher things, toward a more even justice among men, toward a more zealous patriotism for the country, no man of the community could do better than abide with the community.

The Church authorities accepted my aid with that understanding of my position toward the Mormon religion; and, though Joseph F. Smith, in 1892, for his own political purposes, circulated a procured statement that I was "a Mormon in good standing," later, when he was on the witness stand in the Smoot investigation, he testified concerning me: "He is not and never has been an official member of the Church, in any sense or form." I made no pretenses and none were asked of me. I was glad to give my services to a people whom I loved, and trusted, and admired; and the leaders were as eager to use me as I was eager to be used in the proper service of my fellows. (Even Joseph F. Smith, in those days, was glad to give me his "power of attorney" and to trust me with the care of the community's financial affairs.) But when all the hierarchy's covenants to the nation were being broken; when the tyranny of the Prophet's absolutism had been re-established with a fierceness that I had never seen even in the days of Brigham Young; when polygamy had been restored in its most offensive aspect, as a breach of the Church's own revelation; when hopelessly outlawed children were being born of cohabitation that was clandestine and criminal under the "laws both of God and of man"—it was impossible for me to be silent either before the leaders of the Church or in the public places among the people. I had spoken for the Mormons at a time when few spoke for them—when many of the men who were now so valiantly loyal to the hierarchy had been discreetly silent. I had helped defend the Mormon religion when it had few defenders. I did not propose to criticize it now; for to me, any sincere belief of the human soul is too sacred to be so assailed—if not out of respect, surely in pity—and the Mormon faith was the faith of my parents. But I was determined to make the strongest assault in my power on the treason and the tyranny which Smith and his associates in guilt were trying to cover with the sanctities of religion; and I had to make that assault, as a public man, for a public purpose, without any consideration of private consequences.

After I began criticizing the Church leaders, in the editorial columns of the Salt Lake Tribune, my friend Ben Rich, then president of the Southern States Missions, and J. Golden Kimball, one of the seven presidents of the seventies, came to me repeatedly to suggest that if I wished to attack the leaders of the Church I should formally withdraw from the Church. This I declined to do: because I was in no different position toward the teachings of the Church than I had been in previous years—because I was not

criticizing the Church or its religious teachings, but attacking the civil offenses of its leaders as citizens guilty against the state—and because I saw that my attack had more power as coming from a man who stood within the community, even though he had no standing in the Church. I continued as I had begun. After the publication of an editorial (January 22, 1905), in which I charged President Smith with being all that the testimony then before the Senate committee had proven him to be, Ben Rich advised me that I must either withdraw from the Church or Smith would proceed against me in the Church tribunals and make my family suffer. I replied that I would not withdraw and that I would fight all cases against me on the issue of free speech. On February 1, 1905, I published, editorially, "An address to the Earthly King of the Kingdom of God," in which I charged Smith with having violated the laws (revelations) of his predecessors; with having made and violated treaties upon which the safety of his "subjects" depended; with having taken the bodies of the daughters of his subjects and bestowed them upon his favorites; with having impoverished his subjects by a system of elaborate exaction's (tithes) in order to enrich "the crown" and so forth. All of which, burlesquely written as if to a Czar by a constitutionalist, was accepted by the Mormon people as in no way absurd in its tone as coming from one American citizen to another!

Because of these two editorials I was charged (February 21, 1905) before a ward bishop's court in Ogden with "un-Christianlike conduct and apostasy," after two minor Church officials had called upon me at my home and received my acknowledgment of the authorship of the editorials, my refusal to retract them, and my statement that I did not "sustain" Joseph F. Smith as head of the Church, since he was "leaving the worship of God for the worship of Mammon and leading the people astray." On the night of February 24, I appeared in my own defense before the bishop's court, at the hour appointed, without witnesses or counsel, because I had been notified that no one would be permitted to attend with me. And, of course, the defense I made was that the articles were true and that I was prepared to prove them true.

Such a court usually consists of a bishop and his two councillors, but in this case the place of the second councillor had been taken by a high priest named Elder George W. Larkin, a man reputed to be "richly endowed with the Spirit." I had a peculiar psychological experience with Larkin. After I had spoken at some length in my own defense, Larkin rose to work himself

up into one of the rhapsodies for which he was noted. "Brother Frank," he began, "I want to bear my testimony to you that this is the work of God—and nothing can stay its progress—and all who interfere will be swept away as chaff"—rising to those transports of auto-hypnotic exaltation which such as he accept as the effect of the spirit of God speaking through them. "You were born in the covenant, and the condemnation is more severe upon one who has the birthright than upon one not of the faith who fights against the authority of God's servants." I had concluded to try the effect of a resistant mental force, and while I stared at him I was saying to myself: "This is a mere vapor of words. You shall not continue in this tirade. Stop!" He began to have difficulty in finding his phrases. The expected afflatus did not seem to have arrived to lift him. He faltered, hesitated, and finally, with an explanation that he had not been feeling well, he resumed his seat, apologetically.

That left me free to "bear testimony" somewhat myself. I warned the members of the "court" that no work of righteousness could succeed except by keeping faith with the Almighty—which meant keeping faith with his children upon earth. I reminded them of the dark days, which all of them could recall, when we had repeatedly covenanted to God and to the nation that if we could be relieved of what we deemed the world's oppression we would fulfill every obligation of our promises. I pointed out to them that the Church was passing into the ways of the world; that our people were being pauperized; that some of them were in the poorhouses in their old age after having paid tithes all their active lives; that by our practices we were bearing testimony against the revelations which Mormons proclaimed to the world for the salvation of the bodies and souls of men.

They listened to me with the same friendly spirit that had marked all their proceedings for these men had no animosity against me; they were merely obeying the orders of their superiors. And when we arose to disperse, the bishop put his hand on my shoulder and said, in the usual form of words: "Brother Frank, we will consider your case, and if we find you ought to do anything to make matters right, we will let you know what it is."

I returned to my home, where I had left my wife and children chatting at the dinner table. They had known where I was going. They knew what the issue of my "trial" would be for them and for me. Yet when I came back to them, none asked me any questions and none seemed perturbed. And this is

typical of the Mormon family. I think the experiences through which the people have passed have given them a quality of cheerful patience. They have been schooled to bear persecution with quiet fortitude. Tragedy sweeps by them in the daily current of life. A young man goes on a mission, and dies in a foreign land; and his parents accept their bereavement like Spartans, almost without mourning, sustained by the religious belief that he has ended his career gloriously. Taught to devote themselves and their children and their worldly goods to the service of their Church, they accept even the impositions and injustices of the Church leaders with a powerful forbearance that is at once a strength and a weakness.

Two days later I was met on the street by a young Dutch elder, who could scarcely speak English, and he gave me the official document from the bishop's court notifying me that I had been "disfellowshipped for un-Christianlike conduct and apostasy." I was then summoned to appear before the High Council of the Stake in excommunication proceedings, and after filing a defense which it is unnecessary to give here—and after refusing to appear before the Council for reasons that it is equally unnecessary to repeat I was excommunicated on March 14, 1905. No denial was made by the Church authorities of any of the charges which I had made against Smith. No trial was made of the truth of those charges. As a free citizen of "one of the freest communities under the sun," I was officially ostracized by order of the religious despot of the community for daring to utter what everyone knew to be the truth about him.

For myself, of course, no edict of excommunication had any terrors; but the aim of the authorities was to make me suffer through the sufferings of my family; and, in that, they succeeded. I shall not write of it. It has little place in such a public record as this, and I do not wish to present myself, in any record, as a martyr. It was not I who was ostracized from the Mormon Church by my excommunication; it was the right of free speech. The Mormon Church deprived me of nothing; it deprived itself of the helpful criticism of its members. No anathema of bigotry could take from me the affection of my family or the respect of any friends whose respect was worth the coveting. In that regard I suffered only in my pity for those of my neighbors who were so blindly servile to the decrees of religious tyranny that they turned their backs on the voice of their own liberty raised, in protest, for their own defense.

And it was not by the individual protestants but by the entire community that the heaviest price was paid in this whole conflict. It divided the state again into the old factions and involved it in the old war from which it had been rescued. The Mormons instituted a determined boycott against all Gentiles, and "Thou shalt not support God's enemies" became a renewed commandment of the Prophet. Wherever a Gentile was employed in any Mormon institution, he was discharged, almost without exception, whether or not he had been an active member of the American party. Teachers in the Church would exclaim with horror if they heard that a Mormon family was employing a Gentile physician; and more than one Mormon litigant was advised that he not only "sinned against the work of God," but endangered the success of his law suit, by retaining a Gentile lawyer. Politicians were told that if they aided the American party, they need never hope for advancement in this world, or expect anything but eternal condemnation in the world to come; and though few of them counted on the "spoils" of the hereafter, they understood and appreciated the power of the hierarchy to reward in the present day. The Gentiles did not attempt any boycott in retaliation; they had not the solidarity necessary to such an attempt; and many Gentile business men, in order to get any Mormon patronage whatever, were compelled to employ none but Mormon clerks.

The Gentiles had been largely attracted to Utah by its mines; they were heavily interested in the smelting industry. Colonel B. A. Wall, one of the strongest supporters of the American party, owned copper properties, was an inventor of methods of reduction, and had large smelting industries. Ex-Senator Thomas Kearns, and his partner David Keith, owners of the Salt Lake Tribune, and many of their associates, had their fortunes in mines and smelters; they were leaders of the American party and they were attempting to enlist with them such men as W. S. McCornick, a Gentile banker and mine owner, and D. C. Jackling, president of the Utah Copper Company, who is now one of the heads of the national "copper combine" and one of the ablest men of the West.

In 1904, in the midst of the political crisis, the Church newspapers served editorial notice on these men that, on account of the smelter fumes and their destructive effect upon the vegetation of the valley, the smelters must go; and that if the present laws were not sufficient, new laws would be enacted to drive them out. Men like Wall and Keith and Kearns and Walker were not terrorized; but McCornick and Jackling and the representatives of the

American Smelting and Refining Company either surrendered to a discreet silence or openly joined the Church in the campaign. They were rewarded with the assurance that the Church would protect them against any labor trouble and that no adverse legislation would be attempted against them. Today Jackling, of the copper combine, is a newspaper partner of Apostle Smoot, and he is mentioned for the United States Senate as the Church's selection to succeed George Sutherland. The Church has large mining interests; Smoot and Smith are in close affiliation with the smelting trust; and this is another powerful partnership in Washington that protected Smoot in his seat and has been rewarded by the Church's assistance in looting the nation.

Chapter XVII. The New Polygamy

In the old days of Mormonism—and as late as the anti-polygamous manifesto of 1890—the whole aim and effort of the Church was to exalt and sanctify and make pure the practice of plural marriage by means of the community's respect and the reverences of religion. The doctrine of polygamy was taught as a revealed mystery of faith. It was accepted as a sacrament ordained by God for the salvation of mankind. The most important families in the Church dignified it by their participation, and were in turn dignified by the Church's approval and by the wealth and power that followed approval. The inevitable mental sufferings of the plural wives were endured by them as part of an earthly self-immolation required by God, for which they should be rewarded in eternity. The very necessities of their situation compelled them to exact and cherish a super reverence for the doctrine of plural marriage—since the only way a mother could justify herself to her children was by teaching, as she believed, that she had been selected by God for the exaltation of this sacrifice, and by inculcating in her children a scrupulous respect for sexual purity. There was no pretense of denial of the polygamous relation. Plural wives held the place of honor in the community. Their marriages were considered the most sanctified. They and their progeny were called "the wives and children of the holy covenant," and they were esteemed accordingly.

But as the history of the Church shows, plural marriage was always a heavy cross to the Mormon women; many had refused to bear it, in the face of the frequent pulpit scoldings of the Prophets; and few did not sometime weep under it in the secrecy of their family life. In the days immediately preceding the manifesto of 1890, there was a general hope and longing among the Mormon mothers that God would permit a relief before their daughters and their sons should become of an age to be drafted into the ranks of polygamy. The great majority of the young men were monogamists. It required the strong persuasions of personal affection as well as the authority of Divine command to make the young women accept a polygamist in marriage. And when the Church received President

Woodruff's anti-polygamous revelation, every profound human emotion of the people coincided with the promise to abstain.

Only among a few of the polygamous leaders themselves was there any inclination to break the Church's pledge—an inclination that was strengthened by resentment against the Federal power that had compelled the giving of the pledge. Almost immediately upon obtaining the freedom of statehood, some of these leaders returned to the practice of polygamous cohabitation—although they had accepted the revelation, had bound themselves by their covenant to the nation and had solemnly subscribed to the terms of their amnesty. To justify themselves, they found it necessary to teach that polygamy was still approved by the law of God—that the practice of plural marriage had only been abandoned because it was forbidden by the laws of man. Joseph F. Smith continued to live with his five wives and to rear children by all of them. Those of the apostles who were not assured of that attainment to the principality of Heaven which was promised the man of five wives and proportionate progeny, were naturally tempted (if, indeed, they were not actually encouraged) to take Joseph F. Smith as their exemplar. It was scarcely worse to break the covenant by taking a new polygamous wife than by continuing polygamous relations with former plural wives; and when an apostle took a new polygamous wife, his inevitable and necessary course was to justify himself by the authority of God. He could not then deny the same authority to the minor ecclesiasts, even if he had wished to. And, finally, when the evil circle spread to the man on the fringe of the Church—who could not obtain even such poor authorization for his perfidy he found a way to perpetrate a pretended plural marriage with his victim, and the Church authorities did not dare but protect him.

This was polygamy without the great saving grace that had previously defended the Mormon women from the cruelties and abuses of the practice. It was polygamy without honor—polygamy against an assumed revelation of God instead of by virtue of one—polygamy worse than that of the Mohammedans, since it was necessarily clandestine, could claim no social respect or acceptance, and was forbidden "by the laws of God and man" alike.

This is the "new polygamy" of Mormonism. The Church leaders dare not acknowledge it for fear of the national consequences. They dare not even

secretly issue certificates of plural marriage, lest the record should be betrayed. They protect the polygamist by a conspiracy of falsehood that is almost as shameful as the shame it seeks to cover; and the infection of the duplicity spreads like a plague to corrupt the whole social life of the people. The wife of a new polygamist cannot claim a husband; she has no social status; she cannot, even to her parents, prove the religious sanction for her marital relations. Her children are taught that they must not use a father's name. They are hopelessly outside the law—without the possibility that any further statutes of legitimization will be enacted for their relief. They are born in falsehood and bred to the living of a lie. Their father cannot claim the authority of the Church for their parentage, for he must protect his Prophet. He cannot even publicly acknowledge them—any more than he can publicly acknowledge their mother.

Out of these terrible conditions comes such an instance as the notorious case of one of Henry S. Tanner's wives, who went on a visit to one of her relatives, with her children, and denied that they were her children, and denied that she was married—and was supported by her children's denial that she was their mother. Similarly, a plural wife of a wealthy Mormon, whose fortune is estimated at \$25,000,000—a partner of the sugar trust, a community leader, a favorite of the Church went before the Senate Committee in December, 1904, and swore that her first husband had died thirteen years before, that she had had a child within six years, and that she had no second husband. And by doing so she not only marked the child as illegitimate beyond the relief of any future statutes—legitimizing the offspring of polygamous marriages, but she left herself and the child without any claim upon the estate of its father and publicly swore herself a social outcast before a committee of the United States Senate, and perjured herself—to the knowledge of all her friends and acquaintances in Utah—for the protection of her husband and her Church. What can one say of a man who will permit a woman to commit such an act of social suicide for him—or of a Church that will command it?

Here is a condition of society unparalleled anywhere else in civilization—unparalleled even in barbarous countries, for wherever else polygamy is practiced it at least has the sanction of local convention. And the consequent suffering that falls upon the women and the children is a heart-break to see. During the days when I was in the editorial office of the Salt Lake Tribune, scores of miserable cases came to my knowledge by letter, by the report of

friends, and by the visits of the agonized wives themselves. I shall never forget one young woman, in her twenties, who came to ask my help in forcing her husband to obtain a marriage certificate for her from the Church, so that her boy might have the right to claim a father. She wept, with her head on my desk, sobbing out her story, and appealing to me for aid with a convulsed and tear-drenched face.

Four years earlier, she had become friendly with a man twice her age, whom she admired and respected. He had taken two wives before the manifesto of 1890, but that did not prevent him from coveting the youth and beauty of this young woman. He first approached her mother for permission to marry the girl, and when the mother—who was herself a plural wife—replied that it was impossible under the law, he brought an apostle to persuade her that the practice of plural marriage was still as meet, just and available to salvation as it had been when she married. Then he went to the daughter.

"I was terrified," she said, "when he proposed to me. And yet—he asked me if I thought my mother had done wrong when she married my father.... There was no one else I liked as much. He was good. He was rich. He told me I'd never want for anything. He said I would be fulfilling the command of God against the wickedness of a persecuting world.... I don't know what devil of fanaticism entered into me. I thought it would be smart to defy the United States."

Late one night, by appointment, he called for her with a carriage, driven by a man unknown to her, and took her to a darkened house that had a dim light only in the hallway. They entered alone and turned into a parlor that was dark, except for the reflection from the hall. He led her up to the portieres that hung across an inner door, and through the opening between the curtains she saw the indistinct figure of a man. They stood before him, hand in hand, while he mumbled over the words of a ceremony that sounded to her like the ceremonies she had heard in the Temple. She caught little of it clearly; she remembered practically nothing. She was not given anything to show that a ceremony had been performed, and she did not ask for anything. The elderly bridegroom kissed her when the mumbling ceased, led her out to the carriage, took her back to her mother's house, and that night became her husband.

She bore him a son. No one except her mother, her father and a few trusted friends knew that she was married. In the early months of 1905 she read in the Tribune the testimony given before the Senate committee by Professor James E. Talmage, for the Church, to the effect that since the manifesto of 1890 neither the President of the Church nor anybody else in the Church had power to authorize a plural marriage, and that any woman who had become a plural wife, since the manifesto, was "no more a wife by the law of the Church, than she is by the law of the land."

She asked her husband about it. He replied that an apostle had married them. "I asked my husband," she said, "to get a certificate of marriage from the apostle. He told me I needed none—that it was recorded in the books here and recorded in heaven—that it would put the apostle in danger if he were to sign such a paper. I said that that was nothing to me—that I wanted to protect my good name. Finally, he said it was not an apostle. Then we had a bitter scene. And he did not come back for a long time. And he didn't write as long as he stayed away.

"When he came back he was more loving than ever. I was afraid of having more children. I said to him: 'You cannot hold me as a wife any longer unless you write a paper certifying that I'm your wife and this boy is your child. You may place that paper anywhere you like, so long as I know I can get it in case you die. Suppose you were to die and all your folks were to deny that I was your wife—say that I was an imposter—that I was trying to foist my boy on the estate of a dead man—in the name of God, then what could I do?' He went away; and he hasn't come back; and he hasn't written. I don't know who married us. I don't even know the house where it happened. I don't know who the driver was. I don't even know who the apostle was that told mother it would be all right. He made her promise under a covenant not to tell.

"I don't know where to go. A friend of mine told me you would advise me. He said perhaps you could make them give me a certificate. I don't want to expose my husband. I only want something so that my boy, when he grows up, won't be"—

What could I do? What could anyone do for this unfortunate girl, seduced in the name of religion, with the aid of a Church that repudiated her for its own protection? She had to suffer, and see her boy suffer, the penalties of a social outcast.

Her case was typical of many that came to my personal knowledge. At the Sunday Schools, in the choirs, in the joint meetings of mutual improvement associations, young girls—taught to believe that plural marriage was sacred, and reverencing the polygamous prophets as the anointed of the Lord—were being seduced into clandestine marriage relations with polygamous elders who persuaded their victims that the anti-polygamous manifesto had been given out to save a persecuted people from the cruelties of an unjust government; that it was never intended it should be obeyed; that all the celestial blessings promised by revelation to the polygamist and his wives were still waiting for those who would dare to enjoy them.

If the tempted girl turned to one of her women friends, and besought her to say, on her honor, whether she thought that plural marriage was right, the other was likely enough to answer: "Yes, yes. Indeed it is. Promise me you won't tell a living soul. Tell me you'll die first.... I'm married to Brother I, —, the leader of the ward choir."

If she asked her mother: "Tell me. Is plural marriage wrong?" the mother could only reply: "Oh—I don't know—I don't know. Your father said it was right, and I accepted it—and we practiced it—and you have always loved your other brothers and sisters, and it seems to me it can't be wrong, since we have lived it. But—Oh, I don't know, daughter. I don't know."

The man who is tempting her knows. He has the word of an apostle, the example of the Prophet, the secret teaching of the Church. He courts her as any other religious young girl might be courted—with little attentions, at the meetings, over the music books—and he has, to aid him, a religious exaltation in her, induced by his plea that she is to enter into the mystery of the holy covenant, to become one of the most faithful of a persecuted Church, to defy the wicked laws of its enemies. She is just as happy in her betrothal as any other innocent girl of her age. Even the secrecy is sweet to her. And then, some evening, they saunter down a side street to a strange house—or even to a back orchard where a man is waiting in a cowl under a tree (perhaps vulgarly disguised as a woman with a veil over his face)—and they are married in a mutter of which she hears nothing.

Such a case was related to me by a horrified mother who had discovered that the marriage ceremony had been performed by an accomplice of the libertine who had seduced her daughter and since confessed his crime. But

whether the ceremony be performed by a priest of the Church or by a more unauthorized scoundrel, the girl is equally at the mercy of her "husband" and equally betrayed in the world. Even in this case of the pretended marriage, the elders of the ward hushed up the threatened prosecution because the authorities of the Church objected to a proceeding that might expose other plural marriages more orthodox.

Hundreds of Mormon men and women personally thanked me by letter or in interviews at the Tribune office, for our editorial attacks upon the hierarchy for encouraging these horrors. Strangers spoke to me on railroad trains, thanking me and telling me of cases. Three Mormon physicians, themselves priests of the Church, told me of innumerable instances that had come to them in their practice, and said that they did not know what was to become of the community. One Mormon woman wrote me from Mexico to say that she had exiled herself there with her husband and his two plural wives, and that she felt she had worked out sufficient atonement for all her descendants; yet she saw girls of the family on the verge of entering into plural marriage—if they had not already done so—and she begged us to continue our newspaper exposures, so that others might be saved from the bitter experiences of her life.

President Winder met me on the street in 1905, towards the close of the year, and said: "Frank, you need not continue your fight against plural marriage. President Smith has stopped it." "Then," I replied, "two things are evident: I have been telling the truth when I said that plural marriage had been renewed—in spite of the authorized denials—and if President Smith has stopped it now, he has had authority over it all the time."

To me, or to any other well-informed citizen of Utah, President Winder's admission was not necessary to prove Smith's responsibility. In the April conference of 1904, Smith had read an "official statement," signed by him, prohibiting plural marriages and threatening to excommunicate any officer or member of the Church who should solemnize one; and this official statement was carried to the Senate committee by Professor James E. Talmage, and offered in proof that the Church was keeping its covenant.

For us, in Utah, the declaration served merely to illuminate the dark places of ecclesiastical bad faith. We knew that from the year 1900 down, there had never been a sermon preached in any Mormon tabernacle, by any of the general authorities of the Church, against the practice of plural

marriage, or against the propriety of the practice, or against the sanctity of the doctrine. We knew, on the contrary, that upon numerous occasions, at funerals and in public assemblages, Joseph F. Smith and John Henry Smith and others of the hierarchy, had proclaimed the doctrine as sacred. We knew that it was still being taught in the secret prayer meetings. Practically all the leading authorities of the Church were living in plural marriage. Some of them had taken new wives since the manifesto. None of them had been actually punished. All were in high favor. And though Joseph F. Smith denied his responsibility, every one knew that none of these things could be, except with his active approval.

Perhaps, for a brief time, while Smoot's case was still before the Senate, some check was put upon the renewal of polygamy. But, even then, there were undoubtedly, occasional marriages allowed, where the parties were so situated as to make concealment perfect. And all checks were withdrawn when Smoot's case was favorably disposed of, and the Church found itself protected by the political power of the administration at Washington and by a political and financial alliance with "the Interests."

Today, in spite of the difficulty of discovering plural marriages, because of the concealments by which they are protected, the Salt Lake Tribune is publishing a list of more than two hundred "new" polygamists with the dates and circumstances of their marriages; and these are probably not one tenth of all the cases. During President Taft's visit to Salt Lake City, in 1909, Senator Thomas Kearns, one of the proprietors of the Tribune, offered to prove to one of the President's confidants hundreds of cases of new polygamy, if the President would designate two secret service men to investigate. I believe, from my own observation, that there are more plural wives among the Mormons today than there were before 1890. Then the young men married early, and were chiefly monogamists. Now the change in economic conditions has raised the age at which men marry; it has made more bachelors than there were when simpler modes of life prevailed. The young women have fewer offers of marriage, and more of these come from well-to-do polygamists. The girls are still taught, as they have always been, that marriage is necessary to salvation; and they are betrayed into plural marriage by natural conditions as well as by the persuasions of the Church.

A perfect "underground" system has been put in operation for the protection of the lawbreakers. If they reside in Utah, they frequently go to

Canada or to Mexico to be married; and the whole polygamous paraphernalia can be transported with ease and comfort—the priest who performs the ceremony, the husband, sometimes the legal wife to give her consent so that she may not be damned, and the young woman whose soul is to be saved. And this "underground" is maintained against the reluctance of the Mormon people. They aid in it from a kindly feeling toward their fellow-believers—and with some faint thought that perhaps these wayfarers are being "persecuted" but all the time with no personal sympathy for polygamy. By one sincere word of reprehension from Joseph F. Smith every "underground" station could be abolished, the route could be destroyed, and an end could be put to the protection that is, of itself, an encouragement to polygamous practice. He has never spoken that word.

Recently, the way in which the new polygamy is perpetrated in Utah has been almost officially revealed. A patriarch of the Church, resident in Davis County, less than fifteen miles from Salt Lake City, had been solemnizing these unlawful unions at wholesale. The situation became so notorious that the authorities of the Church felt themselves impelled about September, 1910, to put restrictions upon his activity. In the course of their investigations they discovered that he did not know the persons whom he married. They would come to his house, in the evening, wearing handkerchiefs over their faces; he sat hidden behind a screen in his parlor; and under these circumstances the two were declared man and wife, and were sealed up to everlasting bliss to rule over principalities and kingdoms, with power of endless increase and progression. He refused to tell the hierarchy from which one of the authorities he had received his endowment to perpetrate these crimes. He refused to give the names of any of the victims, claiming that he did not know them!

It is probable that for a long time plural marriage ceremonies were not solemnized within the Salt Lake temple. Now, we know that there have lately been such marriages in it, and at Manti, and at Logan, and perhaps also in the temple at St. George. There are cases on record where a man has a wife on one side of the Utah-Colorado line and another wife across the border. No prosecutions are possible in Utah; for, as Joseph F. Smith told the Senate committee, the officers of the law have too much "respect" for the ecclesiastical rulers of the state. Similarly, in the surrounding states, the officers show exactly the same sort of "respect" and for the same reason. They not only know the Church's power in local politics, but they see the

national administration allowing the polygamists and priests of the Church to select the Federal officials, and they are not eager to rouse a resentment against themselves, at Washington as well as at home, by prosecuting polygamous Mormons.

Some few years ago, Irving Sayford, then representing the Los Angeles Times, asked Mr. P. H. Lannan, of the Salt Lake Tribune, why someone did not swear out warrants against President Smith for his offenses against the law. Mr. Lannan said: "You mean why don't I do it?"

"Oh, no," Mr. Sayford explained, "I don't mean you particularly."

"Oh, yes, you do," Mr. Lannan said. "You mean me if you mean anybody. If it's not my duty, it's no one's duty.... Well, I'll tell you why.... I don't make a complaint, because neither the district attorney nor the prosecuting attorney would entertain it. If he did entertain it and issued a warrant, the sheriff would refuse to serve the warrant. If the sheriff served the warrant, there would be no witnesses unless I got them. If I could get the witnesses, they wouldn't testify to the facts on the stand. If they did testify to the facts, the jury wouldn't bring in a verdict of guilty. If the jury did bring in a verdict of guilty, the judge would suspend sentence. If the judge did not suspend sentence, he would merely fine President Smith, three hundred dollars. And within twenty-four hours there would be a procession of Mormons and Gentiles crawling on their hands and knees to Church headquarters to offer to pay that three hundred dollar fine at a dime apiece."

Mr. Lannan's statement of the case was later substantiated by an action of the Salt Lake District Court. Upon the birth of the twelfth child that has been borne to President Smith in plural marriage since the manifesto of 1890, Charles Mostyn Owen made complaint in the District Court at Salt Lake, charging Mr. Smith with a statutory offense. The District Attorney reduced the charge to "unlawful cohabitation" (a misdemeanor), without the complainant's consent or knowledge. All the preliminaries were then graciously arranged and President Smith appeared in the District Court by appointment. He pleaded guilty. The judge in sentencing him remarked that as this was the first time he had appeared before the court, he would be fined three hundred dollars, but that should he again appear, the penalty might be different. Smith had already testified in Washington, before the Senate Committee, to the birth of eleven children in plural marriage since he had given his covenant to the country to cease living in polygamy; he

had practically defied the Senate and the United States to punish him; he had said that he would "stand" his "chances" before the law and courts of his own state. All of this was well known to the judge who fined him three hundred dollars—a sum of money scarcely equal to the amount of Smith's official income for the time he was in court!

A leader of the Church, not long ago, asked me, in private conference, what was the policy of the American party with regard to the new plural wives and their children. I replied that as far as I knew it, the policy was to have the Church accept its responsibility in the matter and give the wives and children whatever recognition could be given them by their religion. The Church was guilty before God and man of having encouraged the awful condition. It was unspeakably cowardly and unfair for the Church leaders to put the whole burden of suffering on the helpless women and children; and, moreover, this course was a justification to polygamists in deserting their wives, on the ground that the Church had never sanctioned the relation.

This Church leader, himself a new polygamist, answered miserably: "The Church will not let itself be put in such a light before the country. That would be to admit that it has been responsible all the time."

I asked: "Has the Church not been responsible?"

He replied—equivocating—: "Well, not the Church. The Church has never taken a vote on it."

"That," I said, "answers why you have never got redress and never will get it because you are all liars, from top to bottom. You know you would never have entered the polygamous relation—nor could you have induced your wife to enter it—except with full knowledge that the Church did authorize it. The Church is one man, and you know it. The whole theory of your theology collapses if you deny that."

He shook his head blankly. "I don't know what is to become of us. I don't see any way out."

I could only advise him that he should join with other new polygamists in demanding that the Church authorities make all possible reparation to the women and children who were being crushed under the penalties of the Church's crime. But I knew that such advice was vain. He could not make such a demand, any more than any other slave could demand his freedom. And if the non-polygamists demanded it, the Prophets would deny that polygamy was being practiced. The children could not be legitimized—for

the Church cannot obtain legitimizing statutes without avowing its responsibility for the need of them; and the Gentiles can not pass such statutes without encouraging the continuance of polygamy by removing the social penalty against it.

So the burden of all this guilt, this shame, this deception, falls upon the unfortunate plural wife and her innocent offspring. She is bound by the most sacred obligations never to reveal the name of the officiating priest—even if she knew it—nor to disclose the circumstances of the ceremony. She has justified her degradation by the assumption that God has commanded it; that her husband has received a revelation authorizing him to take her into his household; that her children will be legitimate in the sight of God, and that eventually the civilized world will come to a joyous acceptance of the practice of polygamy. When the trials of her life afflict her and she finds no relentment in the world's disdain, she sees no avenue of retreat. To break the relation is to imply at once that it was not ordained of God, and to cast a darker ignominy upon her unfortunate children. Her only hope lies in her continued submission to her husband and his Church, even after she has mentally and morally rejected the doctrine that betrayed her. A more pitiably helpless band of self-immolants than these Mormon women has never suffered martyrdom in the history of the world. Heaven help them. There is no help for them on earth.

Chapter XVIII. The Prophet of Mammon

In an earlier day among the Mormons, the ecclesiastical authorities collected one-tenth of the "annual increase" of the faithful into "the storehouse of the Lord;" and this was practically the entire assessment made by the Church; although, by the same law of tithing, every Mormon was held obliged to consecrate all his earthly possessions to "God's work" on the demand of the Prophet. The common fund was used, then, to promote community enterprises and to relieve the poor. The tithe-payer saw the good result of the administration of the Church's moneys, and was generally satisfied. He was promised eternal happiness if he paid an honest tithe, but he was also given an earthly reward—for the Church admitted him to many opportunities and enterprises from which the niggardly were adroitly excluded. He was spiritually elevated and enlarged by giving for a purpose that he considered worthy—the fulfillment of a commandment of God and the relief of his fellow-creatures—and the community benefited by having a part of its yearly surplus administered for the common good.

But by the time the Church had reached its third generation of tithe-payers, the "financial Prophets" had made a change. On the theory that since the Mormons were paying the bulk of the taxes, they should share in the distribution of the public relief funds, the Mormon poor were denied assistance from "the storehouse of the Lord," and were compelled to enter the poorhouses, to seek shelter on the "county farms," or to take charity from their neighbors. The resulting degradation of a sublime principle of human helpfulness is strikingly shown in the fact that in some cases, where the county relief funds are distributed through a Mormon clerk of paupers for out-door relief, the Mormon bishop even collects one-tenth of this money, from the wretched recipients, as their contribution to God Almighty!

Nor is the greed of the present hierarchy satisfied with one-tenth of a Mormon's income. Said Joseph F. Smith, at the April Conference of 1899 (according to the Church's official report): "If a farmer raises two thousand bushels of wheat, as the result of his year's labor, how many bushels should he pay for tithing? Well, some go straightway to dickering with the Lord.

They will say that they hired a man so and so, and his wages must be taken out; that they had to pay such and such expenses, and this cost and that cost; and they reckon out all their expenses and tithe the balance." To Smith's inspired financial genius this was "dickering with the Lord." He wished to collect ten per cent of the farmer's entire yield—a tithe that would have bankrupted the farmer in three years!

Nor is the tithe any longer the only exaction demanded by the Prophet. A score of "donations" have been added. There is the Stake Tabernacle Donation, which is a fund collected from the Mormons of each "Stake" (corresponding usually to a county) for the building of a house in which to hold Stake Conferences. There is the Ward Meeting-House Donation, which is a fund collected from the Mormons of every "ward" for the erection of a local chapel. There is the Fast Day Donation, made up of contributions gathered on the afternoon of the first Sunday of each month, at what is called "a fast meeting," for the support of the local poor; and this is supplemented by the Relief Society Donation, solicited by the members of the Ladies Relief Society, in a house-to-house canvass, from Mormons and Gentiles alike. A Light and Heat Donation is collected by the deacons of the ward, under direction of the bishop, to pay for the lighting and heating of the ward meeting house; a Missionary Donation is collected at a "Missionary benefit entertainment," to help defray the expenses of a member of a ward sent on a mission; and since a missionary must necessarily be an elder, a Quorum Missionary Donation is also taken from his fellow members of the quorum, to assist him. So far as the Church is concerned, he travels "without purse or scrip," by order of "revelation;" but this inhibition does not extend to the use of his own money—if he has any left after paying the other exaction's—nor does it prevent him either from receiving contributions from his impoverished fellows or accepting charity from "the enemies of God's people," whom he labors to redeem. And on these terms about ninety per cent. of the adult male Mormons perform missionary services for the Church.

All priesthood quorums have monthly Quorum Dues collected from their members. On one Sunday of each month, called Nickel Sunday, the Sunday School members pay in five cents each for the purchase of new books, etc. On Dime Tuesday, once a month, the members of the Young Men's and the Young Women's Mutual Improvement Associations pay in ten cents each for the purchase of books, etc. On Nickel Friday, once a month, the infant

members of the Primary Association pay in five cents each to the association. Religious Class Donations are paid once a month by the Mormon public-school pupils for the support of the week-day religious classes. Amusement Hall Donations are collected from the members of a ward whose bishop finds them able to build a place of amusement. When a temple is to be erected, Temple Donations are collected, continuously, until the work is finished and paid for; and when members of the Church "go through the Temple," they are required to pay another form of Temple Donation in any sum that they can afford. Should a need arise, not provided for by the specific donations given above, a Special Donation is collected to meet it. Yet in the face of all these exaction's of tithes and donations, the ecclesiast still boasts: "We are not like the 'preachers for hire and diviners for money.' We never pass the plate at our sacred services. Our clergy labor, without pay, to give free salvation to a sinful world!"

In addition to doing missionary service, paying tithes, and contributing donations, the latter-day Mormon, if he be obedient to the counsel of the Church's anointed financiers, must support the commercial and financial undertakings of the hierarchy. These are officially designated "the Church's institutions" by the authorities; but they are in no way the property of the Church. They are advertised as community enterprises, but they are such only in the sense that the community is commanded by "the voice of God" to sustain them. There is no voice of God to command a distribution of their profits. And they are no longer conducted for the benefit of the community but to exploit it.

The good Mormon must purchase his sugar from "the Church's" sugar company (Joseph F. Smith, president), which is controlled by the national sugar trust and charges trust prices. He must buy salt from "the Church's" salt monopoly (Joseph F. Smith, president), which is a part of, and pays dividends to, the national salt trust. He is taught to go for his merchandise to the Zion's Co-operative Mercantile Institution (Joseph F. Smith, president), where even whiskey is sold under the symbol of the All-seeing Eye and the words "Holiness to the Lord" in gilt letters; and Joseph F. Smith, at the April Conference, of 1898 (according to the Church's official report), scolded those "pretendedly pious" Mormons who "were shocked and horrified" to find "liquid poison" sold under these auspices—for, as Smith argued, with characteristic greed, if the Mormon who wanted

whiskey could not get it in the Church store, "he would not patronize Z.C.M.I. at all, but would go elsewhere to deal!"

The farmers are "counselled" to buy their vehicles from "the Church's" firm, the Consolidated Wagon and Machine Company (Joseph F. Smith, president); to take out their fire insurance with the Church's "Home Fire Insurance Company" (Joseph F. Smith, controller); and to insure their lives with the Church's "Beneficial Life Insurance Company" (Joseph F. Smith, president). The Salt Lake Knitting Company (of which Joseph F. Smith is president) makes, among other things, the sacred knitted garments that are prescribed for every Mormon who takes the "Endowment Oaths," to be worn by him forever after as a shield "against the Adversary;" and these garments bear the label: "Approved by the Presidency. No knitted garment approved which does not bear this label." By which ingenious bit of religious commercialism, the sacred marks on the garments (accepted as a sort of passport to Heaven) have been increased by the sacred Smith trademark that admits the wearer to the Smith Heaven.

The Church's banking institutions, of which Joseph F. Smith is president, are recommended as safer than others because the money goes into the hands of "the brethren." Church newspapers must be subscribed for, because all others are "unreliable"—although the Church's Deseret News (Joseph F. Smith, president) is one of the most dishonest, unjust and mendacious organs that ever poisoned the public mind. And so on, through the whole list of business concerns by which the Church authorities are to profit. The Mormons, having learned of old the value of a solid, community support for community enterprises established in the interests of the community, are still kept solidly supporting ecclesiastical enterprises administered for the benefit of the hierarchy or its favorites, at the community's expense!

The Utah Light and Railway Company (Joseph F. Smith, president), which was supported by the tithes of the Mormon people, was charging \$1.25 per thousand cubic feet for fuel gas and \$1.75 for illuminating gas, just before the company was sold to the "Harriman interests." (The Supreme Court of the United States has fixed a rate of 80 cents a thousand as a fair price for gas in New York City.) The Salt Lake Street Railway (operating under a fifty-year franchise, obtained from the City Council by, the power of the Church while Joseph F. Smith was president of the company) charges

a five-cent fare, gives but one transfer, allows no half fares for children, and pays the city nothing for the use of its streets. Before the transfer of the Church's sugar stocks to the trust, the sugar factories paid the farmer \$4.50 a ton for his beets and sold him sugar for \$4.50 a hundred pounds; today beets are bought for \$4.50 a ton, and sugar sold at \$6.00 a hundred. The price asked for salt in Utah, where it should be "dirt cheap," is the same as everywhere under the salt trust. And so on—through the rest of the list.

To maintain this system of sanctified gain Joseph F. Smith invokes all the power of his "divine" authority as "the mouthpiece of the Lord." He protects the sugar trust by preventing the establishment of independent sugar factories (as for example in Sanpete and Sevier counties in 1905), just as he protects the salt trust by preventing the competition of independent salt gardens (as in the case of Smurthwaite and Taylor.) He issues his edict of protection as "the vicegerent of God on Earth" to the Mormons; and he excommunicates and ostracizes, in this world and the next, the Mormon protestant who dares rebel against commercial monopoly.

He receives between two and three million dollars a year in tithes, gives no accounting of them, and has no responsibility for them, except to God and his own conscience. He is able to use this sum, in bulk, at any given point, with a weight of financial pressure that would overbalance any other such single power in the community. As "trustee in trust" for the Church, he has the added income from stocks and previous investments; and he has practical control of the wealth of all the leading men of the Church to assist him, if he should call upon them for assistance. He uses his financial dictatorship to support monopoly against the assault of Gentile opposition, and he compels the Gentile to pay tribute as the Mormon does.

He backs his financial power with his control of legislation. He can not only prevent the passage of any laws against his favored monopolies, but (as in the case of the smelters) he can reduce independents to submission by threatening them with procured laws to penalize them. He largely controls the "labor troubles" of the State by controlling the obedience of the Mormon laboring men. He can influence judges, officers of the law and all the agents of local government by his power as political "Boss," and the same influence extends, through his representatives at Washington, to the local activities of Federal authority. He can check and govern public opinion among his subjects by announcing "the will of God" to them

through the officers of the Church in every department of religious administration. He is, therefore, at once the modern "money king," the absolute political Czar the social despot and the infallible Pope of his "Kingdom!"

Just as men fight for the retention of a throne and the maintenance of a dynasty, so he and his courtiers defend his rule and maintain his autocracy with every weapon of absolutism. And just as royalty, while possessed of unlimited wealth, has never lacked mercenaries, press bureaus, and all the sycophantic defenders of a crown, so Smith is able to command an array of service as great as any ever brought to the defense of a social system. This singular and enormous power stands solidly against any movement of domestic reform; and, by its alliance with the national rulers in finance and politics, it is saved from the danger of "foreign" intervention. Like every other such absolutism, it is crushing out the life of its subjects; for, in spite of the industry, the thrift, and the abstemiousness of the Mormon people, they are sinking under the burden of imposed exaction's. Although Utah became a territory in 1853, and had its well-settled towns at that time, and was organized in a compact social body for the upbuilding of its material prosperity before any of the surrounding states had received an organic act as a territory, Utah has now lost its leadership, and the individual initiative and enterprise of the typical Western community have been relatively lost.

In this process of degeneration, one of the most promising modern experiments in communism has been frustrated and brought to ruin. In the early nineties, Dr. Josiah Strong, of New York City, viewed the Mormon system with an interested admiration. He saw that by contribution, and co-operation, and arbitration, the energies of the people were conserved and the products of their prosperity more equally distributed than under the conditions of economic war then prevalent elsewhere. He thought he saw in Utah a possible solution of some of the social problems of our civilization. But, a few years ago, he confessed that the Mormon system was no longer worthy of study. It had been destroyed by the greed of its rulers. Community contributions were being used for individual commercialism and the aggrandizement of leaders. The aged and infirm poor, who had contributed through all the working period of their lives, were being thrust into poor houses. The ambition of the earlier Prophets, to make the people great in their community prosperity and happiness, has been lost in the new desire of the head of the Church to exhibit that greatness only in his own

person. The Mormon people had become the working slaves of a financial and political and religious autocracy, and Mormonism was no longer anything but a hopeless failure as a social experiment.

It is difficult to say how much of this failure was due to the character of the present Prophet, and how much to the national conditions that are threatening the success of democracy in every state of the Union. It would seem that the conditions were ideal for the production of just such a man as Smith, and that Smith was by nature fitted for the greatest growth under just such conditions. He came to power with none of the feeling of responsibility to his people which the earlier leaders showed. He considered that the people lived for him, not that he lived for the people. He regarded the Mormon system as an establishment of his family, to which he had the family right of inheritance; and he waited with a sulky impatience for the deaths of the men who stood between him and the control of his family's Church. It was as if he accepted his predecessors as exercising their powers, during an inter-regnum, by the consent of the Mormon people, but saw himself acceding to the throne by family right and the order of divinity.

He had no financial ability; he had no considerable property when he became president of the Church at sixty-three. Nor did he need any such ability. The continuous inflow of money—to be used without accountability to anyone—and the wealth of opportunity offered by the men who wished his aid in exploiting his people, made it unnecessary that he should have any creative financial vision. He needed only to move, with his opportunity, along the line of least resistance which was also, with him, the line of choice.

He had, through all his years, shown an obvious envy of any member of the Church whose circumstances were better than his own. It was apparent in his manner that he regarded such success in the community as an encroachment upon the Smith prerogatives. As soon as he came to power, he accepted every opportunity of self-aggrandizement as a new Smith prerogative. And the system of modern capitalism appealed at once to his ambition. By the older method of tithes and conscription's, he could collect only from the devotees of the Church; by the larger exploitation he could levy tribute upon the Gentiles too.

And he was aided by the Mormons themselves. They had been brought together, in obedience to "a command of God," in order that the community,

by avoiding the sins of the world, might be saved from the plagues that were to descend upon the world because of its injustice. They were a credulous people, ignorant of the sins of modern finance, and prepared by industry and isolation to be exploited. Their previous leaders had observed, as a warning only, the modern aspiration for vast wealth obtained by economic injustice; but that aspiration made an instant appeal to Smith's ambition; and it is the peculiar iniquity of conditions in Utah today that his ambition has betrayed his people to the very evils which they were originally organized to escape.

In an earlier time it was the pride of the leader that the community in the large was advancing and the average of conditions improving. Today the leader assumes that as he grows richer the people are prospering and "the revelations of God" being vindicated in practice. He speaks with pride of "our" growth and wealth under "the benign authority of the Almighty" and His "temporal revelations"—because he himself has been enriched by the perversion of these same laws—very much as the "captain of industry" elsewhere boasts of the "prosperity" of the country, because the few are growing so rich at the expense of the many.

Along with this strain of commercial greed in Smith, there is an equally strong strain of religious fanaticism that justifies the greed and sanctifies it, to itself. He believes (as Apostle Orson Pratt taught, by authority of the Church): "The Kingdom of God is an order of government established by divine authority. It is the only legal government that can exist in any part of the universe. All other governments are illegal and unauthorized.... Any people attempting to govern themselves by laws of their own making, and by officers of their own appointment, are in direct rebellion against the Kingdom of God." Smith believes that over this Kingdom the Smiths have been, by Divine revelation, ordained to rule. He believes that his authority is the absolute and unquestionable authority of God Himself. He believes that in all the affairs of life he has the same right over his subjects that the Creator has over His creatures. He believes that he has been appointed to use the Mormon people as he in his inspired wisdom sees fit to use them, in order the more firmly to establish God's Kingdom on Earth against the Powers of Evil.

He believes that the people of the American Republic, "being governed by laws of their own making and by officers of their own appointment," are

in direct rebellion against "his Kingdom of God." He believes that the national government is destined to be broken in pieces by his power; that it has only been preserved from destruction by the concessions recently made by the Federal authorities; and that it can only continue to save itself so long as it shall recognize Smith's ambassadors at Washington—and so allow him to work out its destruction in the fullness of time.

But with all this insanity of pretension he has a sort of cowardly shrewdness, acquired in his days of hiding "on the underground." On the witness stand in Washington he denied that he had had any direct communication with God by revelation; and then he returned to Utah and pleaded from the pulpit that on this point he had lied in Washington in order to escape saying what his "inquisitors" had wished him to say in order to "get him into a trap." He preaches in Utah that to deny the doctrine of polygamy is to reject the teaching of Jesus Christ; before the Senate committee he was coward enough to put the blame of his polygamous cohabitation upon his five wives. In Washington he claimed that the Gentiles of Utah condoned polygamous cohabitation and had a liberal sympathy for the Church; but at St. George, Utah, for example (in September, 1904), he was reported by a Church newspaper as saying: "The Gentiles are coming among us to buy our homes and land. We should not sell to them, as they are the enemies of the Kingdom of God." He is that most perfect of all hypocrites—the fanatic who believes that he is lying in the service of the Almighty.

In the early spring of 1888, I was in Washington, where measures of proscription were then being prepared against our people; and, early in the morning, as I walked up Massachusetts Avenue, I saw Joseph F. Smith approaching me. For several years he had been "on the underground" under the name of "Joseph Mack"—now in the Hawaiian Islands with one wife; now hidden, with another, among the faithful in some Mormon village; or again with a third, in Washington (which was probably as safe a place as any) presiding secretly over the Church lobby. As he passed me, with his head down, preoccupied, I said: "Good morning, President Smith." He jumped as if I had been a Deputy Marshal with such a sudden start of fear that his silk hat rolled on the pavement and his umbrella dropped from his hand. He drew back from me as if he were about to take to his heels. Then he recognized me, of course, and was quickly reassured; but his embarrassment continued for some time, awkwardly.

But a short time ago the President of the United States stood in the Salt Lake Tabernacle (which is "Joseph Mack's" capitol and vatican) and addressed a multitude that had assembled not more to honor the Chief Executive of the nation than to pay their almost idolatrous tribute of devotion to the head of their Church, who was reigning there in the pulpit with President Taft. "Joseph Mack" no longer fears Deputy Marshals—he appoints them; and the present United States Marshal of Utah would refuse to serve a paper under the direction of the entire power of the United States government if "Joseph Mack" forbade the service. He no longer fears the proscriptions of legislators at Washington; they come to him, through the leaders of their parties, and arrange with him for the support of the trans-Mississippi states in which the influence of his Church control is determinative. He no longer hides his wives, at the ends of the earth, and visits them by stealth; they occupy a row of houses along one of the principal streets of Salt Lake City, and the pilgrim and the tourist alike admire his magnificence as they go by. He is still a law-breaker. He stands even more in defiance of the authority of the nation than he did in 1888, and he hates that authority as much as ever. But he is today not only the Prophet of the Church; he is the Prophet of Mammon; and all the powers and principalities of Mammon now give him gloriously: "All Hail!"

Chapter XIX. The Subjects of the Kingdom

But what of the Mormon people? How can such leaders, directing the Church to purposes that have become so cruel, so selfish, so dangerous and so disloyal—how can they maintain their power over followers who are themselves neither criminal nor degraded? That is a question which has given the pause of doubt to many criticisms of the Mormon communism of our day. That is the consideration which has obtained from the nation the protection of tolerance under which the Prophets flourish. For not only are the Mormon men and women obviously as worthy as any in the United States: there is plainly much of community value in their social life; there is manifestly a great deal of efficiency for human good in their system and in the leadership by which it is directed; and this good is so apparent that it appeals easily to the sympathetic conscience and uninformed mind of the country at large.

Let me try, then, to exhibit and to analyze the causes that keep such a virtuous and sturdy people loyally supporting the leadership of men so unworthy of them that if the people were as bad as the ends to which they are being now directed, modern Mormonism would be destroyed by its own evils.

In the first place, the average Mormon chief is sincere in his pretensions and self-justified in his aims. Usually, he has been born, in the Church, to a family that sees itself set apart, in holiness, from the rest of humanity, as the direct heirs of the ancient prophets or even as the lineal descendants of Christ. From his earliest age of understanding, he is taught the divine splendor of his birth and impressed with the high duties of his family privilege in being permitted to bear a part in preparing the earth for the second coming of the Savior. He is taught that, though all the world may be saved and nearly all the people of this sphere will in some eternity work out a measure of salvation, he and 143,999 others are to be a band of the elect who shall stand about the Savior, on Mount Zion, in the final day.

He is taught that, next to Christ, Joseph Smith, the founder of the faith, has performed the largest mission for the salvation of the world; that in the councils of the Gods, when the Creator measured off the ages of the human

race on this earth, to the Savior was apportioned "the meridian of time," and to Joseph Smith, the Prophet, was given the "last dispensation," which is "the fullness of times," in order that the world, having apostatized from the atonement and the redemption, might be saved to heaven by Joseph, "the Choice Seer."

He is taught that the disciples of the Mormon Prophet are literally the disciples of Jesus Christ; that the laws of right and wrong are within the direction and subject to the authority of the Prophet, to be changed, enlarged or even revoked by his commandment; that all human laws are equally subject to his will, to be made or unmade at his order; that he can condemn, by his excommunication, any man or any nation to the vengeance of the Almighty here and hereafter; and that he can pronounce a blessing upon the head of any man, or the career of any people, by virtue of which blessing power shall be held in this world righteously and the man elevated to sit at the right hand of God in the world to come. He is taught that the greatest sin which can be committed—next to the denial of Christ—is to raise hand or voice against "the Lord's anointed," the Mormon prophets. And, for morality, he is taught from his infancy, that he must scrupulously practice those special virtues of his cult, industry, thrift, purity (except as in later life he shall be inducted into the practice of the new polygamy) honesty in business, and charity toward his needy fellow-men.

Formed in character by this teaching, as a steady inculcation throughout his youth, he comes to manhood strong of body, determined of mind, practicing rigidly and intolerantly his petty virtues of abstinence from the use of tobacco, tea and coffee, proclaiming with fanatical zeal the gospel as it has been proclaimed to him, and self-justified in all that he says or does by the large measure of sincerity in his delusions.

And that is, in some degree, the common training of all Mormons. Every Mormon boy attends Sunday School as soon as he is old enough to lisp his song of adoration to Joseph, the Kingly Prophet, and to the Savior with whom Joseph is early associated in his childish mind. At six years of age, he enters the Primary Association; at twelve he is in the Young Men's Mutual Improvement Association; at fourteen or even earlier, he stands in the fast-day meeting and repeats like a creed: "Brethren and Sisters, I feel called upon to say a few words. I am not able to edify you, but I can say that I know this is the Church and Kingdom of God, and I bear my

testimony that Joseph Smith was a Prophet and that Brigham Young was his lawful successor, and that the Prophet Joseph F. Smith is heir to all the authority which the Lord has conferred in these days for the salvation of men. And I feel that if I live my religion and do nothing to offend the Holy Spirit I will be saved in the presence of my Father and His Son, Jesus Christ. With these few words I will give way. Praying the Lord to bless each and every one of us is my prayer in the name of Jesus Christ. Amen."

At fourteen he becomes a Deacon of the Church. Between that age and twenty, he becomes an Elder. Very soon thereafter he becomes "a Seventy" and perhaps a high priest. He takes upon himself "covenants in holy places." He becomes "a priest unto the Most High God"—frequently before his eighteenth year. Usually before he is twenty he is sent on a mission to proclaim his gospel—the only one he has ever heard in his life—to "an unenlightened nation" and "a wicked world." For, in addition to being taught that the Mormons are the best, most virtuous, most temperate, most industrious, and most God-fearing of all peoples—a thing that is dinned into his ears from the pulpit every Sunday in the year—he has been convinced by equal iteration that the rest of the world is a festering mass of corruption.

Often he goes abroad, to some country whose language and customs he must learn and upon the charity of whose toilers he must depend for his maintenance. He goes with an implicit reliance upon God, strong in the small virtues that have been taught him from the time he knelt at his mother's knee. He sees, probably for the first time, the afflictions and the sins among mankind; and he keeps himself unspotted from them, congratulating himself that these grossnesses are unknown to his sheltered home-life and to the religion which he holds as the ideal of his soul. He proclaims his belief that God has spoken from the Heavens, through the Mormon Prophet, in this last day, to restore the gospel of Christ from which the peoples of the earth have wandered. He "bears testimony" to the whole world, and he binds himself to the authority of his Church by proclaiming his belief in it.

When he returns home, after years of service, he is called to the stand in the tabernacle to give a report of his work. He finds waiting for him a ready advancement in the offices of the Church, according as he may show himself worthy of advancement or as the power of family or the favor of

ecclesiastical authority may obtain it for him. He marries a girl who has had a training almost identical with his own. She, too, has borne her testimony before she reached years of responsibility. She has taken her vows as a priestess at the age when he was dedicating himself a priest. She may even have performed a foreign mission. They have both been promised that they shall become kings and queens in the eternal world. They are bound by their covenants to obey their superior priests. They cannot disregard their Church affiliations without recanting their vows. The only way they can adhere to their covenants with their Almighty Father—the only way they can demonstrate their acceptance of the atoning power of the Redeemer's sacrifice—is by yielding such obedience to the Prophet as they would pay to the Father and the Son if They were on earth in Their proper persons. To deviate from this faithfulness is to be marked as a Judas Iscariot by all the Latter-Day Saints.

As soon as the Mormon becomes the head of a family—in addition to all the testimonies and performances which he must give as proof of his continued adherence—he must submit himself and his household to the examination and espionage of the ward teachers, who invade his home at least once a month. They enter absolutely as the proprietors of the house. If the husband is there, they ask him whether he performs his duties in the Church; whether he holds family prayer morning and evening; whether he "keeps the word of wisdom"—that is, does he abstain from the use of alcohol, tobacco, tea and coffee—whether he pays a full tithe and all the prescribed donations to the Church; whether he has any hard feelings against any of his brethren and sisters; and finally, does he devoutly sustain the Prophet as the ruler of God's Kingdom upon earth. These questions, so far as they apply, are put to each member of the family above the age of eight years. Should the husband be away, all the inquiries concerning him are made of the wife. If both parents are absent, the questions concerning them are put to their children!

This one branch of the ecclesiastical service is sufficient of itself to mark the Mormon Church as the most perfectly disciplined institution among mankind. The teachers' quorum in any neighborhood consists of some tried elders, usually of considerable ability and experience. With these are associated numerous young men, many of them returned missionaries. The fact that they have countless other duties in the Church and many other and weightier responsibilities, is not permitted to excuse them from performing

strictly this important labor. Perhaps a dozen or twenty families are assigned to a couple of teachers. They are required to visit each of these families once every month. And if they discover any lapse of fidelity, they report at once to the Bishop.

No one who has not seen them on their rounds will believe with what an air of divinely privileged authority they enter a home and force its secrets of conscience—with what an imposing and arrogant zeal—with what a calm assumption of spiritual over-lordship and inquisitorial right. Some few years ago after my public criticisms of Joseph F. Smith had been followed by my excommunication, two teachers, on their monthly rounds, came to my home in the evening and made their way calmly to the library where I was sitting with some members of my family. I had just returned from a long absence abroad, and the visit was an untimely intrusion at its best; but we observed the obligations of hospitality with what courtesy we could, and merely evaded the familiar questions which they began to put to us. Finally, the elder of the two teachers, a man of some local prominence in the Church, undertook to "bear testimony" to the wickedness of anyone who opposed the divine rule of Joseph F. Smith; and when I cut him short with a request that he leave the house, he was as shocked and surprised as if he had been Milton's Archangel Michael, after "the fall," and I, a defiant Adam, showing him the door.

In addition to the visitations of the ward teachers, some members of the Ladies Relief Society call upon every family usually once a month, not only to gather donations for the poor, but to have a little quiet talk with the wife and mother of the household. These women of the Relief Society are genuine "Sisters of Charity." In most cases they have themselves plenty of household cares, yet they give much of their time to visiting the sick, supplying the wants of the needy or ministering to the miseries of the afflicted; and if it were not for them and their noblework, the Mormon poor would fare ill in these days of Mormon Church grandeur. Outside of their monthly visitations, they have definite preaching to do. At the meetings of their organization, they "bear testimony" that Joseph was a Prophet—and so on. They have the quarterly stake conferences to attend. Their traveling missionaries go from Salt Lake to the four quarters of the globe to institute and maintain the discipline of the organization and to teach the methods of its practical work in Nursing Schools, mother's classes and the like. They make up one of the noblest bodies of women associated with any social

movement of humanity. And in their zeal and submissiveness they are so innocently meek and "biddable" that they can listen with reverence to young Hyrum Smith publicly lecturing the grandmothers of the order for occasionally partaking of a cup of thin tea.

Under such a system of teaching, discipline and espionage, how can the average Mormon man or woman develop any independence of thought or action? At what time of life can he assert himself? Before he has attained the age of reason he has declared his faith in public. If he shall then, in his teens, express any doubt, the priests are ready for him. "You have borne your testimony many times in the Church," they say sternly. "Were you lying then, or have you lost the Spirit of God through your transgressions?" If he reveals any doubt to the ward teachers, they will overwhelm him with argument, and either absolutely reconvert him or silence him with authority. The pressure of family love and pride will be brought to bear upon him. The ecclesiastical authorities will move against him. He knows that every one of his relatives will be humiliated by his unfaithfulness. His "sin" will become known to the whole community, and he will be looked at askance by his friends and his companions.

After he has taken his vows as a priest, how shall he dare to violate them? He knows that if he loses his faith on a mission—in other words, if he dares to make any inquiry into the authenticity of the mission which he is performing—he becomes a deserter from God in the very ranks of battle. He knows that he will be held forever in dishonor among his people; that he will be looked upon as one worse than dead; that he will ruin his own life and despoil his parents of all their eternal comfort and their hope in him.

While I was editing the Salt Lake Tribune, a son of one of the famous apostles came to me with some anxious inquiries, and said: "Frank, I have been working in the Church and teaching this gospel so assiduously for nearly forty years that I have never had time to find out whether it's true or not!"

If the Mormon, in his later years of manhood, dares to doubt, he must either reveal his disloyalty to the ward teachers or continue to deny it, from month to month, and remain a supine servant of authority. If he reveals it, he knows that the news of his defection will permeate the entire circle with which he is associated in politics, in business and in religion. If his superstition does not hold him, his worldly prudence will. He knows that all

the aid of the community will be withdrawn from him; every voice that has expressed affection for him will speak in hate; every hand that has clasped his in friendship will be turned against him. And into this very prudence there enters something of a moral warning. For he has seen how many a man, deprived of the association and fraternity of the Church, feeling himself shunned in a lonely ostracism, has not been strong enough to endure in rectitude and has fallen into dissipation. Every instance of the sort is rehearsed by the faithful, with many exultant expressions of mourning, in the hearing of the doubter. And finally, it is the prediction of the priests that no apostate can prosper; and though the Mormon people are charitable and do not intend to be unjust, they inevitably tend to fulfill the prophecy and devote the apostate to material destruction.

The great doctrine of the Mormon faith is obedience; the one proof of grace is conformity. So long as a man pays a full tithe, contributes all the required donations, and yields unquestioningly to the orders of the priests, he may even depart in a moral sense from any other of the Church's laws and find himself excused. But any questioning of the rulership of the Prophets—the rightfulness of their authority or the justice of its exercise is apostasy, is a denial of the faith, is a sin against the Holy Ghost. The man who obeys in all things is promised that he shall come forth in the morning of the first resurrection; the man who disobeys, and by his disobedience apostatizes, is condemned to work out, through an eternity of suffering, his offense against the Holy Spirit. At the first sign of defection—almost inevitably discovered in its incipiency—the rebel is either disciplined into submission or at once pushed over "the battlements of Heaven!"

By such perfect means, the leaders, chosen under a pretense of revelation from God, maintain an unassailable sanctity in the eyes of the people, who are themselves priests. These people implicitly believe that the voice of the leader is the voice of God. They follow with a passionate devotion that is made up of a fanatical priestly faith and of a sympathy that sees their Prophets "persecuted" by an ungenerous, impure and vindictive world. We love that for which we suffer; and it has become the inheritance of the Mormons to love the priesthood, for whose protection their parents and grandparents suffered, and under whose oppressions they now suffer themselves.

Joseph Smith, the original Prophet, was slain in the Carthage jail; to the Mormon mind this is proof that he was the anointed of God and that he sealed his testimony with his blood, as did the Savior. John Taylor, afterwards President of the Church, was not slain at Carthage, but only wounded; and this to the Mormons is proof that he was of the eternal kindred of the Prophets, because, under God's direction, he gave his blood to their defense. But Willard Richards, a companion of Smith and Taylor, was not even injured at Carthage; and this is accepted as proof that God had charge of his holy ones, and would not permit wicked men to do them harm. When the people left Nauvoo and journeyed through Iowa, some of the citizens of that state would not harbor them; and this is argued as evidence that the Mormon movement was God's work, since the hand of the wicked was against it; but in some localities of Iowa the emigrants were aided, and this also is proof that the Mormon movement was God's work, since the hearts of the people were melted to assist it. When Johnston's army was sent to Utah, it was proof that the Mormon Church was the true Church, hated and persecuted by a wicked nation; when Johnston's army withdrew without a battle, it was a new guarantee of the divinity of the work; and it is even believed among the Mormons that the Civil War was ordained from the heavens, at the sudden command of God, to compel Johnston's withdrawal and save God's people.

In the same way the persecutions of "the raid," and the cessation of those persecutions—the early trials of poverty and the present abundance of prosperity—the threat of the Smoot investigation and the abortive conclusion of that exposure—are all argued as proofs of the divinity of a persecuted Church or given as instances of the miraculous "overruling" of God to prosper his chosen people. No matter what occurs, the Prophets, by applying either one of these formulae, can translate the incident into a new proof of grace; and their followers submissively accept the interpretation.

On the night of April 18, 1905, Joseph F. Smith and some eight of his sons sat in his official box at the Salt Lake theatre to watch a prize fight that lasted for twenty gory rounds. The Salt Lake Tribune published the fact that the Prophet of God, and vicegerent of Christ, had given the approval of his "holy presence" to this clumsy barbarity. A devout old lady, who had been with the Church since the days of Nauvoo, rebuked us bitterly for publishing such a falsehood about President Smith. "How dare you tell such wicked lies about God's servants?" she scolded. "President Smith wouldn't

do such a wicked thing as attend a prize fight. And you know that no man with any sense of decency would take his young sons to look at such a dreadful thing!" Some time later, when the facts in the case had come to her, in her retirement, from her friends, the editor called upon her to quiz her about the incident. She said: "I'm sure I don't see what business it is of the outside world anyhow what President Smith does. He has a right to go to the theatre if he wants to. I don't believe they would have anything but what's good in the Salt Lake theatre. It was built by our people and they own it. And if it wasn't good, President Smith wouldn't have taken his boys there."

And this was not merely the absurdity of an old woman. It is the logic of all the faithful. The leaders cannot do wrong—because it is not wrong, if they do it. No criticism of them can be effective. No act of theirs can be proven an error. If they do not do a thing, it was right not to do it; and it would have been a sin if it had been done. But if they do that thing, then it was right to do it; and it would have been a sin if it had not been done.

This reliance upon the almighty power and prophetic infallibility of the leaders prevents the Mormon people from truly appreciating the dangers that threaten them. It keeps them ignorant of outside sentiment. It makes them despise even a national hostility. And it has left them without gratitude, too, for a national grace. Before these people can be roused to any independence of responsible thought, it will be necessary to break their trust in the ability of their leaders to make bargains of protection with the world; and then it will still be necessary to force the eyes of their self-complacency to turn from the satisfied contemplation of their own virtues. "You will never be able to reach the conscience of the Mormons," a man who knows them has declared. "I have had my experiences with both leaders and people. If you tell them 'You're ninety-nine-and-one-half per cent. pure gold,' they will ask, surprised and indignant: 'What? Why, what's the matter with the other half per cent?'"

Chapter XX

Conclusion

Of the men who could have written this narrative, some are dead; some are prudent; some are superstitious; and some are personally foresworn. It appeared to me that the welfare of Utah and the common good of the whole United States required the publication of the facts that I have tried to demonstrate. Since there was apparently no one else who felt the duty and also had the information or the wish to write, it seemed my place to undertake it. And I have done it gladly. For when I was subscribing the word of the Mormon chiefs for the fulfillment of our statehood pledges, I engaged my own honor too, and gave bond myself against the very treacheries that I have here recorded.

We promised that the Church had forever renounced the doctrine of polygamy and the practice of plural marriage living, by a "revelation from God" promulgated by the supreme Prophet of the Church and accepted by the vote of the whole congregation assembled in conference. We promised the retirement of the Mormon Prophets from the political direction of their followers—the abrogation of the claim that the Mormon Church was the "Kingdom of God" re-established upon earth to supersede all civil government—the abandonment by the Church of any authority to exercise a temporal power in competition with the civil law. We promised to make the teaching and practice of the Church conform to the institutions of a Republic in which all citizens are equal in liberty. We promised that the Church should cease to accumulate property for the support of illegal practices and un-American government. And we made a record in proof of our promises by the anti-polygamy manifesto of 1890 and its public ratification; by the petition for amnesty and the acceptance of amnesty upon conditions; by the provisions of Utah's enabling act and of Utah's state constitution; by the acts of Congress and the judicial decisions restoring escheated Church property; by the proceedings of the Federal courts of Utah in re-opening citizenship to the alien members of the Mormon Church; by the acquiescence of the Gentiles of Utah in the proceedings by which statehood was obtained; and finally, and most indisputably, by the admission of Utah into equal sovereignty in the Union—since that

admission would never have been granted, except upon the explicit understanding that the state was to uphold the laws and institutions of the American republic in accordance with our covenants.

Of all these promises the Church authorities have kept not one. The doctrine and practice of polygamy have been restored by the Church, and plural marriage living is practiced by the ruler of the kingdom and his favorites with all the show and circumstance of an oriental court. There are now being born in his domains thousands of unfortunate children outside the pale of law and convention, for whom there can be entertained no hope that any statute will ever give them a place within the recognition of civilized society. The Prophet of the Church rules with an absolute political power in Utah, with almost as much authority in Idaho and Wyoming, and with only a little less autocracy in parts of Colorado, Montana, Oregon, Washington, California, Arizona and New Mexico. He names the Representatives and Senators in Congress from his own state, and influences decisively the selection of such "deputies of the people" from many of the surrounding states. Through his ambassadors to the government of the United States, sitting in House and Senate, he chooses the Federal officials for Utah and influences the appointment of those for the neighboring states and territories. He commands the making and unmaking of state law. He holds the courts and the prosecuting officers to a strict accountability. He levies tribute upon the people of Utah and helps to loot the citizens of the whole nation by his alliance with the political and financial Plunderbund at Washington. He has enslaved the subjects of his kingdom absolutely, and he looks to it as the destiny of his Church to destroy all the governments of the world and to substitute for them the theocracy—the "government by God" and administration by oracle—of his successors.

And yet, even so, I could not have recorded the incidents of this betrayal as mere matters of current history—and I would never have written them in vindication of myself—if I had not been certain that there is a remedy for the evil conditions in Utah, and that such a narrative as this will help to hasten the remedy and right the wrong. Except for the aggressive aid given by the national administrations to the leaders of the Mormon Church, the people of Utah and the intermountain states would never have permitted the revival of a priestly tyranny in politics. Except for the protection of courts and the enforced silence of politicians and journalists, polygamy could not

have been restored in the Mormon Church. Except for the interference of powerful influences at Washington to coerce the Associated Press and affect the newspapers of the country, the Mormon leaders would never have dared to defy the sensibilities of our civilization. Except for the greed of the predatory "Interests" of the nation, the commercial absolutism of the Mormon hierarchy could never have been established. The present conditions in the Mormon kingdom are due to national influences. The remedy for those conditions is the withdrawal of national sympathy and support.

Break the power at Washington of Joseph F. Smith, ruler of the Kingdom of God, and every seeker after federal patronage in Utah will desert him. Break his power as a political partner of the Republican party now—and of the Democratic party should it succeed to office—and every ambitious politician in the West will rebel against his throne. Break his power to control the channels of public communication through interested politicians and commercial agencies, and the sentiment of the civilized world will join with the revolt of the "American movement" in Utah to overthrow his tyrannies. Break his connection with the illegal trusts and combines of the United States, and his financial power will cease to be a terror and a menace to the industry and commerce of the intermountain country.

The nation owes Utah such a rectification, for the nation has been, in this matter, a chief sinner and a strong encourager of sin. President Theodore Roosevelt, representing the majesty of the Republic, stayed us when we might have won our own liberties in the revolt that was provoked by the election of Senator Apostle Reed Smoot. Misled by political and personal advisers, the President procured delays in the Smoot investigation. He seduced senators from their convictions. He certified the ambassador from the Kingdom of God as a qualified senator of the United States. He gave the hand of fellowship to Joseph, the tyrant of the Kingdom. He rebuked our friends and his own, in their struggle for our freedom, by warning them that they were raising the flag of a religious warfare. He filled the Mormon priests with the belief that they might proceed unrestrainedly to the sacrifice of women and children upon the polygamous altar, to the absolute rule of politics in the intermountain states, and to the commercial exploitation of their community in partnership with the trusts. The one policy that President Taft seems to have accepted unimpaired from his predecessor is this same respect for the power of the Mormon kingdom. In his placid but

wholehearted way he has encouraged his co-ordinate ruler, the Mormon Prophet, and extended the Executive license to the support and inevitable increase of these religious tyrannies of the Mormon hierarchs which now the people of Utah, unaided, are wholly unable to combat.

And the nation owes such a rectification not only to Utah, but also to itself. The commercial and financial Plunderbund that is now preying upon the whole country is sustained at Washington by the agents of the Mormon Church. The Prophet not only delivers his own subjects up to pillage; he helps to deliver the people of the entire United States. His senators are not representatives of a political party; they are the tools of "the Interests" that are his partners. The shameful conditions in Utah are not isolated and peculiar to that state; they are largely the result of national conditions and they have a national effect. The Prophet of Utah is not a local despot only: he is a national enemy; and the nation must deal with him.

I do not ask for a resumption of cruelty, for a return to proscription. I ask only that the nation shall rouse itself to a sense of its responsibility. The Mormon Church has shown its ability to conform to the demands of the republic—even by "revelation from God" if necessary. The leaders of the Church are now defiant in their treasons only because the nation has ceased to reprove and the national administrations have powerfully encouraged. As soon as the Mormon hierarchy discovers that the people of this country, wearied of violated treaties and broken covenants, are about to exclude the political agents of the Prophet from any participation in national affairs, the advisers of his inspiration will quickly persuade him to make a concession to popular wrath. As soon as the "Interests" realize that the burden of shame in Utah is too large to be comfortable on their backs, they will throw it off. The President of the United States will be unable to gain votes by patronizing the crucifiers of women and children. The national administrations will not dare to stand against the efforts of the Gentiles and independent Mormons of Utah to regain their liberty. And Utah, the Islam of the West, will depose its old Sultan and rise free.

With this hope—in this conviction—I have written, in all candor, what no reasons of personal advantage or self-justification could have induced me to write. I shall be accused of rancor, of religious antagonism, of political ambition, of egotistical pride. But no man who knows the truth will say sincerely that I have lied. Whatever is attributed as my motive, my veracity

in this book will not be successfully impeached. In that confidence, I leave all the attacks that guilt and bigotry can make upon me, to the public to whom they will be addressed. The truth, in its own time, will prevail, in spite of cunning. I am willing to await that time—for myself—and for the Mormon people.

The End

*** END OF THE PROJECT GUTENBERG EBOOK UNDER THE
PROPHET IN UTAH; THE NATIONAL MENACE OF A POLITICAL
PRIESTCRAFT ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of

the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide

access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the

electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE

LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability,

costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other

ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.